

SECTION B – SUPPLIES OR SERVICES/PRICES

B.1 GENERAL

This contract is for Center Operations and Maintenance Services (COMS) at the FAA's William J. Hughes Technical Center for Advanced Aerospace (WJHTC). A single, hybrid, Firm-Fixed-Price (FFP), Time-and-Materials (T&M), Cost-reimbursable Indefinite Delivery/Indefinite Quantity (ID/IQ) contract will be awarded. The contract will have a 2-month Transition, a 12-month Base, period and six (6) 12-month Option periods. The exercise of all Options is at the sole discretion of the FAA.

All work will be performed in accordance with the Section C Description/Specifications. Work under this Contract will be ordered by placing Task Orders against the contract. Task Orders may be issued at any time during the performance period.

All terms and conditions contained in this document, unless otherwise specified, will be applicable to all Task Orders issued against this Contract.

B.2 GUARANTEED MINIMUM AND CONTRACT MAXIMUM

The guaranteed minimum for the contract is one month of services for Base Period CLIN 1001A Program Management Support (WJHTC); Base Period CLIN 1002A Preventive Maintenance, Recurring Services, Continuous Operational Duties (WJHTC); and Base Period CLIN 1003A Service Calls (WJHTC). The guaranteed minimum will be met on the first Task Order(s) upon award of the basic contract.

The contract maximum is \$TBD. The contract maximum is based on the sum of CLINs for all Periods (CLINs 1000 - 7006).

Task Orders may be fully funded or incrementally funded in accordance with Acquisition Management System (AMS) Causes 3.3.1-37 Limitation on Government's Obligation and AMS 3.3.1-39 Incremental Funding - Time-and-Materials and Labor-Hour Contracts. The Contractor is required to notify the Contracting Officer (CO) when obligated funds are depleted at the Task Order level in accordance with AMS Clauses 3.3.1-37 and 3.3.1-39.

B.3 PRICING SCHEDULE AND CONTRACT LINE ITEM NUMBER STRUCTURE

The Pricing Schedule for this Contract is provided in Section J as follows:

- Attachment B-1 COMS Pricing Schedule
- Attachment B-2 Fixed Burdened Rate
- Attachment B-3 Loaded Labor Rates

Contract line item numbers (CLINs) are assigned to this work effort. All services must be performed and invoiced pursuant to the associated CLIN. The CLIN structure for the ID/IQ Contract is listed below in Section B.3.1 CLIN Descriptions.

The FAA intends to issue annual Task Orders for each of the customers listed below:

- WJHTC, inclusive of NARTP (locksmith services)
- Eastern Services Area (ESA) (tenant)
- Transportation Security Administration (TSA) (tenant)
- Transportation Security Laboratories (TSL) (tenant)
- Department of Homeland Security Canine Explosives Section (CES) (tenant)
- United States Coast Guard (USCG) (tenant)
- New Jersey Air National Guard (NJANG) (tenant)

Each Task Order will indicate which CLIN(s) are being ordered.

B.3.1 CLIN DESCRIPTIONS

B.3.1.1 CLIN 1000 – Transition

This CLIN will be awarded as FFP. COMS services are vital to the Technical Center's overall mission and must be provided without interruption. The successful contractor is responsible for providing the services in accordance with the PWS beginning 1 January 2026. The transition period of 60 days begins 1 November 2025. The Contractor must utilize this transition time to coordinate its phase-in activities with the Government and other third parties as necessary to affect a smooth and orderly transition of work beginning 1 January 2026, and to provide the following:

Attachment C-1 PWS, Attachment I, Section 2 Personnel

Paragraph 2.2 Physical Requirements

The Contractor must certify each employees' medical fitness for duty no later than thirty (30) calendar days after date of contract award.

Paragraph 2.3 Key Personnel Requirements

Within 30 days after contract award, the Contractor must submit to the COR all required licenses and certifications for all Key Personnel for review and approval.

Paragraph 2.4 Other Personnel Requirements

Within 30 days after contract award, the Contractor must submit to the COR all required licenses and certifications for all Other Personnel for review and approval.

Paragraph 2.4.1 Hazardous Material Response Team

Evidence of this training must be submitted to the COR and FAA-designated personnel no later than thirty (30) calendar days after date of contract award.

Paragraph 2.5.3 Asbestos Training

Certificates of training must be submitted to the COR no later than thirty (30) calendar days after date of award and monthly thereafter for new employees and recurring training.

Paragraph 2.5.8 Facility Maintenance Management Software (FMMS) and Enterprise Contract Management System (ECMS) Training

The Contractor must coordinate a schedule with the FAA to train all Contractor personnel who will use the FMMS and/or ECMS, including management, craftspeople, administrators, and data entry clerks. This must be accomplished no later than thirty (30) calendar days after date of contract award and after date of hiring any new or replacement employees.

Attachment C-1 PWS, Attachment I, Section 3 Contract Requirements

Paragraph 3.1.5.3 Staffing

Within 30 days after contract award, the Contractor must submit a staffing plan for staffing Non-recurring Services (NS) work during heavy workload without interruption to FFP or NS schedules.

Paragraph 3.1.5.7.5 PM/RS Pricing Breakdown

Within 60 days after contract award, the Contractor must submit a list of labor hours and material costs for each PM and RS procedure, to be used in accordance with Section 3.1.6 (RFM/RCR) and Section 3.1.5.6 (General Work Request Requirements).

Paragraph 3.1.10 Salvage and Recyclable Materials

The Contractor must provide the COR with the procedures that will be utilized to ensure that maximum effort will be initiated to collect and separate salvageable and recyclable materials no later than thirty (30) calendar days after contract award.

Attachment C-1 PWS, Attachment I, Section 4 General Environmental, Health, And Safety

Paragraph 4.3.4.2 Non-Hazardous Solid Waste Hauling and Disposal

The Contractor must secure and forward to COR a copy of land fill scale certification no later than thirty (30) calendar days after date of contract award.

Paragraph 4.3.4.3 Hazardous Waste Hauling and Disposal

All required Hazardous Waste Hauling and Disposal documents must be submitted no later than thirty (30) calendar days after date of contract award, or prior to the first shipment whichever comes first.

Paragraph 4.4.6 Hazard Communication

Copies of safety data sheets, physical inventories and records of hazard communication training must be provided to COR no later than thirty (30) calendar days after date of contract award.

Attachment C-1 PWS, Attachment I, Section 5 Property Management

Paragraph 5.2.3 Radios

Within 30 days of contract award the Contractor must provide to the COR a list with the identifier number and respective serial number and person or vehicle the radio is assigned to.

Attachment C-1 PWS, Attachment I, Section 7 Contractor's Quality Control Plan

Paragraph 7.1 General Requirements for the Contractor's Quality Control (QC) Plan

The Contractor's QC Plan must be submitted to the COR within 30 days after contract award and must be approved before start of full performance.

Attachment C-2 PWS, Attachment II, Section 5 Electrical

Paragraph 5.2.3.4 Critical Planned Power Shutdowns

Contractor must submit for approval a list of all dates proposed (primary and alternate) for each of the six scheduled planned power shutdowns at least 30 calendar days after contract award.

Attachment C-2 PWS, Attachment II, Section 8 Central Utilities Plant (CUP)

Paragraph 8.2.1.1 Standard Operating Procedures (SOP)

CUP SOPs must be provided to the COR no later than thirty (30) calendar days after date of contract award.

Paragraph 8.2.1.2 CUP Operator Training

The Contractor must submit the CUP operator training plan within 30 days of contract award.

Paragraph 8.2.1.3 Andover Service Contract

The Contractor must provide a copy of the Andover Service Contract no later than 30 days after contract award.

Paragraph 8.2.1.4 SkySpark Service Contract

The Contractor must provide a copy of the SkySpark Service Contract no later than 30 days after contract award.

Attachment C-2 PWS, Attachment II, Section 9 Water Treatment

Paragraph 9.2.4.1 Water Sampling and Testing

Proof of the certified environmental laboratory's certification must be furnished to the COR within thirty (30) days of contract award.

Attachment C-2 PWS, Attachment II, Section 13 Environmental Compliance and Waste Disposal

Paragraph 13.2.1.6.2 ODS Recovery and Recycling Equipment

The Contractor must provide a signed copy of EPA Form 7610-31 to COR no later than thirty (30) calendar days after date of contract award.

Paragraph 13.2.6.1.3.2 Salvageable Scrap Metal

The Contractor must provide the current Scale Certification and Calibration Report from the local, state-approved recycling facility the Contractor uses for disposal of scrap metal no later than thirty (30) calendar days after date of contract award.

Should conflicts arise between the above list and Section J, Attachments C-1 and C-2 PWS, the transition tasks in Section J, Attachments C-1 and C-2 must govern.

B.3.1.1 CLIN X001 – Program Management Support

This CLIN will be awarded as FFP. The Program Management Support CLIN includes all management, administration, and supervision required for the overall performance and execution of the Contract. The monthly invoice amount may be subject to a deduction in accordance with Section J, Attachment C-1 PWS, Attachment I, Section 3 Contract Requirements, Paragraph 3.4 Acceptable Quality Levels (AQLs) for Contract Nonconformance and Technical Exhibit (TE) I-3-1 Monthly Metrics for Issued and Overdue Work Requests.

CLIN X001 Subtotal reflects the Contractor's price for each 12-month period. The WJHTC and Tenant Extended Price is derived by applying FAA-determined percentages to the CLIN X001 Subtotal; percentages are subject to change but do not change the overall X001 Subtotal FFP amount. The monthly Unit Price is derived by dividing the WJHTC and Tenant Extended Price by 12 months. The Contractor will utilize the monthly unit price for monthly invoicing.

B.3.1.2 CLIN X002 – Preventive Maintenance, Recurring Services, and Continuous Operational Duties

This CLIN will be awarded as FFP. This CLIN includes all Preventive Maintenance, Recurring Services, and Continuous Operational Duties required for the overall performance and execution of the Contract. The monthly invoice amount may be subject to a deduction in accordance with Section J, Attachment C-1 PWS, Attachment I, Section 3 Contract Requirements, Paragraph 3.4 Acceptable Quality Levels (AQLs) for Contract Nonconformance and Technical Exhibit (TE) I-3-1 Monthly Metrics for Issued and Overdue Work Requests.

CLIN X002 Subtotal reflects the Contractor's price for each 12-month period. The WJHTC and Tenant Extended Price is derived by applying FAA-determined percentages to the CLIN

X002 Subtotal; percentages are subject to change but do not change the overall X002 Subtotal FFP amount. The monthly Unit Price is derived by dividing the WJHTC and Tenant Extended Price by 12 months. The Contractor will utilize the monthly unit price for monthly invoicing.

B.3.1.3 CLIN X003 – Service Calls Less Than \$2,500

This CLIN will be awarded as FFP. This CLIN is for work requests totaling \$2,500 or less for the aggregate cost of labor, materials, and specialized equipment. The monthly invoice amount may be subject to a deduction in accordance with Section J, Attachment C-1 PWS, Attachment I, Section 3 Contract Requirements, Paragraph 3.4 Acceptable Quality Levels (AQLs) for Contract Nonconformance and Technical Exhibit (TE) I-3-1 Monthly Metrics for Issued and Overdue Work Requests.

CLIN X003 Subtotal reflects the Contractor's price for each 12-month period. The WJHTC and Tenant Extended Price is derived by applying FAA-determined percentages to the CLIN X003 Subtotal; percentages are subject to change but do not change the overall X003 Subtotal FFP amount. The monthly Unit Price is derived by dividing the WJHTC and Tenant Extended Price by 12 months. The Contractor will utilize the monthly unit price for monthly invoicing.

The FAA estimates an annual requirement of 10,000 Service Calls under \$2,500.00. Optional CLIN X003G will be utilized if the FAA exceeds 10,000 calls. CLIN X003 Subtotal is divided by 10,000 Service Calls to derive the Optional CLIN X003G unit price. If needed, the FAA will fund Optional CLIN X003G, and the Contractor will invoice using the Optional CLIN X003G unit price and the quantity of Service Calls under \$2,500.00 performed over 10,000 calls.

B.3.1.4 CLIN X004 – Other Direct Costs

This CLIN will be awarded as Cost-reimbursable and will be paid for on a reimbursable, pass-through basis only, with no markup for indirect costs and fee. Task Orders for this CLIN will be issued as Not-to-Exceed (NTE) as defined in Attachment B-1 COMS Pricing Schedule. This CLIN is for ODCs as described in Section J, Attachment C-1 PWS, Attachment I, Section 3 Contract Requirements, Paragraph 3.2.2.7 Other Direct Costs (ODCs). CLIN X004 is an FAA-provided amount. The Contractor will invoice work under this CLIN against the NTE amount.

B.3.1.5 CLIN X005 – Equipment Adds Interim Billing

This CLIN will be awarded as FFP NTE. This CLIN captures changes to Preventive Maintenance / Recurring Service (PM/RS) Pricing in accordance with Section J, Attachment C-1 PWS, Attachment I, Section 3 Contract Requirements, Paragraph 3.1.5.7.5 PM/RS Pricing Breakdown. CLIN X005 is an FAA-provided amount. The Contractor will invoice work under this CLIN against the NTE amount.

B.3.1.6 CLIN X006 – Non-Recurring Services

This CLIN will be awarded as T&M NTE. This CLIN is for Non-recurring Services (NS) in accordance with Section J, Attachment C-1 PWS, Attachment I, Section 3 Contract Requirements. Work may be ordered via the FAA's Enterprise Contract Management System (ECMS), Oral Direction/Email from the Contracting Officer, or Contracting Officer Representative (COR). Any work order requested will include a NTE amount so work can begin immediately. It is the responsibility of the Contractor to track all costs to ensure the NTE threshold is not exceeded, without prior COR approval. If the Contractor exceeds the NTE threshold without prior approval from the COR, the Contractor will bear the responsibility of those costs. The FAA may re-evaluate at the stopping point to determine if they plan to fund the remainder of any work or stop work on the project. Proposals submitted in response to work orders under this CLIN must utilize the loaded labor rates in Attachment B-3 Loaded Labor Rates.

Loaded labor rates include overhead, fringe, general and administrative burdens, and profit. The rates represent effort performed by either the prime contractor or any subcontractor(s) as required.

Direct materials may be included on individual work orders. NTE amounts for materials will be determined and included, as needed, when the work order is issued. The fixed burdened rate will be applied to direct materials. Equipment and other direct costs, if required, will be pass-through costs only, with no markup for indirect costs and fee.

CLIN X006 is an FAA-provided amount. The Contractor will invoice work under this CLIN against the NTE amount.

SECTION C – DESCRIPTION/SPECIFICATIONS

All work is to be performed in accordance with the following:

- Section J, Attachment C-1 Performance Work Statement, Attachment I, Sections 01 through 07
- Section J, Attachment C-2 Performance Work Statement, Attachment II, Sections 01 through 15

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SECTION D – PACKAGING AND MARKING

D.1 GENERAL

The requirements of SECTION D apply when there are deliveries/deliverables included in the ID/IQ contract or Task Order. All products delivered under the ID/IQ contract or Task Orders of the basic contract will be packaged in accordance with best commercial practices. The program office may include additional packaging and marking requirements, other than those enumerated in this Section, in individual Task Orders.

D.2 CONTENT OF DELIVERABLES

Technical reports/plans must be delivered in accordance with individual Task Orders. The Contractor must provide separate digital images of any photos, figures or drawings used in reports if the images are too large to be contained in the original Microsoft Word files. Technical presentations must be in accordance with best commercial practices.

D.3 MARKING OF REPORTS

The Contractor must mark all reports as follows:

- a. Report title
- b. Contract number
- c. Task Order (TO) number
- d. Date submitted
- e. Report performance period (i.e. date range pertaining to the relevant information reported)
- f. Contractor's name and address
- g. Contractor's Point of Contact (POC)
- h. Applicable Data Rights Notices
- i. Distribution list, including name of Contracting Officer Representative (COR)

D.4 DELIVERABLES MEDIA

Unless otherwise directed at the Task Order level, the Contractor must submit deliverables in an editable electronic format. Documentation must be compatible with the version of commercial applications used by the FAA, which currently includes, but is not limited to:

- Text/Documents/Reports - Microsoft Word
- Spreadsheets - Microsoft Excel
- Presentations/Briefings - Microsoft PowerPoint
- Drawings - Microsoft PowerPoint and/or Visio
- Schedules - Microsoft Project
- Collaboration Solution - Microsoft SharePoint and/or Microsoft Teams

Portable Document Format (PDF) files may be utilized if approved at the Task Order-level by the Contracting Officer's Representative (COR) on a deliverable-by-deliverable basis. When requested by the COR, the Contractor must provide the original format (e.g. Microsoft Word, etc.) of the documentation.

D.5 PRESERVATION, PACKAGING, AND PACKING OF EQUIPMENT AND SUPPLIES

Preservation, packaging and packing for shipment or mailing of all deliverables hereunder must be in accordance with best commercial practices, sufficient to assure arrival at destination in a safe and undamaged condition. Supplies must be shipped prepaid by common carrier, parcel carrier or parcel post (unless otherwise specified on an individual Task Order).

D.6 MARKING AND STORAGE OF EQUIPMENT AND SUPPLIES

A Material Inspection and Receiving Report (DOT-4220.42) with a detailed paper packing list, in an envelope must be conspicuously placed on the outside of the lowest numbered package (one packing list for each shipment), or as specified on an individual Task Order. All marking and storage expenses which are incidental to Contractor's shipping of the materials under this basic contract will be made at the Contractor's expense (and not on a reimbursable basis).

D.7 EQUIPMENT REMOVAL

Unless otherwise specifically addressed in a contract or Task Order issued hereunder, the Contractor will be solely responsible for removing (at its expense, not on a reimbursable basis) within thirty (30) days after expiration or earlier termination of the applicable contract or Task Order, all of its personal property (e.g., equipment, supplies, etc.) which it has placed at government premises during the course of performance for the applicable contract or Task Order.

SECTION E - INSPECTION AND ACCEPTANCE

3.1-1 CLAUSES AND PROVISIONS INCORPORATED BY REFERENCE (JUL 2019)

This screening information request (SIR) or contract, as applicable, incorporates by reference the provisions or clauses listed below with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make the full text available, or offerors and contractors may obtain the full text via Internet at:

<https://fast.faa.gov/contractclauses.cfm>.

(End of clause)

3.10.4-4 INSPECTION OF SERVICES - BOTH FIXED-PRICE & COST REIMBURSEMENT (APR 1996)

3.10.4-5 INSPECTION - TIME-AND-MATERIAL AND LABOR-HOUR (APR 1996)

3.10.4-9 INSPECTION OF FACILITIES (APR 1996)

3.10.4-10 INSPECTION OF CONSTRUCTION (SEP 2009)

3.10.4-16 RESPONSIBILITY FOR SUPPLIES (APR 1996)

E.1 CONTRACTOR QUALITY CONTROL (QC)

The Contractor must establish and maintain a Quality Control Program. The Contractor must not substitute the Government's Quality Assurance Methods. A properly established QC Program will alert the Contractor to quality problems prior to Government notification. Specific performance standards are set forth in Attachment C-1 PWS, Attachment I, Section 3, paragraph 3.4 entitled "Acceptable Quality Levels (AQLs) for Contract Nonconformance" and Technical Exhibits I-3-1 "Monthly Metrics for Issued and Overdue Work Requests." Performance criteria include timeliness of response and completion, quality of materials and workmanship and proper documentation, all of which are specifically identified in the aforementioned Attachment and Technical Exhibit. The QC Plan must include invoicing procedures to ensure that erroneous billing does not occur.

The Contractor must perform sufficient inspection of all items of work, including subcontractor work, to ensure conformance with applicable specifications and drawings with respect to the materials, workmanship, construction, finish and functional performance with emphasis on the surveillance, tests, and submittals required in Attachments C-1 and C-2 PWS, including applicable on-site inspection.

The Contractor is responsible for full compliance with all the requirements of the Contract. The burden of proof of contract compliance is placed on the Contractor, not the

Government. If the Contractor wishes to operate a parallel system to verify Government deductions and payment calculations, operation of such a system will be at the Contractor's expense.

Once approved, the Contractor's QC Plan will be incorporated into the Contract.

If there are recurring deficiencies in an item or items indicating that the Contractor's QC Program is inadequate, the Contracting Officer's Representative (COR) will advise the Contracting Officer (CO). As directed by the CO, the Contractor must provide evidence of corrective action and deliver an upgraded QC Plan within 10 calendar days.

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SECTION F - DELIVERIES OR PERFORMANCE

3.1-1 CLAUSES AND PROVISIONS INCORPORATED BY REFERENCE (JUL 2019)

This screening information request (SIR) or contract, as applicable, incorporates by reference the provisions or clauses listed below with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make the full text available, or offerors and contractors may obtain the full text via Internet at:

<https://fast.faa.gov/contractclauses.cfm>.

3.10.1-9 STOP-WORK ORDER (OCT 1996)

3.10.1-9 ALTERNATE I STOP-WORK ORDER (OCT 1996)

3.10.1-10 STOP-WORK ORDER - FACILITIES (JUN 1999)

3.10.1-11 GOVERNMENT DELAY OF WORK (APR 1996)

3.11-34 F.O.B. DESTINATION (APR 1999)

3.8.2-22 SUBSTITUTION OR ADDITION OF PERSONNEL (OCT 2006)

(1) The Contractor must assign only those individuals whose resumes, personnel data, or personnel qualification statements have been submitted and determined by the Contracting Officer to meet the minimum requirements of the contract. The Contractor must not substitute or add personnel except in accordance with this clause.

(2) Substitution of Personnel.

(a) For the first 180 days of contract performance, the Contractor must not substitute personnel for the individuals whose resumes or other personal qualification were submitted with its offer and that were determined by the Contracting Officer to be acceptable at the time of contract award, unless such substitutions are because of an individual's sudden illness, death, or termination of employment. In any of these events, the Contractor must promptly notify the Contracting Officer and propose substitute personnel as required by paragraph (4) below.

(b) If an individual becomes, for whatever reason, unavailable for work under the contract for a continuous period exceeding thirty (30) working days, or is expected to devote substantially less effort to the planned work, the Contractor must propose a substitute personnel as required by paragraph (4) below.

(3) Addition of Personnel. If an FAA requirement will increase the specified level of effort for a designated labor category, but not the overall level of effort of the contract, then the Contractor must notify the Contracting Officer to add personnel to the designated labor category. The Contractor must request added personnel as required by paragraph (4) below.

(4) Request and Review. The Contractor must submit the request for substitute or added personnel in writing to the Contracting Officer at least 15 days (if a security clearance must be obtained, at least 30 days) before the proposed date of substitution or addition. The Contractor's request must provide a detailed explanation of the circumstances causing the proposed substitution or addition, a complete resume for the proposed substitute or added personnel, and any additional information required by the Contracting Officer. Proposed substitutes and added personnel must have qualifications equal to or higher than those stated in the contract for the labor category. The Contracting Officer will evaluate the Contractor's request and promptly notify the Contractor of the decision to accept or reject the qualifications of the substitute or added personnel.

(5) The Contracting Officer may terminate the contract if the Contractor has not made suitable, timely, and reasonably forthcoming replacement of personnel who have been reassigned or terminated or otherwise become unavailable to work under the contract or the resulting loss of productive effort would impair the successful completion of the contract. Alternatively, if the Contracting Officer finds the Contractor to be at fault for the condition, then the Contracting Officer may equitably adjust (downward) the contract price or fixed fee to compensate the Government for any delay, loss or damage as a result of the Contractor's action.

(End of clause)

F.1 DELIVERABLES

The Contractor must deliver the following deliverables in accordance with Attachment C-1 PWS, Attachment I, Performance Work Statement Sections 2-7.

Table F.1.1 – Deliverables Table

Description	PWS Reference	Due By	Recurrence
Professional certifications/licenses	2.1	10 calendar days from hire or renewal dates	As required
Job tasks which require medical screening & surveillance must provide physical examinations, initially and annually. Contractor to provide Medical Clearance Form or Memo	2.2	30 calendar days from Contract award, first of every month for new employees and recurring annual examinations	As required

Description	PWS Reference	Due By	Recurrence
OSHA HAZWOPER 40 hour certification/annual 8 hour refresher (Supervisor add'l 8 hour HAZWOPER supervisor cert)	2.4.1	30 calendar days after Contract award or 1st of every month for new employees/recurring training	As required
Asbestos Training 2 hours general asbestos awareness with annual refresher	2.5.3	30 calendar days after Contract award or 1st of every month for new employees/recurring training	As required
AHERA 16 hours training followed by annual refresher for trade employees working on asbestos containing materials	2.5.3	90 calendar days after Contract award and 1st of every month for new/recurring training	As required
SPCC 2 hours facility specific training annually	2.5.4	90 calendar days after Contract award and 1st of every month for new/recurring training	As required
FMMS and ECMS Training	2.5.8	30 calendar days from Contract award and after date of hiring for new or replacement employees	As required
List of Contractor personnel requiring AOA access & AOA security training	2.5.9	10 calendar days from Contract Award or hiring new employees	As required
Emergency Reports must submit incident report	3.2.2.1	Submit to COR ASAP but not later than 12 hours after initial response	As required
Out of Service Reports on equipment out of service longer than one day	3.1.5.7.1	Notification to COR in writing upon knowledge of down equipment	As required
ECMS invoice	3.1.5.7.6	1-5th calendar day of the month for the previous month services & prior to the metrics review.	Monthly
Delphi e-Invoicing	3.1.5.7.6	10th calendar day of the month for previous month services	Monthly

Description	PWS Reference	Due By	Recurrence
RFMs/RCRs	3.1.6	RFM's/RCR's within 10 business days to FMMS, (FAA reconciliation Quarterly for any cost changes)	As required
Warranties	3.1.7	Submit within 7 calendar days of receipt and upload to FAA network	Upload within 7 calendar days of receipt
Salvage and Recyclable Materials	3.1.10	Procedures for separation to collect and separate salvageable and recyclable materials	30 calendar days following Contract award
General	3.2.1	Retain the parts replaced for at least 10 working days after job completion	Upon COR request, for inspection
Materials	3.2.1.1.3.1	Manufacturer's descriptive data & certifications for materials & equipment when questions/concerns present on performance & quality	Upon COR request within 5 business days
Material Inventory Tracking	3.2.1.1.3.2	Material Inventory reports	Monthly basis, by the 5th of the following month
Subcontractor Services	3.2.1.1.3.3	Greater than \$100k, approval required by CO and copy of subcontract agreement	Required upon written request
COMS Contract meeting	3.3.1	Weekly meeting to discuss contract performance and or issue arising	Required one day each week

Description	PWS Reference	Due By	Recurrence
Monthly Metrics for issued and overdue work requests	3.4.1	Issued and Overdue Work Requests of Contractor performance generated in FMMS on 1st Calendar Day of each month for work requests due in the preceding month. Report to be sent to Contractor no later than the 7 th day of each month	Contractor justification due by the date of FFP invoice.
Staffing Plan	3.3	7 calendar days from Contract award	N/A
Staffing Plan Update	3.3	30 calendar days from Contract award	As required
Medical Clearance Form or Memo	3.5	30 calendar days from Contract award	Monthly
Archibus Training Schedule	3.7.1.2	7 calendar days from Contract award	As required
List of Contractor personnel requiring AOA access	3.7.1.3	7 calendar days from Contract award	As required
Completed AOA Training	3.7.1.3	End of Transition Period	As required
Training Records	3.7.2	5th of each Month	Monthly
Notification of employee departure / return Government property	3.10	Upon employee departure	As required
Health and Safety Plan	4.4.1	30 days of start of full performance	N/A
Initial list of chemicals with SDS	4.2	7 calendar days from Contract award	N/A
Request for approval of new chemical with SDS	4.2	Prior to use	As required
Mishap reports	4.4	Two hours after mishap	As required
Two-way radio submittal	5.1.3	7 calendar days from Contract award	N/A
Evidence of two-way radio de-programming	5.1.3	Prior to final invoice submission	N/A
Report of findings of joint walkthrough of GFP	5.2.2	14 calendar days after walkthrough	As required
Key Inventory	5.2.4	As requested	N/A

Description	PWS Reference	Due By	Recurrence
Quality Control Plan	7.1	10 calendar days from Contract award	
Quality Control Inspections	7.2	each Monday	Weekly
Quality Control Reports	7.3	14 calendar days after each quarter	Quarterly

Should conflicts arise between the above table and Section J, Attachments C-1 PWS, the deliverables in Section J, Attachments C-1 PWS must govern.

F.2 PERIOD OF PERFORMANCE

The Period of Performance (POP) is as follows:

Table F.2.1 – Period of Performance

Period	POP	CLIN(s)
Transition	60 days	1000
Base	12 months	1001-1006
Option 1	12 months	2001-2006
Option 2	12 months	3001-3006
Option 3	12 months	4001-4006
Option 4	12 months	5001-5006
Option 5	12 months	6001-6006
Option 6	12 months	7001-7006

F.3 PLACE OF PERFORMANCE

The Services to be accomplished under this contract will be performed on the WJHTC campus, Atlantic City International Airport, NJ 08405. Specific buildings (FAA and Tenant Organizations) and radius encompassing the Contractor's responsibility are detailed in Attachment C-1 PWS, Attachment I, Section 1 Scope of Work.

F.4 PLACE OF DELIVERY

All deliverables and reports specified in the PWS and Schedule must be submitted under transmittal letter to the attention of the cognizant Contracting Officer's Representative (COR) with a copy to the Contracting Officer (CO) at the following addresses:

Contracting Officer:

FAA-William J. Hughes Technical Center for Advanced Aerospace

Attn: Sarah McCarty

AAQ-650

Atlantic City Int'l Airport NJ 08405

e-mail: sarah.e.mccarty@faa.gov

Phone: 609-485-4582

COR:

FAA-William J. Hughes Technical Center for Advanced Aerospace

Attn: TBD

ANG-E331

Atlantic City Int'l Airport, NJ 08405

e-mail: TBD

Phone: TBD

F.5 WORK HOURS

Contractor Normal Business Hours are specified in Attachment C-1 PWS, Attachment I, Section 3, Paragraph 3.1.3 Hours of Operation. Advanced written approval from both the COR and the CO is required for contractor requests for overtime work on ID/IQ requirements.

F.6 OBSERVANCE OF LEGAL HOLIDAYS AND EXCUSED ABSENCE

Government personnel observe the following listed days as holidays:

Holiday Observed

Date Observed

New Year's Day

January 1st

Martin Luther King Jr's Birthday

3rd Monday in January

Washington's Birthday

3rd Monday in February

Memorial Day

Last Monday in May

Juneteenth Independence Day

June 19th

Independence Day

July 4th

Labor Day

1st Monday in September

Columbus Day

2nd Monday in October

Veteran's Day

November 11th

Thanksgiving Day

4th Thursday in November

Christmas Day

December 25th

When one of the above designated holidays falls on a Sunday, the following Monday will be observed as a legal holiday. When a legal holiday falls on a Saturday, the preceding Friday is observed as a holiday.

In addition to the days designated as holidays, the Government observes the following days:

- Any other day designated by Federal Statute;
- Any other day designated by Executive Order;
- Any other day designated by the President's Proclamation;

- Any other day designed by the Center Director.

It is understood and agreed between the Government and the Contractor that observance of such days by Government personnel will not otherwise be a reason for an additional period of performance. In the event the Contractor's personnel work during the holiday, no form of holiday or other premium compensation will be reimbursed, other than their normal compensation for the time worked or as allowed by the respective Wage Determination.

When the Federal, State, Local and other governmental entities grant excused absence to its employees, assigned Contractor personnel may also be dismissed; however, they will not be directly reimbursed for the excused absence.

SECTION G - CONTRACT ADMINISTRATION DATA

3.1-1 CLAUSES AND PROVISIONS INCORPORATED BY REFERENCE (JUL 2019)

This screening information request (SIR) or contract, as applicable, incorporates by reference the provisions or clauses listed below with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make the full text available, or offerors and contractors may obtain the full text via Internet at:

<https://fast.faa.gov/contractclauses.cfm>.

3.10.1-22 CONTRACTING OFFICER'S REPRESENTATIVE (APR 2012)

G.1 DESIGNATION OF CONTRACTING OFFICER

The Contracting Officer (CO) for this contract is:

Sarah McCarty
FAA-William J. Hughes Technical Center for Advanced Aerospace
AAQ-650
Atlantic City Int'l Airport NJ 08405
e-mail: sarah.e.mccarty@faa.gov
Phone: 609-485-4582

The Contracting Officer assigned to this Contract has responsibility for ensuring the performance of all necessary actions for effective contracting, ensuring compliance with the terms of the Contract, and safeguarding the interests of the United States in its contractual relationships. In this regard, the Contracting Officer is the only individual who has the authority to enter into, administer, or terminate this Contract. In addition, the Contracting Officer is the only person authorized to approve changes to any of the requirements under this Contract, issue Task Orders, and notwithstanding any provision contained elsewhere in this Contract, the said authority remains solely with the Contracting Officer.

No verbal statement by any person, or unwritten statement by anyone other than the Contracting Officer, or his/her authorized representative acting within the scope of his/her authority, shall be interpreted as modifying or otherwise affecting the terms of this solicitation or any resulting contract. It is the responsibility of the Contractor to contact the Contracting Officer immediately if there is even the appearance of any technical direction that is or may be outside the scope of the Contract. Costs incurred that were not authorized by the Contracting Officer and/or work outside the scope of the Contract may be considered unallowable costs and will not be reimbursed by the Government.

G.2 DESIGNATION OF CONTRACTING OFFICER REPRESENTATIVE (COR)

Work to be performed under this contract will be subject to the technical direction of the COR listed below:

FAA-William J. Hughes Technical Center for Advanced Aerospace
Attn: TBD
ANG-E331
Atlantic City Int'l Airport, NJ 08405
e-mail: TBD
Phone: TBD

The Contracting Officer has the overall responsibility of the Contract and resultant Task Orders. The Contracting Officer is authorized to take actions on behalf of the Government to amend, modify, or deviate from the Contract terms, conditions and requirements. The Contracting Officer may delegate certain other responsibilities to his/her authorized representatives or COR or Alternate COR (ACOR, if applicable).

The individual identified above have been appointed as the COR for the overall Contract. Changes to the COR (if applicable) may be made by the Contracting Officer via electronic mail or by modification (changes, directed by electronic mail will be confirmed in the next subsequent modification, as applicable).

The COR has the authority to monitor the technical progress of the services that are to be delivered under Task Orders. This includes visits to the place of performance, meetings and telephone conversations with the contractor personnel, acceptance, or rejection of the contracted items and other duties that may be authorized by the Contracting Officer.

The COR cannot authorize or order cessation of work or delete, change, or waive any of the technical requirements or other terms and conditions of the Contract and/or Task Order. Should the Contractor desire a change (monetary or otherwise) to a Task Order, a written request must be submitted to the Contracting Officer. If appropriate, the change will be incorporated by a contract modification.

Whenever a difference of opinion regarding contractual terms/scope of work between the Contractor and the COR occurs, the Contractor must notify the Contracting Officer immediately.

G.3 INVOICE SUBMISSION

Once a month (but no earlier than the 10th of each month), the Contractor must invoice the FAA for each of the separate CLINs. The Contractor must submit a properly executed invoice in accordance with AMS Clause 3.3.1-40 Electronic Submission of Payment Requests. Invoices must be submitted separately for each Task Order.

The Contractor must submit a properly executed original invoice, identified by the Contract Number and Task Order Number electronically to the Delphi eInvoicing web portal which is accessed and authenticated via www.login.gov.

As stated in Attachment C-1 PWS, Attachment I, Section 3, Paragraph 3.1.5.7.6 Invoicing, the Contractor's Invoice must include the following items:

- Invoices must include contract number, date of invoice submission, contract option year, invoice type (CLIN X001A Program Management-Tech Center, CLIN X006A NS-Tech Center, CLIN X006B NS-ESA, CLIN X004A ODC-Tech Center, CLIN X004C ODC-TSA) and period of performance being invoiced. All invoices must include the appropriate CLIN number from Attachment B-1 COMS Pricing Schedule.
- Invoices must be titled with the Government Fiscal Year as a pre-fix and include the month of the period of performance and the invoice number. Invoice numbering must be sequential for the term of the contract. Example: FY16-FEB-001
- Invoice pages must be numbered "Page ___ of ___".
- Invoice title must be clearly identified on each page of the invoice.
- Other Direct Cost invoices must include vendor invoices and all other applicable supporting information as backup documentation.
- All NS invoices must include approved Contractor NS proposals as backup documentation, attached in numerical order.
- All NS work must have COR approval and funding authorized prior to invoicing.
- The Contractor will only invoice for completed work unless progress payments are authorized by the CO and noted on the approved Contractor NS proposal.
- The Contractor must indicate "P" if the payment invoiced is partial and "F" if the payment invoiced is final for each NS project.
- The Contractor must maintain an invoice log and be able to identify ODC expenditures and non-recurring services paid with invoice numbers. This invoice log must be kept up to date and must be submitted to the COR upon request.
- Separate stand-alone invoices must be submitted, when approved by the CO, for previously adjudicated invoices. The new invoice must clearly identify that the items are being re-invoiced.

G.4 INTERPRETATION OR MODIFICATION

No oral statement of any person, and no written statement of anyone other than the Contracting Officer, may modify or otherwise affect the terms or meaning of the schedule or specifications. All requests for interpretation or modifications must be made in writing to the Contracting Officer. Contractor response to oral contract changes from any source is at Contractors own risk.

G.5 CONTRACTOR'S TRUSTED AGENT

The Contractor must designate a contractor representative who will serve as the Trusted Agent under this contract. The Trusted Agent is the Vendor Applicant Process (VAP) point of contact (POC) who has been empowered by the Contractor to participate in the Personal Identity Verification (PIV) registration and issuance process. They perform the duties such as examination of Form I-9 "Employment Eligibility Verification" documentation, photograph and fingerprinting applicants, and forwarding required security forms to the FAA Office of Personnel Security (AXP). See AMS Clause 3.14-2 Contractor Personnel Suitability Requirements.

Trusted Agent Name and Title:

G.6 ELECTRONIC MAIL (E-MAIL) ADDRESS

The Contractor must establish and maintain electronic mail (e-mail) capability along with the capability to open various electronic attachments in Microsoft, Adobe Acrobat, and other similar formats. Within 10 days after contract award, the Contractor must provide the Contracting Officer at least one e-mail address, which can include a company mailbox with multiple recipients, for electronic communications from the Contracting Officer related to this contract including, but not limited to contract documents, invoice information, request for proposals, and other correspondence. The Contracting Officer may also use e-mail to notify the Contractor of base access conditions when emergency conditions warrant, such as hurricanes, terrorist threats, etc. Multiple e-mail addresses will not be allowed. It is the Contractor's responsibility to make timely distribution of all Contracting Officer initiated e-mails with its own organization, including field office(s) and appropriate subcontractors. The Contractor must promptly notify the Contracting Officer, in writing, of any changes to this e-mail address.

G.7 TASK ORDER CLOSEOUT

The FAA will perform closeout procedures on an individual Task Order basis. The Contractor agrees to perform those internal functions necessary to support this process in a timely manner. Task Order closeout will occur as soon as possible.

G.8 APPROVAL OF SUBCONTRACTORS

The Government will approve subcontractors in making the award of this Contract. If a Contractor proposes to use a subcontractor other than one that has been pre-approved at the Contract level at time of award, the Contractor must obtain written consent from the Contracting Officer and must comply with AMS 3.10.2-1 Subcontracts (Fixed-Price Contracts), AMS 3.10.2-2 Subcontracts (Cost-Reimbursement and Ceiling Priced Contracts), and AMS 3.10.2-3 Subcontracts (Time-and-Materials and Labor-Hour

Contracts). See also Attachment C-1 PWS, Attachment I, Section 3, Paragraph 3.2.1.1.3.3 Subcontractor Services.

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SECTION H - SPECIAL CONTRACT REQUIREMENTS

3.1.9-1 ELECTRONIC COMMERCE AND SIGNATURE (JUL 2020)

(a) The Electronic Signatures in Global and National Commerce Act (E-SIGN) establishes a legal equivalence between:

- (1) Contracts written on paper and contracts in electronic form;
- (2) Pen-and-ink signatures and electronic signatures; and
- (3) Other legally-required written records and the same information in electronic form.

(b) With the submission of an offer, the offeror acknowledges and accepts the utilization of electronic commerce as part of the requirements of this solicitation and the resultant contract.

(c) Certain documents may need to be provided or maintained in original form, such as large-scale drawings impractical to convert to electronic format or a document with a raised seal signifying authenticity. This clause does not change or affect any other requirements that a document must be in paper format to satisfy legal requirements such as for certain real estate transactions.

(d) The use of electronic signature technology is authorized under this solicitation and the resulting contract.

(e) Contractors must not digitally sign any documents with software that uses the Secure Hash Algorithm 1 (SHA-1). All digitally signed documents and contracts sent to the FAA must use a SHA-256 or higher hash algorithm. This is based on the National Institute of Standards and Technology (NIST) Policy Statement on Hash Functions dated August 5, 2015. Further guidance on the use of SHA-256 is in NIST Special Publication (SP) 800-57 Part 1, section 5.6.2 as amended and SP 800-131A, Revision 1 dated November 6, 2015. Additional guidance on the use of SHA-3 is in NIST SP 800-185 as amended.

(f) Contractors do not have to update documents previously digitally signed using SHA-1 hash algorithms unless the document requires updating. The FAA and contractors may continue to use SHA-1 for the following applications: Verifying old digital signatures and time stamps, generating and verifying hash-based message authentication codes (HMACs), key derivation functions (KDFs), and random bit/number generation.

(End of Clause)

3.8.2-17 KEY PERSONNEL AND FACILITIES (JUL 2019)

(a) The personnel and/or facilities as specified below are considered essential to the work being performed hereunder and may, with the consent of the contracting parties, be changed from time to time during the course of the contract.

(b) Prior to removing, replacing, or diverting any of the specified personnel and/or facilities, the Contractor must notify in writing, and receive consent from, the Contracting Officer reasonably in advance of the action and must submit justification (including proposed substitutions) in sufficient detail to permit evaluation of the impact on this contract.

(c) No diversion will be made by the Contractor without the written consent of the Contracting Officer.

(d) The key personnel and/or facilities under this contract are as listed in Section J, Attachment C-1 PWS, Attachment I, Section 2 Personnel, Paragraph 2.3 Key Personnel Requirements:

Table H.1 – Key Personnel

Key Personnel Labor Category	Key Person Name & Title
Contract Manager (CM)	[will be updated at award]
Alternate Contract Manager	
Safety Manager	
Contract Management Team:	
[specific positions/names will be added at time of award; reference SIR Section L.11.1.1.b]	

(End of clause)

3.13-15 CONFIDENTIALITY OF DATA AND INFORMATION (NOV 2016)

(a) In performance of this contract, the contractor and any of its subcontractors, may need access to and use various data and information in the possession of the Government. This data and information may have been obtained under conditions which restrict the Government's right to use and disclose this data and information or which may be adverse to the interests of the Government or other parties if it is disseminated or used in a capacity other than in performance of this contract. Therefore, the contractor and its subcontractors agree to abide by any restrictive use conditions on such data and not to: (1) knowingly disclose such data and information to others without written authorization from the Contracting Officer, unless it is already publically available; or (2) use for any purpose other than the performance of this contract any data or information which bears a restrictive marking or legend which the contractor has gained access to through the performance of

this contract, or information that should be marked according to FAA Order 1600.75 "Protecting Sensitive Unclassified Information (SUI)". For the sole purpose of this clause, "information" means any communication or representation of knowledge such as facts, data, or opinions in any medium or form, including textual, numerical, graphic, cartographic, narrative or visual form.

(b) In the event the work required to be performed under this contract requires access to proprietary data and information of other companies, the contractor must obtain agreement from such other companies for such use unless such data are provided or made available to the contractor by the Government. Two copies of such company- to-company agreements must be furnished promptly to the Contracting Officer for information only. These agreements must prescribe the scope of authorized use and disclosure of the proprietary data and information as well as any other terms and conditions to be agreed upon between the parties thereto. It is agreed by the contractor that any such data or information, whether obtained by the contractor pursuant to the aforesaid agreement or from the Government, must be protected from unauthorized use by or unauthorized disclosure to any individual, corporation, or organization so long as it remains proprietary.

(c) The contractor agrees to conduct formal training to make employees aware of the requirement to maintain confidentiality of data and information as required above. The contractor must obtain from each employee in connection with this contract a signed Non-Disclosure Agreement. This agreement must provide that the employee will not, during employment or anytime thereafter, disclose or use for current or future benefit of any party any of the data (to include any form of Sensitive Unclassified Information (SUI) described in FAA Order 1600.75) or information not publically available received in connection with the work under the contract.

(d) The contractor agrees to hold the Government harmless and indemnify the Government as to any cost/loss resulting from the unauthorized use or disclosure of third party data or software by the contractor, its employees, subcontractors, or agents.

(e) The contractor agrees to include the substance of this clause in all subcontracts awarded under this contract. The Contracting Officer will consider case-by-case exceptions to this requirement for individual subcontracts in the event that: (1) the contractor considers this clause to be inappropriate and unnecessary in the case of a particular subcontract; (2) the contractor provides a written statement affirming absolute unwillingness of a subcontractor to perform, absent some relief from the substance of this prohibition and the reason why; (3) use of an alternate subcontract source would unreasonably detract from the quality of effort; and (4) the contractor provides the Contracting Officer timely written advance notice of these and any other extenuating circumstances.

(f) Except as the Contracting Officer specifically authorizes in writing, upon completion of all work under this contract, the contractor must return all such data and information

described above obtained from the Government, including all copies, modifications, adaptations, or combinations thereof, to the Contracting Officer. Data obtained from another company must be disposed of in accordance with the contractor's agreement with that company, or if the agreement makes no provision for disposition, must be returned to that company. The contractor must further certify in writing to the CO that all copies, modifications, adaptations, or combinations of such data or information which cannot reasonably be returned to the Contracting Officer (or to the appropriate company), have been deleted from the contractor's (and any subcontractor's) records and destroyed. The FAA reserves the right to audit the deletion. The FAA must provide notice of the audit 10 calendar days prior to the audit.

(g) These restrictions do not limit the contractor's (or subcontractor's) right to use and disclose any data and information obtained from another source without restriction.

(End of clause)

H.1 PERSONNEL QUALIFICATIONS

See Attachment C-1 PWS, Attachment I, Section 2 Personnel, Paragraph 2.3 Key Personnel Requirements and Paragraph 2.4 Other Personnel Requirements.

H.2 RELATIONSHIP BETWEEN GOVERNMENT, CONTRACTOR, AND CONTRACTOR PERSONNEL

(a) The Government and the Contractor understand and agree that the services to be delivered under this contract by the contractor to the Government are non-personal services and the parties recognize and agree that no employer-employee relationship or master-servant relationship exists or will exist under the between the Government and the contractor and/or between the Government and the contractor's personnel. The Contractor personnel must be responsible, not to the Government, but solely to the Contractor, who, in turn, must be accountable to the Government.

(b) The Government will not exercise any direct or continuing supervision or control over the contractor personnel performing services under this contract. Contractor personnel must not be placed under the supervision, direction, or evaluation of a Federal officer, manager, or employee in connection with the performance of this contract. Likewise, Contractor personnel must not be placed in a position of command, supervision, administration, or control over FAA William J. Hughes Technical Center civilian personnel, or personnel of other prime contractors, or become an integrated part of the Government organization in connection with performance under this contract, nor shall contractor personnel be used in administration or supervision of FAA procurement activities.

(c) The Contractor must be responsible for selecting personnel who are well qualified to perform the required services, for supervising techniques used in their work and for keeping them informed of all improvements, changes, and methods of operation.

(d) The services to be performed under this contract must not require the Contractor or his/her employees to exercise personal judgement and discretion on behalf of the Government, but rather, the Contractor's employees must act and exercise personal judgment and discretion on behalf of the Contractor.

(e) The Contractor and Contractor personnel must not be considered employees of the Federal Government and must not be eligible, by virtue of performance under this contract, for payment by the Government of entitlement and benefits accorded to federal employees.

H.3 GOVERNMENT FURNISHED ITEMS

Government furnished items provided under this contract are listed in Attachment C-1 PWS, Attachment I, Section 5 Property Management and in Technical Exhibit (TE) I-5-1 Government-Furnished Facilities and TE I-5-2 Government-Furnished Equipment, which are included in Section 5.

NOTE: The Contractor and the COR must conduct a joint inventory during the transition phase, before starting work under the Contract, to determine the exact number and serviceability of Government-Furnished Property (GFP), which consists of Government Furnished Material (GFM) in addition to Government Furnished Facilities (GFF) and Government Furnished Equipment (GFE). The Contractor must subsequently report inventory discrepancies to the COR in accordance with Attachment C-1 PWS, Attachment I, Section 5.

H.4 DISTINCTION BETWEEN SERVICE CONTRACT ACT WORK AND DAVIS-BACON WORK

Pursuant to the Service Contract Labor Standards, previously known as the Service Contract Act, the Government has provided the applicable Wage Determinations in Section J Attachment B-4 and Attachment B-5 and the applicable Collective Bargaining Agreement in Section J Attachment B-6. Pursuant to the Davis-Bacon Act, the Government has provided the applicable Wage Determination in Section J Attachment B-7. The Contractor is fully responsible for compliance with applicable labor laws.

(a) Covered employees performing routine, recurring, preventive, or scheduled maintenance and repair must be paid at wage rates not lower than those prescribed in the Service Contract Labor Standards Wage Determinations incorporated in the contract, except for construction work in which case see (b) below. This work may fall under CLINs X002, X003, X005, and X006.

(b) Covered employees performing construction work, including painting and decorating of a public building or public work (as distinguished from routine, recurring, preventive or scheduled maintenance and repair), equal to or greater than \$2,000, must be paid at wage rates not lower than those prescribed in the Davis-Bacon Act Wage Determination incorporated in the contract. This work may fall under CLIN X003 and X006.

(c) Covered employees performing any work on mobile equipment such as motor vehicle, or on moveable equipment, must be paid at rates not lower than those prescribed in the Service Contract Labor Standards Wage Determinations incorporated in the contract. Stationary equipment such as a large back-up electric generator is a public work and, as such, is subject to the provisions of paragraphs (a) and (b) above.

(d) Covered employees performing any sweeping, spraying for weed control, replacing lights/bulbs and fixtures, and resetting barriers must be paid at wage rates not lower than those prescribed in the Service Contract Labor Standards Wage Determinations incorporated in the contract.

(e) Covered employees performing any cleaning of a building must be accomplished at rates not lower than Service Contract Labor Standards Wage Determinations incorporated in the contract, except that any sandblasting of a building must be paid at wage rates not lower than those prescribed in the Davis-Bacon Act Wage Determination incorporated in the contract.

H.5 COMPETITION REQUIREMENT

Any construction requirements that exceed \$200,000.00 and will not be performed by the prime Contractor must be competed amongst subcontractors. A justification for award of a subcontract must be submitted to the CO for consideration regarding such requirements, and the prime Contractor must not proceed with awarding a subcontract without the permission of the CO. Requirements that require a specific specialized Contractor due to the nature of the work must be submitted to the CO with a justification for approval to waive the requirement for competition.

H.7 SELF-PERFORMANCE

AMS Clause 3.2.2.3-41 Performing Work applies to construction projects performed under the contract. "Performing Work" in terms of AMS Clause 3.2.2.3-41 is determined by the percentage of cost of performing the construction project, not including the cost of materials, with the Contractor's own employees.

H.8 BONDING

Bonding (e.g., AMS Clause 3.4.1-4, 3.4.1-5, etc.) applies to construction work under CLIN X006 that exceeds \$150,000.00.

SECTION I - CONTRACT CLAUSES

3.1-1 CLAUSES AND PROVISIONS INCORPORATED BY REFERENCE (JUL 2019)

This screening information request (SIR) or contract, as applicable, incorporates by reference the provisions or clauses listed below with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make the full text available, or offerors and contractors may obtain the full text via Internet at: <https://fast.faa.gov/contractclauses.cfm>.

3.1.7-2 ORGANIZATIONAL CONFLICTS OF INTEREST (JAN 2023)

3.1.7-5 DISCLOSURE OF CONFLICTS OF INTEREST (JUL 2018)

3.1.8-1 CANCELLATION, RESCISSION AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY (APR 2024)

3.1.8-2 PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY (APR 2024)

3.2.2.3-8 AUDIT AND RECORDS (JUL 2010)

3.2.2.3-25 PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA (APR 2024)

3.2.2.3-27 SUBCONTRACTOR CERTIFIED COST OR PRICING DATA (APR 2024)

3.2.2.3-30 TERMINATION OF DEFINED BENEFIT PENSION PLANS (APR 2023)

3.2.2.3-32 WAIVING FACILITIES CAPITAL COST OF MONEY (JUL 2004)

3.2.2.3-33 ORDER OF PRECEDENCE (APR 2024)

3.2.2.3-36 REVERSING OR ADJUSTING OF PLANS FOR POSTRETIREMENT BENEFITS OTHER THAN PENSIONS (PRB) (APR 2023)

3.2.2.3-42 DIFFERING SITE CONDITIONS (APR 2024)

3.2.2.3-43 SITE INVESTIGATION AND CONDITIONS AFFECTING THE WORK (APR 2024)

3.2.2.3-45 MATERIAL AND WORKMANSHIP (JUL 2024)

3.2.2.3-46 SUPERVISING THE CONTRACT WORK (JUL 2024)

3.2.2.3-47 PERMITS AND RESPONSIBILITIES (JUL 2024)

3.2.2.3-48 OTHER CONTRACTS (JUL 2024)

3.2.2.3-49 PROTECTING EXISTING VEGETATION, STRUCTURES, EQUIPMENT, UTILITIES, AND IMPROVEMENTS (JUL 2024)

3.2.2.3-51 OPERATIONS AND STORAGE AREAS (JUL 2024)

3.2.2.3-52 USE AND POSSESSION BEFORE THE PROJECT IS COMPLETE (JUL 2024)

3.2.2.3-53 CLEANING UP AND ROADWAY MAINTENANCE (JUL 2024)

3.2.2.3-54 PREVENTING ACCIDENTS (JUL 2024)

3.2.2.3-55 AVAILABILITY AND USE OF UTILITY SERVICES (JUL 2024)

3.2.2.3-58 LAYOUT OF WORK (JUL 2024)

3.2.2.3-67 SPECIAL PRECAUTIONS FOR WORK AT OPERATING AIRPORTS (JUL 2024)

3.2.2.3-68 SAFETY AND HEALTH (OCT 2014)

3.2.2.3-69 ALTERNATE I SUBCONTRACTS – CONSTRUCTION (JUL 2024)

3.2.2.3-83 PROHIBITION AGAINST CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS (OCT 2015)

3.2.2.7-6 PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT (APR 2023)

3.2.2.7-8 DISCLOSURE OF TEAM ARRANGEMENTS (APR 2008)

3.2.3-2 COST ACCOUNTING STANDARDS (OCT 2019)

3.2.3-3 DISCLOSURE AND CONSISTENCY OF COST ACCOUNTING PRACTICES (OCT 2019)

3.2.3-5 ADMINISTRATION OF COST ACCOUNTING STANDARDS (OCT 2019)

3.2.4-9 COST CONTRACT - NO FEE (OCT 2019)

3.2.5-1 OFFICIALS NOT TO BENEFIT (OCT 2024)

3.2.5-3 GRATUITIES OR GIFTS (OCT 2024)

3.2.5-4 CONTINGENT FEES (OCT 2024)

3.2.5-5 ANTI-KICKBACK PROCEDURES (OCT 2024)

3.2.5-6 RESTRICTIONS ON SUBCONTRACTOR SALES TO THE FAA (OCT 2024)

3.2.5-7 DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (OCT 2024)

3.2.5-8 WHISTLEBLOWER PROTECTION FOR CONTRACTOR EMPLOYEES (APR 2024)

3.2.5-13 CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT (OCT 2024)

3.2.5-14 DISPLAY OF HOTLINE POSTER(S) (OCT 2024)

3.3.1-1 PAYMENTS (JUL 2018)

3.3.1-5 PAYMENTS UNDER TIME-AND-MATERIALS AND LABOR-HOUR CONTRACTS (OCT 2024)

3.3.1-6 DISCOUNTS FOR PROMPT PAYMENT (JUL 2018)

3.3.1-8 EXTRAS (OCT 2024)

3.3.1-9 INTEREST (APR 2023)

3.3.1-10 AVAILABILITY OF FUNDS (OCT 2024)

3.3.1-14 LIMITATION OF FUNDS (OCT 2024)

3.3.1-15 ASSIGNMENT OF CLAIMS (JUL 2018)

3.3.1-17 PROMPT PAYMENT (OCT 2024)

3.3.1-19 PROMPT PAYMENT FOR CONSTRUCTION CONTRACTS (JAN 2021)

3.3.1-20 PROVIDING ACCELERATED PAYMENT TO SMALL BUSINESS SUBCONTRACTORS (OCT 2012)

3.3.1-34 PAYMENT BY ELECTRONIC FUNDS TRANSFER- SYSTEM FOR AWARD MANAGEMENT (OCT 2024)

3.3.1-39 INCREMENTAL FUNDING - TIME-AND-MATERIALS AND LABOR-HOUR CONTRACTS (OCT 2024)

3.3.2-1 FAA COST PRINCIPLES (OCT 2019)

3.4.1-6 ADDITIONAL BOND SECURITY (APR 1996)

3.4.1-7 NOTICE TO PROCEED (OCT 2019)

3.4.1-10 INSURANCE - WORK ON A GOVERNMENT INSTALLATION (OCT 2020)

3.4.1-11 INSURANCE - LIABILITY TO THIRD PERSONS (OCT 2019)

3.4.1-12 INSURANCE (OCT 2019)

3.4.2-6 TAXES - CONTRACTS PERFORMED IN U.S. POSSESSIONS OR PUERTO RICO (OCT 1996)

3.4.2-8 FEDERAL, STATE, AND LOCAL TAXES - FIXED PRICE CONTRACT (JUL 2019)

3.5-1 AUTHORIZATION AND CONSENT (APR 2023)

3.5-2 NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT (JAN 2009)

3.5-4 PATENT INDEMNITY - CONSTRUCTION CONTRACTS (JAN 2009)

3.5-13 RIGHTS IN DATA – GENERAL (OCT 2014)

3.6.1-4 SMALL BUSINESS SUBCONTRACTING PLAN (INTERIM MAR 2025)

3.6.1-5 PAYMENT TO SMALL BUSINESS SUBCONTRACTORS (OCT 2022)

3.6.1-6 LIQUIDATED DAMAGES - SUBCONTRACTING PLAN (OCT 2022)

3.6.1-15 POST-AWARD SMALL BUSINESS PROGRAM RE-REPRESENTATION (JUL 2023)

3.6.2-1 CONTRACT WORK HOURS AND SAFETY STANDARDS ACT-OVERTIME COMPENSATION (OCT 2018)

3.6.2-2 CONVICT LABOR (APR 1996)

3.6.2-12 EQUAL OPPORTUNITY FOR VETERANS (APR 2022)

3.6.2-13 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (APR 2022)

3.6.2-16 NOTICE TO THE GOVERNMENT OF LABOR DISPUTES (OCT 2018)

3.6.2-18 DAVIS BACON ACT (INTERIM MAR 2025)

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3.10.6-3 ALTERNATE IV TERMINATION (COST-REIMBURSEMENT) (JAN 2015)

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3.1.7-6 DISCLOSURE OF CERTAIN EMPLOYEE RELATIONSHIPS (APR 2023)

(a) The policy of the FAA is to avoid doing business with contractors, subcontractors, and consultants who have a conflict of interest or an appearance of a conflict of interest. The purpose of this policy is to maintain the highest level of integrity within its workforce and to ensure that the award of procurement contracts is based upon fairness and merit.

(b) The contractor must provide to the Contracting Officer the following information with its proposal and must provide an information update within 30 days of the award of a contract, any subcontract, or any consultant agreement, or within 30 days of the retention of a Subject Individual or former FAA employee subject to this clause:

(1) The names of all Subject Individuals who:

- (i) participated in preparation of proposals for award; or
- (ii) are planned to be used during performance; or
- (iii) are used during performance; and

(2) The name of each individual, retained in any capacity by the contractor, who was employed by FAA during the five-year period immediately prior to the date of award; and

(3) The date on which the initial expression of interest in a future financial arrangement was discussed with the contractor by any former FAA employee whose name is required to be provided by the contractor pursuant to subparagraph (2); and

(4) The location where any Subject Individual or former FAA employee whose name is required to be provided by the contractor pursuant to subparagraphs (1) and (2), are expected to be assigned.

(c) "Subject Individual" means a current FAA employee's father, mother, son, daughter, brother, sister, uncle, aunt, first cousin, nephew, niece, husband, wife, father-in-law, mother-in-law, son-in-law, daughter-in-law, brother-in-law, sister-in-law, stepfather, stepmother, stepson, stepdaughter, stepbrother, stepsister, half brother, half sister, spouse of an in-law, or a member of his/her household.

(d) The contractor must incorporate this clause into all subcontracts or consultant agreements awarded under this contract and must further require that each such subcontractor or consultant incorporate this clause into all subcontracts or consultant agreements at any tier awarded under this contract unless the Contracting Officer determines otherwise.

(e) The information as it is submitted, must be certified as being true and correct. If there is no such information, the certification must so state.

(f) Remedies for nondisclosure: The following are possible remedies available to the FAA should a contractor misrepresent or refuse to disclose or misrepresent any information required by this clause:

(1) Termination of the contract.

(2) Exclusion from subsequent FAA contracts.

(3) Other remedial action as may be permitted or provided by law or regulation or policy or by the terms of the contract.

(g) Annual Certification. The contractor must provide annually, based on the anniversary date of contract award, the following certification in writing to the Contracting Officer:

ANNUAL CERTIFICATION OF DISCLOSURE OF CERTAIN EMPLOYEE RELATIONSHIPS

The contractor represents and certifies that to the best of its knowledge and belief that during the prior 12 month period:

[] A former FAA employee(s) or Subject Individual(s) has been retained to work under the contract or subcontract or consultant agreement and complete disclosure has been made in accordance with subparagraph (b) of AMS Clause 3.1.7-6.

[] No former FAA employee(s) or Subject Individual(s) has been retained to work under the contract or subcontract or consultant agreement, and disclosure required by AMS Clause 3.1.7-6 is not applicable.

Authorized Representative

Company Name

Date

(h) The contractor agrees to include the substance of this clause in all subcontracts awarded under this contract. The Contracting Officer will consider case-by-case exceptions to this requirement for individual subcontracts in the event that: (1) the contractor considers this clause to be inappropriate and unnecessary in the case of a particular subcontract; (2) the contractor provides a written statement affirming absolute unwillingness of a subcontractor to perform, absent some relief from the substance of this prohibition and the reason why; (3) use of an alternate subcontract source would unreasonably detract from the quality of effort; and (4) the contractor provides the Contracting Officer timely written advance notice of these and any other extenuating circumstances.

(End of clause)

3.2.1.5-4 CONTINUITY OF SERVICES - MISSION CRITICAL CONTRACTS (JAN 2008)

(a) The contractor recognizes that the supplies and/or services under this contract are critical to FAA and must be continued without interruption during times of National Emergency or Incidents of National Significance. Supplies and/or services to be continued without interruption are:

- Water Treatment Generators
- Electronics and Automated Security Central Utilities Plant
- Elevators
- Fire Protection

(b) National Emergencies or Incidents of National Significance include:

- (1) Outbreak of pandemic influenza or infectious disease;
- (2) Terrorist attack; and
- (3) Natural disaster.

(c) Because the supplies and/or services under this SIR or contract are deemed critical by FAA, the contractor must make every reasonable effort to deliver these supplies and/or services per the contract requirements during times of National Emergency or Incidents of National Significance; however, the presence of this clause does not affect or diminish the Contractor's rights under Default or Termination clauses incorporated into this SIR or contract.

(d) Within 30 days after award, the contractor must submit a Continuity of Contract Performance Plan to the Contracting Officer (CO) for review and acceptance. This plan describes the processes and tools that the contractor will commit to ensure supplies and/or services are delivered as required during times of National Emergency or Incidents of National Significance. This plan must include the following sections:

- (1) Plans and Procedures: Detail the plans and procedures in place that will provide for continued contract performance for supplies and/or services during times of National Emergencies or Incidents of National Significance;
- (2) Essential Functions: Record functions that are essential to the continuation of mission critical contract performance;
- (3) Delegations of Authority, Planned Order of Succession, and Cross-Training: Procedures in place to ensure personnel are available to make key decisions and perform critical services when primary personnel are unavailable;
- (4) Alternate Operating Facilities: When the primary facility is unavailable, detail plans to make available other facilities unaffected by the National Emergency or Incident of National Significance. If contract performance allows, this may include alternatives such as telecommute;
- (5) Interoperable and Effective Communications: Identify alternate communication systems if primary systems are unavailable;
- (6) Critical Records or Data: Identify plans in place to ensure critical records and data are still available to ensure the integrity of contract performance;
- (7) Protection of Human Capital: Identify comprehensive plans to protect the overall health and welfare of the workforce in times of National Emergency or Incidents of National Significance;
- (8) Testing and Training of the Plan: Detail comprehensive testing and training of the plan to improve the execution of contract performance in times of National Emergency or Incidents of National Significance;
- (9) Devolution of Control and Direction: Identify plans and the ability to transfer authority and responsibility of essential functions from the primary location to other sites and employees; and
- (10) Reconstitution and Resuming Normal Operations: Identify procedures and processes to expedite the return of contract performance and operations to their normal state.

(e) The Continuity of Contract Performance Plan must be made available by the contractor to all authorized contractor personnel with a "need-to-know" for review and use during the term of the contract.

(f) The Continuity of Contract Performance Plan must be updated as needed.

(End of Clause)

3.2.2.3-26 Price Reduction for Defective Certified Cost or Pricing Data – Modifications (April 2024)

(a) If any price, including profit or fee, negotiated in connection with any modification under this clause, or any cost reimbursable under this contract, was increased by any significant amount because:

- (1) the Contractor or a subcontractor furnished certified cost or pricing data that were not complete, accurate, and current as certified in its Certificate of Current Cost or Pricing Data (CCCPD);
- (2) a subcontractor or prospective subcontractor furnished the Contractor certified cost or pricing data that were not complete, accurate, and current as certified in the Contractor's CCCPD; or
- (3) any of these parties furnished data of any description that were not accurate, then the price or cost must be reduced accordingly and the contract must be modified to reflect the reduction.

(b) Any reduction in the contract price under paragraph (a) of this clause due to defective data from a prospective subcontractor that was not subsequently awarded the subcontract shall be limited to the amount, plus applicable overhead and profit markup, by which (1) the actual subcontract or (2) the actual cost to the Contractor, if there was no subcontract, was less than the prospective subcontract cost estimate submitted by the Contractor; provided, that the actual subcontract price was not itself affected by defective certified cost or pricing data.

(c)(1) If the Contracting Officer (CO) determines under paragraph (a) of this clause that a price or cost reduction should be made, the Contractor agrees not to raise the following matters as a defense:

- (i) The Contractor or subcontractor was a sole source supplier or otherwise was in a superior bargaining position and thus the price of the contract would not have been modified even if accurate, complete, and current certified cost or pricing data had been submitted.
- (ii) The CO should have known that the certified cost or pricing data in issue were defective even though the Contractor or subcontractor took no affirmative action to bring the character of the defective data to the attention of the CO.
- (iii) The contract was based on an agreement about the total cost of the contract and there was no agreement about the cost of each item procured under the contract.
- (iv) The Contractor or subcontractor did not submit a CCCPD.

(2)(i) Except as prohibited by subdivision (c)(2)(ii) of this clause, an offset in an amount determined appropriate by the CO based upon the facts must be allowed against the amount of a contract price reduction if:

(A) the Contractor certifies to the CO that, to the best of the Contractor's knowledge and belief, the Contractor is entitled to the offset in the amount requested; and

(B) the Contractor proves that the certified cost or pricing data were available before the "as of" date specified on its CCCPD, and that the data were not submitted before such date.

(ii) an offset must not be allowed if:

(A) the understated data were known by the Contractor to be understated before the "as of" date specified on its CCCPD; or

(B) the Government proves that the facts demonstrate that the contract price would not have increased in the amount to be offset even if the available data had been submitted before the "as of" date specified on its CCCPD.

(d) If any reduction in the contract price under this clause reduces the price of items for which payment was made prior to the date of the modification reflecting the price reduction, the Contractor must be liable to and must pay the FAA at the time such overpayment is repaid:

(1) Interest compounded daily, as required by 26 U.S.C. 6622, on the amount of such overpayment to be computed from the date(s) of overpayment to the Contractor to the date the FAA is repaid by the Contractor at the applicable underpayment rate effective for each quarter prescribed by the Secretary of the Treasury under 26 U.S.C.6621(a)(2); and

(2) A penalty equal to the amount of the overpayment, if the Contractor or subcontractor knowingly submitted certified cost or pricing data which were incomplete, inaccurate, or noncurrent.

(End of Clause)

3.2.2.3-28 Subcontractor Certified Cost or Pricing Data – Modifications (April 2024)

(a) Unless the award is based on price competition, catalog or market price, or prices set by law or regulation, before awarding any subcontract, on the date of agreement on price or the date of award, whichever is later; or before pricing any subcontract modification the Contractor must require the subcontractor to submit certified cost or pricing data (actually

or by specific identification in writing), in accordance with the instructions at AMS Guidance T3.2.3.G.1.

(b) The Contractor must require the subcontractor to certify that, to the best of its knowledge and belief, the data submitted under paragraph (a) of this clause were accurate, complete, and current as of the date of agreement on the negotiated price of the subcontract or subcontract modification.

(c) The Contractor must insert the substance of this clause, including this paragraph (c), in each subcontract on the date of agreement on price or the date of award, whichever is later.

(End of clause)

3.2.2.3-37 NOTIFICATION OF OWNERSHIP CHANGES (APR 2023)

(a) The Contractor must notify FAA in writing within 30 days when the Contractor becomes aware that a change in ownership has occurred or will occur and that the change could affect the value of the Contractor's capitalized assets in the accounting records, asset valuations, or cause any other cost changes.

(b) The Contractor must:

- (1) Maintain current, accurate, and complete inventory records of assets and their costs;
- (2) Provide the Contracting Officer (CO) access to the records on request;
- (3) Ensure that all individual and grouped assets, their capitalized values, accumulated depreciation or amortization, and remaining useful lives are identified accurately before and after each of the Contractor's ownership changes; and
- (4) Retain and maintain depreciation and amortization schedules based on the asset records maintained before each ownership change.

(c) The substance of this clause must be included in all subcontracts under this contract.

(End of clause)

3.2.2.3-39 Requirements for Certified Cost or Pricing Data or Data Other Than Certified Cost or Pricing Data - Modifications (Jan 2022)

(a) *Request for exception from certified cost or pricing data requirements.*

(1) In lieu of submitting certified cost or pricing data for modifications under this contract, on the date of the agreement on price or the date of the award, whichever is later, the

Contractor may submit a written request for exception by submitting the information described in paragraphs (a)(1)(i) and (ii) of this clause. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted, and whether the price is fair and reasonable.

(i) *Identification of the law or regulation establishing the price offered.* If the price is controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) *Information on modifications of contracts or subcontracts for commercial items.*

(A) If—

(1) The original contract or subcontract was granted an exception from certified cost or pricing data requirements because the price agreed upon was based on adequate price competition or prices set by law or regulation, or was a contract or subcontract for the acquisition of a commercial item; and

(2) The modification (to the contract or subcontract) is not exempted based on one of these exceptions, then the Contractor may provide information to establish that the modification would not change the contract or subcontract from a contract or subcontract for the acquisition of a commercial item to a contract or subcontract for the acquisition of an item other than a commercial item.

(B) For a commercial item exception, the Contractor must provide, at a minimum, information on prices at which the same item or similar items have previously been sold that is adequate for evaluating the reasonableness of the price of the modification. Dependent upon the commercial items being catalog items, market-priced items, or items included on an active Federal Supply Service Multiple Award Schedule contract, the Contractor must include the corresponding information pursuant to that of which is described in paragraphs (a)(1)(B)(1); (a)(1)(B)(2) or (a)(1)(B)(3) of this clause:

(1) For catalog items, a copy of or identification of the catalog and its date, or the appropriate pages for the offered items, or a statement that the catalog is on file in the buying office to which the proposal is being submitted. Provide a copy or describe current discount policies and price lists (published or unpublished), e.g., wholesale, original equipment manufacturer, or reseller.

Also explain the basis of each offered price and its relationship to the established catalog price, including how the proposed price relates to the price of recent sales in quantities similar to the proposed quantities.

(2) For market-priced items, the source and date or period of the market quotation or other basis for market price, the base amount, and applicable discounts. In addition, describe the nature of the market.

(3) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item.

(2) The Contractor grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this clause, and the reasonableness of price. For items priced using catalog or market prices, or law or regulation, access does not extend to cost or profit information or other data relevant solely to the Contractor's determination of the prices to be offered in the catalog or marketplace.

(b) Requirements for certified cost or pricing data.

If the offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

(1) The offeror must prepare and submit certified cost or pricing data, data other than certified cost or pricing data, and supporting attachments in accordance with the information contained at AMS Guidance T3.2.3.G.1 "Instructions for Submitting Certified Cost/Price Proposals for Supplies, Services, or Construction," which is incorporated by reference with the same force and effect as though it were inserted here in full text. The instructions in AMS T3.2.3.G.1 are incorporated as a mandatory format to be used in this contract.

(2) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the offeror must submit a Certificate of Current Cost or Pricing Data that conforms to the instructions contained in the Appendix G1 to AMS Guidance T3.2.3, 'Cost and Price Methodology.'

(End of clause)

3.2.2.3-41 PERFORMING WORK (APR 2024)

The Contractor must perform, using its own organization, work equivalent to at least 15 percent of the total amount of work under the contract on the site. The CO may modify this contract to reduce this percentage if the Contractor requests a reduction and the CO determines that it would be to the FAA's advantage to do so.

(End of clause)

3.2.2.3-50 Property Protection Alternate I (July 2024)

(a) The Contractor must construct and maintain any temporary fences, gates and other facilities needed to preserve crops, control livestock, and protect property. Before cutting a fence, the Contractor must take necessary precautions to prevent livestock from straying. The Contractor must prevent loss of tension in or damage to adjacent portions of the fence. The Contractor must immediately replace all fencing and gates cut, removed, damaged, or destroyed with new materials to the original standard. Undamaged gates may be reused.

(b) The Contractor must comply with the property owner's requests to leave gates open or closed.

(c) The Contractor must use all necessary precautions to avoid destroying surveying markers such as section corners, witness trees, property corners, mining claim markers, bench markers, triangulation stations, and the like. If the Contractor must destroy any marker, the Contractor must first notify the agency responsible for the marker, as well as the Contracting Officer's (CO) representative, and replace the markers.

(d) The Contractor must use care to prevent unnecessary damage to property in or near the work area caused by the Contractor's work. Unnecessary damage is that which the Contractor can avoid through efficient and careful performance of the work, considering the Contractor's land rights. If the Contractor damages any property, the Contractor must at once notify the owner or custodian and make or arrange to make prompt and full restitution.

(e) Maps and specifications the FAA provides may not give the location of all water supply, drainage, irrigation, and other underground facilities. Before entering a tract of land for contract purposes, the Contractor must determine from the property owner (or other reasonably available source) the location of any irrigation system, domestic water system, source of water, and drainage system existing on the property, whether serving that property or other property. The Contractor must avoid damaging or obstructing these facilities or polluting water supplies.

(f) The Contractor must hold the FAA harmless from any and all suits, actions, and claims for damages, including environmental impairment, to property arising from any of the Contractor's acts or omissions, the Contractor's subcontractors, or any of the Contractor's employees or subcontractor employees, in any way related to the work or operations under this contract.

(g) The Contractor must indemnify and hold harmless the property owners or parties lawfully in possession against all claims or liabilities asserted by third parties, including all governmental agencies, resulting directly or indirectly from the Contractor's wrongful or negligent acts or omissions.

(h) Managing and disposing of hazardous wastes and materials may expose the Contractor and the FAA to short- and long-term liabilities. To reduce these possible liabilities the Contractor must be fully aware of the hazards and regulatory requirements associated with the hazardous materials involved in this project. The Contractor must use qualified personnel to handle and transport hazardous materials.

(i) Before commencing work, the Contractor must:

(1) Do an environmental assessment of the work the contract requires, identifying tasks which involve using, handling or transporting hazardous materials or wastes. The following work items are known to involve such substances:

included but not limited to Section J, Attachment C-1 PWS, Attachment I, Section 4, General Environmental, Health, and Safety; And Section J, Attachment C-2 PWS, Attachment II, Section 13 Environmental Compliance and Waste Disposal

(2) Submit an environmental plan identifying and dealing with each specific task involving the wastes. The plan must be specific enough to demonstrate a thorough understanding of the environmental risks and the appropriate method for dealing with them. The plan must also list the required permits and reference the regulations that govern the activities needed to deal with the materials or wastes.

(3) Meet with the CO's representatives during the preconstruction conference to discuss and to develop a mutual understanding on implementing the plan.

(4) The CO may require other tasks to be added to the plan. If the CO considers the Contractor's planned methods for dealing with the risks insufficient, the CO may require the Contractor to revise the plan. Work involving hazardous materials or wastes must not start until the FAA has approved the plan. The FAA review of the plan does not relieve the Contractor of liability for environmental law and regulatory compliance.

(End of clause)

3.2.2.3-60 Specifications, Drawings, and Material Offers (July 2024)

(a) If either the specifications or the drawings (but not both) mention tasks, the Contractor must assume that the tasks are in both. If the drawings and specifications differ, the specifications govern. If there is a discrepancy in the figures, in the drawings, or in the specifications, the Contractor must submit the matter promptly to the Contracting Officer (CO), who will promptly determine which governs, and notify the Contractor in writing. Any adjustment made by the Contractor without the CO's determination is at the Contractor's own risk and expense. As needed, the CO will provide necessary detailed drawings and other information, unless otherwise provided.

(b) Wherever in the specifications or the drawings, the FAA uses "directed," "required," "ordered," "designated," "prescribed," or similar words, they refer to the CO's requirements. Similarly, "approved," "acceptable," "satisfactory," or similar words refer to the CO's approval, unless otherwise expressly stated. The Contractor must have a complete set of plans and specifications on-site and available for the FAA's use.

(c) Where the FAA uses "as shown," "as indicated," "as detailed," or similar words, they refer to the drawings accompanying this contract, unless stated otherwise. The word "provided" means "provided and installed."

(d) Omissions from the drawings and specifications or the erroneous description of details of work which are necessary to carry out the intent of the drawings and specifications, or which are customarily performed, does not relieve the Contractor from performing those omitted or erroneously described details of the work. The Contractor must perform them as if fully and correctly set forth and described in the drawings and specifications.

(e) The Contractor must check all drawings the FAA provides before starting work and must promptly notify the CO of any discrepancies. In general, the Contractor should follow figures marked on drawings, rather than scale measurements. In general, large-scale drawings have precedence over small-scale drawings. The Contractor must compare all drawings and verify the figures before laying out the work. If the Contractor does not verify the figures, the Contractor will be responsible for any errors that might have been avoided had it verified them.

(f) "Shop drawings" means drawings, the Contractor or any subcontractor submit to the FAA under a construction contract, showing in detail the proposed fabrication and assembly of structural elements and the installation (that is, form, fit, and attachment details) of materials or equipment. It includes drawings, diagrams, layouts, schematics, descriptive literature, illustrations, schedules, performance and test data, and similar

materials the Contractor provided to explain in detail specific portions of the work the contract requires.

The FAA may duplicate, use, and disclose in any manner and for any purpose shop drawings you deliver under this contract.

(g) If this contract requires material offers (for example, shop drawings, catalog cuts, certificates of conformance), the Contractor must coordinate all of its offers, and review them for accuracy, completeness, and compliance with contract requirements. The Contractor must provide evidence that it approves the submittals. If the Contractor submits materials to the FAA without this evidence, the FAA may return them and ask the Contractor to resubmit the materials. The CO will indicate whether he or she approves or disapproves the offer, and if the CO does not approve it as submitted, will indicate the reasons for rejecting it. Any work done before the CO's approval is at the Contractor's risk. The CO's approval does not relieve the Contractor from responsibility for any errors or omissions in the submittals, nor from responsibility for complying with the contract requirements, except as described under (h).

(h) If the submittals vary from the contract requirements, the Contractor must describe the variations in writing, separate from the submittal, when it submits them. Send this description, a copy of the offer, and a proposal to incorporate it into the contract directly to the CO. If the CO approves a variation, the CO must issue an appropriate contract modification, unless the variation is minor or does not involve a change in price or in time of performance.

(i) The Contractor must submit to the CO for approval four copies (unless otherwise indicated) of all shop drawings as called for under the various headings of these specifications. The CO will keep three sets (unless otherwise indicated) of all offers and will return one set to the Contractor.

(j) The Contractor must insert this clause, with appropriate changes in the designation of the parties, in all subcontracts.

(End of clause)

3.2.2.3-68 SAFETY AND HEALTH (OCT 2014) - ALTERNATE I (JUL 2004)

(a) Before beginning work, the Contractor (you) must:

(1) Perform a hazards analysis of the work specified in this contract. Consider both the site and adjacent conditions. Identify all significant hazards. Some of the hazards you

might encounter are included but not limited to Section J, Attachment C-1 PWS, Attachment I, Section 4, General Environmental, Health, and Safety; And Section J, Attachment C-2 PWS, Attachment II, Section 13 Environmental Compliance and Waste Disposal.

(2) Submit a safety plan for dealing with each specific hazard identified, whether you or FAA identified it.

(3) Meet with the CO's representatives during the preconstruction conference to discuss and to develop a mutual understanding about the content and implementation of the plan.

(4) The CO or her or his representatives may require other hazards to be added to the plan. If the CO determines that your planned hazard avoidance measures are insufficient, the CO or a designated representative may require you to revise the plan. You may not begin work involving identified hazards unless you have submitted adequate plans to the CO and the CO has reviewed them. This approval does not relieve you of your liability for safe performance.

(End of clause)

3.2.4-5 Allowable Cost and Payment (October 2019)

(a) Invoicing. The Government will make payments to the Contractor when requested as work progresses, but (except for small business concerns) not more often than once every 2 weeks, in amounts determined to be allowable by the Contracting Officer in accordance with the Federal Aviation Administration's (FAA) "Contract Cost Principles" in effect on the date of this contract and the terms of this contract (upon request, the Contracting Officer will provide a copy of the FAA Contract Cost Principles). The Contractor may submit to an authorized representative of the Contracting Officer, in such form and reasonable detail as the representative may require, an invoice or voucher supported by a statement of the claimed allowable cost for performing this contract. Any payments for costs under this contract, particularly for costs of Indirect Rates under paragraph (d), must be subject to the provisions of the "Limitation of Costs" clause, or the "Limitation of Funds" clause, if applicable. The Contractor must be responsible to manage and control the allowable cost of performance of the contract, such that payments for any allowable costs, including Indirect Rates under paragraph (d), must not exceed the estimated cost set forth in the schedule, or the funded amount, less an allowance for fee, if the contract is incrementally funded.

(b) Reimbursing costs.

(1) For the purpose of reimbursing allowable costs (except as provided in subparagraph (2) below, with respect to pension, deferred profit sharing, and employee stock ownership plan contributions), the term costs includes only:

(i) Those costs the Contractor has incurred and recorded at the time of the request for reimbursement;

(ii) When the Contractor is not delinquent in paying costs of contract performance in the ordinary course of business, costs incurred, but not necessarily paid for-

(A) Materials issued from the Contractor's inventory and placed in the production process for use on the contract;

(B) Direct labor;

(C) Direct travel;

(D) Other direct in-house costs; and

(E) Properly allocable and allowable indirect costs, as shown in the records maintained by the Contractor for purposes of obtaining reimbursement under FAA contracts; and

(iii) The amount of payments that have been paid to the Contractor's subcontractors under similar cost standards.

(2) Contractor contributions to any pension or other post-retirement benefit, profit-sharing or employee stock ownership plan funds that are paid quarterly or more often may be included in indirect costs for payment purposes: Provided, that the Contractor pays the contribution to the fund within 30 days after the close of the period covered. Payments made 31 days or more after the close of a period must not be included until the Contractor actually makes the payment. Accrued costs for such contributions that are paid less often than quarterly must be excluded from indirect costs for payment purposes until the Contractor actually makes the payment.

(3) Notwithstanding the audit and adjustment of invoices or vouchers under paragraph (g) below, allowable indirect costs under this contract must be obtained by applying indirect cost rates established in accordance with paragraph (d) below.

(4) Any statements in specifications or other documents incorporated in this contract by reference designating performance of services or furnishing of materials at the Contractor's expense or at no cost to the Government will be disregarded for purposes of cost-reimbursement under this clause.

(c) Small business concerns. A small business concern may be paid more often than every 2 weeks and may invoice and be paid for recorded costs for items or services purchased directly for the contract, even though the concern has not yet paid for those items or services.

(d) Final indirect cost rates.

(1) Final annual indirect cost rates and the appropriate bases must be established for the period covered by the indirect cost rate proposal.

(2) The Contractor must, within 180 days after the expiration of each of its fiscal years, or by a later date approved by the Contracting Officer, submit to the cognizant Contracting Officer and to the cognizant audit activity proposed certified final indirect cost rates for that period and supporting cost data specifying the contract and/or subcontract to which the rates apply. The proposed rates must be based on the Contractor's actual cost experience for that period. The appropriate Government representative and Contractor will establish the final indirect cost rates as promptly as practical after receipt of the Contractor's proposal.

(i) An adequate indirect cost rate proposal must include the following data unless otherwise specified by the cognizant Contracting Officer:

(A) Summary of all claimed indirect expense rates, including pool, base, and calculated indirect rate.

(B) General and Administrative expenses (final indirect cost pool). Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts).

(C) Overhead expenses (final indirect cost pool). Schedule claimed expenses by element of cost as identified in accounting records (Chart of Accounts) for each final indirect cost pool.

(D) Occupancy expenses (intermediate indirect cost pool). Schedule of claimed expenses by element of cost as identified in accounting records (Charts of Accounts) and expense reallocation to final indirect cost pools.

(E) Claimed allocation bases, by element of cost, used to distribute indirect costs.

(F) Facilities capital cost of money factors computation.

(G) Reconciliation of books of account (i.e., General Ledger) and claimed direct costs by major cost elements.

(H) Schedule of direct costs by contract and subcontract and indirect expense applied at claimed rates, as well as a subsidiary schedule of Government participation percentages in each of the allocation base amounts.

(I) Schedule of cumulative direct and indirect costs claimed and billed by contract and subcontract.

(J) Subcontract information. Listing of subcontracts awarded to companies for which the contractor is the prime or upper-tier contractor (include prime and subcontract numbers; subcontract value and award type; amount claimed during the fiscal year; and the subcontractor name, address, and point of contract information).

(K) Summary of each time-and-materials and labor-hour contract information, including labor categories, labor rates, hours, and amounts; direct materials; other direct costs; and, indirect expense applied at claimed rates.

(L) Reconciliation of total payroll per IRS form 941 to total labor costs distribution.

(M) Listing of decisions/agreements/approvals and description of accounting/organizational changes.

(N) Certificate of final indirect cost.

(O) Contract closing information for contracts physically completed in this fiscal year (include contract number, period of performance, contract ceiling amounts, contract fee computations, level of effort, and indicate if the contract is ready to close).

(3) The Contractor and the appropriate Government representative will execute a written understanding setting forth the final indirect cost rates. The understanding will specify (i) the agreed-upon final annual indirect cost rates, (ii) the bases to which the rates apply, (iii) the periods for which the rates apply, (iv) any specific indirect cost items treated as direct costs in the settlement, and (v) the affected contract and/or subcontract, identifying any with advance agreements or special terms and the applicable rates. The understanding will not change any monetary ceiling, contract obligation, or specific cost allowance or disallowance provided for in this contract. The understanding is incorporated into this contract upon execution.

(4) After final annual direct cost rates are established for specific period, the contractor must update the billings on all contracts to reflect the final settled rates and update the schedule of cumulative direct and indirect costs claimed and billed as required by paragraph d(2)(i)(l) of this clause.

(5) Failure by the parties to agree on a final annual indirect cost rate may be the basis of a claim under the "Contract Disputes" clause.

(e) Billing rates. Until final annual indirect cost rates are established for any period, the Government will reimburse the Contractor at billing rates established by the Contracting Officer or by an authorized representative (the cognizant auditor), subject to adjustment when the final rates are established. These billing rates-

(1) Must be the anticipated final rates; and

(2) May be prospectively or retroactively revised by mutual agreement, at either party's request, to prevent substantial overpayment or underpayment.

(f) Quick-close-out procedures. When the Contractor and Contracting Officer agree, the quick-close-out procedures may be used.

(1) Procedures. Settlement of indirect cost rates must apply to this contract, in advance of the determination of final indirect cost rates, if:

(i) The contract is physically complete;

(ii) The amount of unsettled indirect cost to be allocated to this contract is not more than \$5,000,000 and the cumulative unsettled indirect costs to be allocated to one or more contracts in a single fiscal year do not exceed 15 percent of the estimated, total unsettled indirect costs allocable to cost-type contracts for that fiscal year; and

(iii) Agreement can be reached on a reasonable estimate of allocable dollars.

(2) The settlement must be final for this contract and no adjustment will be made to other contracts for over- or under-recoveries of costs allocated or allocable to this contract.

(3) The settlement will not be considered a binding precedent when establishing the final indirect costs for other contracts.

(4) These procedures may also be used for the settlement of direct and indirect costs for individual task and delivery orders.

(g) Audit. At any time or times before final payment, the Contracting Officer may have the Contractor's invoices or vouchers and statements of cost audited. Any payment may be (1) reduced by amounts found by the Contracting Officer not to constitute allowable costs or (2) adjusted for prior overpayments or underpayments.

(h) Final payment.

(1) The Contractor must submit a completion invoice or voucher, designated as such, promptly upon completion of the work, but no later than 120 days (or longer, as the Contracting Officer may approve in writing) after settlement of final annual indirect rates for all years. Upon approval of that invoice or voucher, and upon the Contractor's compliance with all terms of this contract, the Government will promptly pay any balance of allowable costs and that part of the fee (if any) not previously paid.

(2) The Contractor must pay to the Government any refunds, rebates, credits, or other amounts (including interest, if any) accruing to or received by the Contractor or any assignee under this contract, to the extent that those amounts are properly allocable to costs for which the Contractor has been reimbursed by the Government. Reasonable expenses incurred by the Contractor for securing refunds, rebates, credits, or other amounts will be allowable costs if approved by the Contracting Officer. Before final payment under this contract, the Contractor and each assignee whose assignment is in effect at the time of final payment must execute and deliver-

(i) An assignment to the Government, in form and substance satisfactory to the Contracting Officer, of refunds, rebates, credits, or other amounts (including interest, if any) properly allocable to costs for which the Contractor has been reimbursed by the Government under this contract; and

(ii) A release discharging the Government, its officers, agents, and employees from all liabilities, obligations, and claims arising out of or under this contract, except-

(A) Specified claims stated in exact amounts, or in estimated amounts when the exact amounts are not known;

(B) Claims (including reasonable incidental expenses) based upon liabilities of the Contractor to third parties arising out of the performance of this contract; provided, that the claims are not known to the Contractor on the date of the execution of the release, and that the Contractor gives notice of the claims in writing to the Contracting Officer within 6 years following the release date or notice of final payment date, whichever is earlier; and

(C) Claims for reimbursement of costs, including reasonable incidental expenses, incurred by the Contractor under the patent clauses of this contract, excluding, however, any expenses arising from the Contractor's indemnification of the Government against patent liability.

(End of clause)

3.2.4-16 ORDERING (OCT 2024)

(a) Any supplies and services to be furnished under this contract must be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the contract. Such orders may be issued from date of contract award through 86 months after contract award.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of a conflict between a delivery order or task order and this contract, the contract must control.

(c) If mailed, a delivery order or task order is considered "issued" when the FAA deposits the order in the mail. Orders issued by facsimile, email or other electronic commerce methods are considered "issued" when the FAA sends the order. Orders may be issued orally only if authorized in the contract.

(End of clause)

3.2.4-17 Order Limitations (October 2019)

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than \$1,000.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor-

(1) Any order for a single item in excess of the contract maximum;

(2) Any order for a combination of items in excess of the contract maximum; or

(3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in subparagraph (1) or (2) above.

(c) If this is a requirements contract, the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) above.

(d) Notwithstanding paragraphs (b) and (c) above, the Contractor must honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 14 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

3.2.4-20 INDEFINITE QUANTITY (OCT 2019)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance must be made only as authorized by orders issued in accordance with the "Ordering" clause. The Contractor must furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the maximum. The Government will order at least the quantity of supplies or services designated in the Schedule as the minimum.

(c) Except for any limitations on quantities in the "Order Limitations" clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period must be completed by the Contractor within the time specified in the order. The contract must govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor must not be required to make any deliveries under this contract after 92 months after award.

(End of clause)

3.2.4-34 OPTION TO EXTEND SERVICES (OCT 2019)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder must not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within the period specified in the Schedule.

(End of clause)

3.2.4-35 OPTION TO EXTEND THE TERM OF THE CONTRACT (JUL 2021)

(a) The Government may extend the term of this contract by written notice (contract modification) to the Contractor prior to the expiration of the current period of performance provided, that the Government will give the Contractor a preliminary written notice of its

intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract must be considered to include this option provision.

(c) The total duration of this contract, including the exercise of any options under this clause, must not exceed 8 (months) 7 (years).

(End of clause)

3.3.1-2 Payments under Fixed-Price Construction Contracts (October 2024)

(a) The FAA will pay the Contractor the contract price as provided in this contract.

(b) The FAA will make financing payments monthly as the work proceeds, or at more frequent intervals as determined by the Contracting Officer (CO), on estimates of work accomplished that meets the standards of quality established under the contract, as approved by the CO. The Contractor must furnish a breakdown of the total contract price showing the amount included therein for each principal category of the work, which must substantiate the payment amount requested in order to provide a basis for determining financing payments, in such detail as requested by the CO. In the preparation of estimates, the CO may authorize material delivered on the site and preparatory work done to be taken into consideration. Material delivered to the Contractor at locations other than the site may also be taken into consideration if --

(1) Consideration is specifically authorized by this contract; and

(2) The Contractor furnishes satisfactory evidence that it has acquired title to such material and that the material will be used to perform this contract.

(c) Along with each request for financing payments, the contractor must furnish the following certification, or payment will not be made:

I hereby certify, to the best of my knowledge and belief, that-

(1) The amounts requested are only for performance in accordance with the specifications, terms, and conditions of the contract;

(2) Payments to subcontractors and suppliers have been made from previous payments received under the contract, and timely payments will be made from the proceeds of the payment covered by this certification, in accordance with subcontract agreements and the requirements of chapter 39 of Title 31, United States Code; and

(3) This request for financing payments does not include any amounts that the prime contractor intends to withhold or retain from a subcontractor or supplier in accordance with the terms and conditions of the subcontract.

(Name)

(Title)

(Date)

(d) If the Contractor, after making a certified request for financing payments, discovers that a portion or all of such request constitutes a payment for performance by the Contractor that fails to conform to the specifications, terms, and conditions of this contract (hereinafter referred to as the unearned amount), the Contractor must-

(1) Notify the CO of such performance deficiency;

(2) Be obligated to pay the FAA an amount (computed by the CO in the manner provided in "Interest" clause) equal to interest on the unearned amount from the date of receipt of the unearned amount until-

(i) The date the Contractor notifies the CO that the performance deficiency has been corrected; or

(ii) The date the Contractor reduces the amount of any subsequent certified request for financing payments by an amount equal to the unearned amount.

(e) If the CO finds that satisfactory progress was achieved during any period for which a progress payment is to be made, the CO will authorize payment to be made in full. However, if satisfactory progress has not been made, the CO may retain a maximum of 10 percent of the amount of the payment until satisfactory progress is achieved. When the work is substantially complete, the CO may retain from previously withheld funds and future financing payments that amount the CO considers adequate for protection of the FAA and will release to the Contractor all the remaining withheld funds. Also, on completion and acceptance of each separate building, public work, or other division of the contract, for which the price is stated separately in the contract, payment will be made for the completed work without retention of a percentage.

(f) All material and work covered by financing payments made will, at the time of payment, become the sole property of the FAA, but this will not be construed as--

(1) Relieving the Contractor from the sole responsibility for all material and work upon which payments have been made or the restoration of any damaged work; or

(2) Waiving the right of the FAA to require the fulfillment of all the terms of the contract.

(g) In making these financing payments, the FAA will, upon request, reimburse the Contractor for the amount of premiums paid for performance and payment bonds (including coinsurance and reinsurance agreements, when applicable) after the Contractor has furnished evidence of full payment to the surety. The retainage provisions in paragraph (e) above will not apply to that portion of financing payments attributable to bond premiums.

(h) The FAA will pay the amount due the Contractor under this contract after-

(1) Completion and acceptance of all work;

(2) Presentation of a properly executed voucher; and

(3) Presentation of release of all claims against the FAA arising by virtue of this contract, other than claims, in stated amounts, that the Contractor has specifically excepted from the operation of the release. A release may also be required of the assignee if the Contractor's claim to amounts payable under this contract has been assigned.

(i) Notwithstanding any provision of this contract, financing payments will not exceed 80 percent on work accomplished on undefinitized contract actions. A contract action is any action resulting in a contract, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the "Changes" clause, or funding and other administrative changes.

(End of clause)

3.3.1-33 SYSTEM FOR AWARD MANAGEMENT (JAN 2024)

(a) Definitions. As used in this clause

"Registered in the SAM database" means that the Contractor has entered all mandatory information, including the Unique Identity Identifier (UEI) or the Electronic Funds Transfer indicator, into the SAM database.

"System for Award Management (SAM) database" means the primary Government repository for Contractor information required for the conduct of business with the Government.

"Unique Entity Identifier (UEI)" (also known as the Unique Entity ID) means a number or other identifier used to identify a specific commercial, nonprofit, or Government entity. See www.sam.gov for the designated entity for establishing unique entity identifiers.

"Electronic Funds Transfer indicator" means a 4-character suffix to the Unique Entity Identifier. This 4-character suffix may be assigned at the discretion of the business concern to establish additional SAM records for identifying alternative Electronic Funds Transfer (EFT) accounts for the same parent concern.

(b)(1) By submission of an offer, the offeror acknowledges the requirement that a prospective awardee must be registered in the SAM database prior to award, during performance, and through final payment of any contract, basic agreement, basic ordering agreement, or blanket purchasing agreement resulting from this solicitation.

(2) The offeror must enter, in Representations, Certifications and Other Statements of Offerors Section of the solicitation, the UEI or EFT indicator that identifies the offeror's name and address exactly as stated in the offer. The UEI will be used by the Contracting Officer to verify that the offeror is registered in the SAM database.

(c) If the offeror does not have a UEI, it should contact www.sam.gov directly to obtain one. The offeror should be prepared to provide the following information:

- (1) Company legal business name.
- (2) Tradestyle, doing business, or other name by which your entity is commonly recognized.
- (3) Company Physical Street Address, City, State, and ZIP Code.
- (4) Company Mailing Address, City, State and ZIP Code (if different from physical street address).
- (5) Company Telephone Number.
- (6) Date the company was started.
- (7) Number of employees at your location.
- (8) Chief executive officer/key manager.
- (9) Line of business (industry).
- (10) Company Headquarters name and address (reporting relationship within your entity).

(d) If the offeror does not become registered in the SAM database in the time prescribed by the Contracting Officer, the Contracting Officer may proceed to award to the next otherwise successful registered offeror.

(e) Processing time should be taken into consideration when registering. Offerors who are not registered should consider applying for registration immediately upon receipt of this solicitation.

(f) The Contractor is responsible for the accuracy and completeness of the data within the SAM database, and for any liability resulting from the Government's reliance on inaccurate

or incomplete data. To remain registered in the SAM database after the initial registration, the Contractor is required to review and update on an annual basis from the date of initial registration or subsequent updates its information in the SAM database to ensure it is current, accurate and complete. Updating information in SAM does not alter the terms and conditions of this contract and is not a substitute for a properly executed contractual document. If registered in SAM as a Service-Disabled Veteran- Owned Small Business (SDVOSB), by submission of an offer, the offeror acknowledges that they are certified as an SDVOSB under the Small Business Administration's Veteran Small Business Certification Program (VetCert).

(g)(1)(i) If a Contractor has legally changed its business name, "doing business as" name, or division name (whichever is shown on the contract), or has transferred the assets used in performing the contract, but has not completed the necessary requirements regarding novation and change-of-name agreements in AMS Procurement Guidance, the Contractor must provide the responsible Contracting Officer a minimum of one business day's written notification of its intention to:

(A) Change the name in the SAM database;

(B) Comply with the requirements of AMS regarding novation and change-of-name agreements; and

(C) Agree in writing to the timeline and procedures specified by the responsible Contracting Officer. The Contractor must provide the Contracting Officer with the notification, sufficient documentation to support the legally changed name.

(ii) If the Contractor fails to comply with the requirements of paragraph (g)(1)(i) of this clause, or fails to perform the agreement at paragraph (g)(1)(i)(C) of this clause, and, in the absence of a properly executed novation or change-of-name agreement, the SAM information that shows the Contractor to be other than the Contractor indicated in the contract will be considered to be incorrect information within the meaning of the "Suspension of Payment" paragraph of the electronic funds transfer (EFT) clause of this contract.

(2) The Contractor must not change the name or address for EFT payments or manual payments, as appropriate, in the SAM record to reflect an assignee for the purpose of assignment of claims. Assignees must be separately registered in the SAM database. Information provided to the Contractor's SAM record that indicates payments, including those made by EFT, to an ultimate recipient other than that Contractor will be considered to be incorrect information within the meaning of the "Suspension of payment" paragraph of the EFT clause of this contract.

(h) Offerors and Contractors may obtain information on registration and annual confirmation requirements via the internet at <http://www.sam.gov>.

(End of Clause)

3.3.1-36 AVAILABILITY OF FUNDS - OPTION PERIODS UNDER A CONTINUING RESOLUTION (OCT 2024)

Due to the possibility of the enactment of a continuing resolution in lieu of an annual appropriation, full fiscal year funding may not be available for an entire contract option period. In the event of a continuing resolution, FAA will only be liable for an amount based on the time period specified by the continuing resolution. The amount of funds made available by the continuing resolution will be specified by subsequent modification. If the contractor provides services in excess of the funded amount or beyond the covered period, the contractor does so at its own risk.

(End of Clause)

3.3.1-37 LIMITATION ON GOVERNMENT'S OBLIGATION (JUL 2018)

(a) Of the total price of contract line item number(s) (CLINs) X001, X002, X003, X004, X005, and X006, \$AMOUNT TO BE DETERMINED AT TASK ORDER LEVEL is presently available for payment and allocated to these CLINs.

(b) The Contractor agrees to perform on these CLINs up to the point at which, in the event of termination of this contract pursuant to the applicable "Termination for Convenience of the Government" clause, the total amount payable by the Government (including amounts payable in respect of subcontracts and settlement costs,) pursuant to paragraph (c) below, would in the exercise of reasonable judgment by the Contractor approximate the total amount currently allotted to the contract. The Contractor is not authorized to continue work on these CLINs beyond this point. The Government is not obligated to reimburse the Contractor in excess of the amount from time to time allotted to the contract, regardless of anything to the contrary in "Termination for Convenience of the Government."

(c) Funds presently allotted to this contract are estimated to cover the work to be performed until DATE TBD AT TASK ORDER LEVEL. If funds allotted are considered by the Contractor to be inadequate to cover the work to be performed until this date, or an agreed substitute date, the Contractor must notify the Contracting Office in writing when within the next 30 days the work will reach a point at which, in the event of termination of this contract pursuant to "Termination for Convenience of the Government," the total amount payable by the Government pursuant to paragraph (e) below, will approximate 85 percent of the total amount then allotted to the contract. The notice must state the estimated date when this point will be reached and the estimated amount of additional funds required to continue performance to the above or an agreed substitute date. The Contractor must, 30 days prior to the date above written or agreed substitute date, advise the Contracting Officer in writing as to the estimated amount of additional funds which will be required for the timely performance of the CLINs for a further period as may be specified in this clause or otherwise agreed to by the parties. If after this notification, additional funds are not allotted by the date above written or by an agreed substitute date, the Contracting Officer

will, upon written request of the Contractor, terminate this contract on such date or the date set forth in the request, whichever is later, pursuant to "Termination for Convenience of the Government."

(d) When additional funds are allotted for continued performance of the CLINs, the parties will agree on the applicable period of contract performance that will be covered by such funds. Paragraphs (b) and (c) above apply to the additional allotted funds and agreed substituted date and the contract will be modified accordingly.

(e) If the Contractor incurs additional costs, or is delayed in the performance of the work under this contract, solely by the reason of the failure of the Government to allot additional funds in amounts sufficient for the timely performance of this contract, and if additional funds are allotted, an equitable adjustment will be made in the price or prices (including appropriate target, billing, and ceiling prices where applicable) of the CLINs, in the time of delivery, or in both. Failure to agree to any such equitable adjustment hereunder will be a dispute concerning a question of fact within the meaning of the "Contract Disputes" Clause.

(f) The Government may at any time prior to termination, and with the consent of the Contractor, after notice of termination, allot additional funds for this contract.

(g) The provisions of this clause with respect to termination will in no way be deemed to limit the rights of the Government under the applicable AMS "Default" clause. The provisions of this clause are limited to the work on and allotment of funds for the CLIN(s) in paragraph (a) above. This clause no longer applies upon the allotment of funds for the total price of the CLINs except for rights and obligations existing under this clause.

(h) Nothing in this clause will affect the right of the Government to terminate this contract pursuant to "Termination for Convenience of the Government." In the event of a conflict between this clause and any other term or condition of this contract, this clause will take precedence.

(End of clause)

3.3.1-40 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (OCT 2024)

(a) Definitions. As used in this clause-

(1) "Contract financing" is a contractual authorization for payments to a contractor prior to acceptance of products or services by FAA.

(2) "Payment request" means a bill, voucher, invoice, or request for contract financing payment or invoice payment with associated supporting documentation. The payment request must comply with the requirements identified in this clause and the applicable Payment clause and invoicing requirements included in this contract.

(3) "Electronic form" means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests.

(4) "Invoice payment" means a Government disbursement of monies to a contractor under a contract or other authorization for supplies or services accepted by the Government. This includes payments for partial deliveries that have been accepted by the Government, final payments under T&M and labor-hour contracts, and final cost or fee payments where amounts owed have been settled between the Government and the contractor.

(b) Electronic payment requests. Except as provided in paragraph (f) of this clause, the Contractor must submit payment requests in electronic form. Purchases paid with a Government purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) The Federal Aviation Administration utilizes the Delphi eInvoicing web-portal for processing invoices. Contractors submitting invoices are required to submit invoices via the Delphi eInvoicing web portal which is accessed and authenticated via www.login.gov

(d) In order to receive payment and in accordance with prompt payment standards, the Contractor must submit a proper invoice. All invoices submitted as attachments in the Delphi eInvoicing web-portal must contain the following:

- (1) Invoice number and invoice date.
- (2) Period of performance covered by invoice.
- (3) Contract number and title.
- (4) Task/Delivery Order number and title (if applicable).
- (5) Amount billed (by CLIN), current and cumulative.
- (6) Total (\$) of billing.
- (7) Cumulative total billed for all contract work to date.
- (8) Name, title, phone number, mailing address, and email address (if available) of person to be contacted in the event of a defective invoice.

If the contract includes allowances for travel, all invoices that include charges pertaining to travel expenses must catalog a breakdown of reimbursable expenses with the appropriate receipts to substantiate the travel expenses.

(e) Payment system registration. Each person accessing the Delphi eInvoicing web-portal will be required to have a unique user Delphi eInvoicing ID and password and be credentialed through login.gov.

(1) Electronic authentication. See www.login.gov for instructions. Click on the following link for instructions on establishing a login.gov account: <https://login.gov/help/creating-an-account/how-do-i-create-an-account-with-logingov/>.

- (2) To create a login.gov account, the user will need a valid email address and a working phone number. The user will create a password and then login.gov will reply with an email confirming the email address.
- (3) DELPHI registration instructions. New users should request access to Delphi eInvoicing by sending an email to 9-AMC-FAA-iSupplier@faa.gov. Once access is granted, users should navigate to <http://einvoice.esc.gov> to activate the account. Users are required to log in every 45 days to keep it active.
- (4) Training on DELPHI. To facilitate use of DELPHI, comprehensive user information is available at <http://einvoice.esc.gov>
- (5) Account Management. Contractors must contact the DELPHI Help Desk when their firm's points of contact will no longer be submitting invoices so they can be removed from the system. Instructions for contacting the DELPHI Help D can be found at <http://einvoice.esc.gov>
- (f) Waivers: If the Contractor does not believe electronic invoicing can be used if they are awarded this contract, the Contractor must respond accordingly to AMS clause 3.3.1-41 Electronic Invoicing-Representation. Waiver requests must be approved by the FAA and DOT and will be processed expeditiously upon contract award. If the waiver request is not approved, the Contractor must use electronic invoicing consistent with this clause. If the waiver request is approved, conversion to electronic invoicing at a later date may be required. While the waiver is in effect, the current invoicing process must be used per AMS Guidance T3.3.1A.14 and the terms of the contract. The decision regarding a waiver request is not subject to AMS clause 3.9.1-1 Contract Disputes.

3.4.1-1 Proposal Guarantee (January 2017)

- (a) Offerors must furnish a proposal guarantee in the form of a proposal bond, a postal money order, a certified or cashier's check, an irrevocable letter of credit, or United States bonds or notes with a maturity of less than five years.
- (b) The required amount of the proposal guarantee is TO BE DETERMINED BASED ON THE NON-RECURRING SERVICES WORK WHERE APPLICABLE.
- (c) The Contracting Officer will return proposal guarantees, other than proposal bonds:
- (1) To unsuccessful offerors as soon as possible after an award decision is made; and
 - (2) To the successful offeror after it signs the contract and submits acceptable bonds required under the contract.
- (d) If the successful offeror fails to sign the contract or submit the required bonds within the time specified by the Contracting Officer, the contract may be terminated for default.

(e) If the contract is terminated for default, the offeror is liable for any cost of acquiring the work in excess of its proposed price, and the guarantee is available to offset the difference. However, the guarantee is not an exclusive remedy.

(End of clause)

3.4.1-4 Performance Bond Requirements (January 2017)

(a) The contractor is required to submit a performance bond in a penal amount equal to 100 percent of the contract price, but for this contract the amount required by the Contracting Officer is TO BE DETERMINED BASED ON THE NON-RECURRING SERVICES WORK WHERE APPLICABLE.

(b) The bond must be executed on specified forms, and sureties must be acceptable to the Federal Aviation Administration. Corporate sureties must appear on the list in Treasury Circular 570, and the amount of the bond may not exceed the underwriting limit stated for the surety on that list.

(c) Failure to submit an acceptable bond may be cause for termination of the contract for default.

(End of clause)

3.4.1-5 Payment Bond Requirements (January 2018)

(a) The contractor is required to submit a payment bond in the penal amount of TO BE DETERMINED BASED ON THE NON-RECURRING SERVICES WORK WHERE APPLICABLE within the time required by the Contracting Officer.

(b) The bond must be executed on the forms attached to this SIR, and sureties must be acceptable to the Federal Aviation Administration. Corporate sureties must appear on the list in Treasury Circular 570, and the amount of the bond may not exceed the underwriting limit stated for the surety on that list.

(c) Failure to submit an acceptable bond may be cause for termination of the contract for default.

(End of clause)

3.6.2-14 EMPLOYMENT REPORTS ON VETERANS (APR 2022)

(a) Unless the contractor is a State or local government agency, the contractor must report at least annually, as required by the Secretary of Labor, on:

(1) The total number of employees in the contractor's workforce, by job category and hiring location, who are protected veterans (i.e., active duty wartime or campaign badge veterans, Armed Forces service medal veterans, disabled veterans, and recently separated veterans),

(2) The total number of new employees hired during the period covered by the report, and of the total, the number of protected veterans; and

(3) The maximum number and minimum number of employees of the Contractor or subcontractor at each hiring location during the period covered by the report.

(b) The above items must be reported by completing the VETS-4212 "Federal Contractor Veterans' Employment Report" (see "VETS-4212 Federal Contractor Reporting" and "Filing Your VETS-4212 Report" at <http://www.dol.gov/vets/vets4212.htm>).'

(c) The Contractor must submit VETS-4212 Reports no later than September 30 of each year.

(d) The employment activity report required by paragraphs (a)(2) and (a)(3) of this clause shall reflect total new hires, and maximum and minimum number of employees, during the most recent 12-month period preceding the ending date selected for the report.

Contractors may select an ending date:

(1) As of the end of any pay period between July 1 and August 31 of the year the report is due; or

(2) As of December 31, if the Contractor has prior written approval from the Equal Employment Opportunity Commission to do so for purposes of submitting the Employer Information Report EEO-1 (Standard Form 100).

(e) The count of veterans reported must be based on data known to the contractor when completing the VETS-4212. The Contractor's knowledge of veterans status may be obtained in a variety of ways, including an invitation to applicants to self-identify (in accordance with 41 CFR 60-300.42), voluntary self-disclosure by employees, or actual knowledge of veteran status by the contractor. This paragraph does not relieve the employer of liability for a determination under 38 U.S.C. 4212.

(f) Subcontracts. The Contractor must include the terms of this clause in every subcontract or purchase order of \$150,000 or more unless exempted by rules, regulations, or orders of the Secretary of Labor.

(End of clause)

3.6.2-32 SCLS MINIMUM WAGES AND FRINGE BENEFITS (APPLICABLE TO SUCCESSOR CONTRACT PURSUANT TO PREDECESSOR CONTRACTOR COLLECTIVE BARGAINING AGREEMENTS (CBA)) (OCT 2020)

A Service Contract Labor Standards (SCLS) wage determination applicable to this work has been requested from the U.S. Department of Labor. If an SCLS wage determination is not incorporated herein, the offerors shall consider the economic terms of the collective bargaining agreement (CBA) between the incumbent Contractor JanCo FS2 (Velociti Services) and the International Union of Operating Engineers Local 68-68A-68B, AFL CIO (union). If the economic terms of the collective bargaining agreement or the collective bargaining agreement itself is not attached to the solicitation, copies can be obtained from the Contracting Officer. Pursuant to Department of Labor Regulation, 29 CFR 4.1b and paragraph (f) of the clause AMS 3.6.2-28 "Service Contract Labor Standards," the economic terms of that agreement will apply to the contract resulting from this Screening Information Request (SIR), notwithstanding the absence of a wage determination reflecting such terms, unless it is determined that the agreement was not the result of arm's length negotiations or that after a hearing pursuant to section 4(c) of the SCLS, the economic terms of the agreement are substantially at variance with the wages prevailing in the area.

(End of clause)

3.6.2-41 EMPLOYMENT ELIGIBILITY VERIFICATION (JUL 2023)

(a) Definitions:

"Employee assigned to the contract" means an employee who was hired after November 6, 1986, who is directly performing work, in the United States, under a contract that is required to include the Employment Eligibility Verification clause. An employee is not considered to be directly performing work under a contract if the employee--

- (1) Normally performs support work, such as indirect or overhead functions; and
- (2) Does not perform any substantial duties applicable to the contract.

"Subcontract" means any contract entered into by a subcontractor to furnish supplies or services for performance of a prime contract or a subcontract. It includes but is not limited to purchase orders, and changes and modifications to purchase orders.

"Subcontractor" means any supplier, distributor, vendor, or firm that furnishes supplies or services to or for a prime Contractor or another subcontractor.

"United States", as defined in 8 U.S.C. 1101(a)(38), except as otherwise specifically provided (in this statute) means the 50 States, the District of Columbia, Puerto Rico, Guam, the U.S. Virgin Islands, and the Commonwealth of the Northern Mariana Islands.

(b) Enrollment and verification requirements.

(1) If the Contractor is not enrolled as a Federal Contractor in Department of Homeland Security's Employment Eligibility Verification system ("E-Verify") at time of contract award, the Contractor must--

(i) Enroll. Enroll as a Federal Contractor in the E-Verify program within 30 calendar days of contract award;

(ii) Verify all new employees. Within 90 calendar days of enrollment in the E-Verify program, begin to use E-Verify to initiate verification of employment eligibility of all new hires of the Contractor, who are working in the United States, whether or not assigned to the contract, within 3 business days after the date of hire (but see paragraph (b)(3) of this section); and

(iii) Verify employees assigned to the contract. For each employee assigned to the contract, initiate verification within 90 calendar days after date of enrollment or within 30 calendar days of the employee's assignment to the contract, whichever date is later (but see paragraph (b)(4) of this section).

(2) If the Contractor is enrolled as a Federal Contractor in E-Verify at time of contract award, the Contractor must use E-Verify to initiate verification of employment eligibility of--

(i) All new employees.

(A) Enrolled 90 calendar days or more.

The Contractor must initiate verification of all new hires of the Contractor, who are working in the United States, whether or not assigned to the contract, within 3 business days after the date of hire (but see paragraph (b)(3) of this section); or

(B) Enrolled less than 90 calendar days. Within 90 calendar days after enrollment as a Federal Contractor in E-verify, the Contractor must initiate verification of all new hires of the Contractor, who are working in the United States, whether or not assigned to the contract, within 3 business days after the date of hire (but see paragraph (b)(3) of this section); or

(ii) Employees assigned to the contract. For each employee assigned to the contract, the Contractor must initiate verification within 90 calendar days after date of contract award or within 30 calendar days after assignment to the contract, whichever date is later (but see paragraph (b)(4) of this section).

(3) If the Contractor is an institution of higher education (as defined at 20 U.S.C. 1001(a)); a State or local government or the government of a Federally recognized Indian tribe; or a surety performing under a takeover agreement entered into with a Federal agency pursuant to a performance bond, the Contractor may choose to verify only employees assigned to the contract, whether existing employees or new hires. The Contractor must follow the applicable verification requirements at (b)(1) or (b)(2), respectively, except that any requirement for verification of new employees applies only to new employees assigned to the contract.

(4) Option to verify employment eligibility of all employees. The Contractor may elect to verify all existing employees hired after November 6, 1986, rather than just those employees assigned to the contract. The Contractor must initiate verification for each existing employee working in the United States who was hired after November 6, 1986, within 180 calendar days of--

(i) Enrollment in the E-Verify program; or

(ii) Notification to E-Verify Operations of the Contractor's decision to exercise this option, using the contact information provided in the E-Verify program Memorandum of Understanding (MOU).

(5) The Contractor must comply, for the period of performance of this contract, with the requirements of the E-Verify program MOU.

(i) The Department of Homeland Security (DHS) or the Social Security Administration (SSA) may terminate the Contractor's MOU and deny access to the E-Verify system in accordance with the terms of the MOU. In such case, the Contractor will be referred to a suspension or debarment official by the terminating agency.

(ii) During the period between termination of the MOU and a decision by the suspension or debarment official whether to suspend or debar, the Contractor is excused from its obligations under paragraph (b) of this clause. If the Contractor is suspended or debarred as a result of the MOU termination, the contractor is not eligible to participate in E-Verify during the period of its suspension or debarment. If the suspension or debarment official determines not to suspend or debar the Contractor, then the Contractor must reenroll in E-Verify.

(c) Web site. Information on registration for and use of the E-Verify program can be obtained via the Internet at the Department of Homeland Security Web site: <http://www.dhs.gov/E-Verify>.

(d) Individuals previously verified. The Contractor is not required by this clause to perform additional employment verification using E-Verify for any employee--

(1) Whose employment eligibility was previously verified by the Contractor through the E-Verify program;

(2) Who has been granted and holds an active U.S. Government security clearance for access to confidential, secret, or top secret information in accordance with the National Industrial Security Program Operating Manual; or

(3) Who has undergone a completed background investigation and been issued credentials pursuant to Homeland Security Presidential Directive (HSPD)-12, Policy for a Common Identification Standard for Federal Employees and Contractors.

(e) Subcontracts. The Contractor must include the requirements of this clause, including this paragraph (e) (appropriately modified for identification of the parties), in each subcontract that is for Noncommercial services or construction with a value greater than \$10,000 and includes work that is performed inside of the United States.

(End of Clause)

3.6.3-3 HAZARDOUS MATERIAL IDENTIFICATION AND MATERIAL SAFETY DATA (OCT 2024)

(a) Hazardous material, as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No. 313 (FED-STD-313) (including revisions adopted during the term of the contract).

(b) The offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and

include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Safety Data Sheet submitted under this contract.

Material (If none, insert None): _____

Identification No.: _____

(c) The apparently successful offeror, by acceptance of the contract, certifies that the list in paragraph (b) of this clause is complete. This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.

(d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No. 313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with FED-STD- 313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Safety Data Sheet prior to award may result in the apparently successful offeror being considered non-responsible and ineligible for award.

(e) If, after award, there is a change in the composition of the item(s) or a revision to FED-STD-313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause or the certification submitted under paragraph (c) of this clause, the Contractor shall promptly notify the Contracting Officer (CO) and resubmit the data.

(f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.

(g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.

(h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:

(1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to:

(i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;

(ii) Obtain medical treatment for those affected by the material;

(iii) Have others use, duplicate, and disclose the data for the Government for these purposes.

(2) To use, duplicate, and disclose data furnished under this clause, in accordance with subparagraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.

(3) The Government is not precluded from using similar or identical data acquired from other sources.

(i) Except as provided in paragraph (i)(2) the Contractor shall prepare and submit a sufficient number of Safety Data Sheets, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of FED-STD-313, for all hazardous materials identified in paragraph (b) of this clause.

(1) For items shipped to consignees, the Contractor shall include a copy of the Safety Data Sheets with the packing list or other suitable shipping document which accompanies each shipment. Alternatively, the Contractor is permitted to transmit Safety Data Sheets to consignees in advance of receipt of shipments by consignees, if authorized in writing by the CO.

(2) For items shipped to consignees identified by mailing address as agency depots, distribution centers or customer supply centers, the Contractor shall provide one copy of the Safety Data Sheets in or on each shipping container. If affixed to the outside of each container, the Safety Data Sheets must be placed in a weather resistant envelope.

(End of clause)

3.6.3-5 ESTIMATE OF PERCENTAGE OF RECOVERED MATERIAL FOR DESIGNATED ITEMS TO BE USED IN THE PERFORMANCE OF THE CONTRACT (OCT 2024) - ALTERNATE I (OCT 2024)

(a) Definitions. As used in this clause:

(1) "Post-consumer material" means a material or finished product that has served its intended use and has been discarded for disposal or recovery, having completed its life as a consumer item. Post consumer material is a part of the broader category of "recovered material."

(2) "Recovered material" means waste materials and by-products recovered or diverted from solid waste including post-consumer material, but such term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process.

(b) The Contractor shall execute the following certification required by the Resource Conservation and Recovery Act of 1976 (42 U.S.C. 6962(i)(2)(C)) to be provided upon completion of the contract if technical personnel advise that estimates can be verified:

Certification

I, _____ [name of certifier], am an officer or employee responsible for the performance of this contract and hereby certify that the percentage of recovered material

content for EPA-designated items met the applicable contract specifications or other contractual requirements.

[Signature of the Officer or Employee]

[Typed Name of the Officer or Employee]

[Title]

[Name of Company, Firm, or Organization]

[Date]

(End of clause)

3.6.3-9 OZONE DEPLETING SUBSTANCES AND HIGH GLOBAL WARMING POTENTIAL HYDROFLUOROCARBONS (OCT 2024)

(a) Definitions. As used in this clause:

"Hydrofluorocarbons" means compounds that only contain hydrogen, fluorine, and carbon.

"Ozone-depleting substance", as used in this clause, means any substance the Environmental Protection Agency (EPA) designates in 40 CFR Part 82 as:

- (1) Class I, including, but not limited to chlorofluorocarbons, halons, carbon tetrachloride, and methyl chloroform; or
- (2) Class II, including but not limited to hydrochlorofluorocarbons.

(b) The Contractor must label products which contain or are manufactured with ozone-depleting substances in the manner and to the extent required by 42 U.S.C. 7671j (b), (c), and (d) and 40 CFR Part 82, Subpart E, as follows:

"WARNING"

Contains (or manufactured with, if applicable) _____ [Contractor to insert information], a substance(s) which harm(s) public health and environment by destroying ozone in the upper atmosphere."

(c) Reporting. For equipment and appliances that normally each contain 50 or more pounds of hydrofluorocarbons or refrigerant blends containing hydrofluorocarbons, the Contractor shall:

(1) Track on an annual basis, between October 1 and September 30, the amount in pounds of hydrofluorocarbons or refrigerant blends containing hydrofluorocarbons contained in the equipment and appliances delivered to the Government under this contract by:

- (i) Type of hydrofluorocarbon (e.g., HFC-134a, HFC-125, R-410A, R-404A, etc.);
- (ii) Contract number; and
- (iii) Equipment/appliance.

(2) Report that information to <https://www.sam.gov/>:

- (i) Annually by November 30 of each year during contract performance; and
- (ii) At the end of contract performance.

(End of clause)

3.6.3-12 ASBESTOS - FREE CONSTRUCTION (OCT 2024)

(a) In performing this contract, the Contractor must not use asbestos or asbestos-containing building materials during construction, renovation, and/or modernization of this facility.

(b) The Contractor must provide to the Contracting Officer (CO) a signed statement by within 10 days of completion of work indicating that no asbestos or asbestos-containing building materials were used during construction, renovation, and/or modernization of this facility. The Contractor's certification under this clause is a material requirement of the contract and the FAA may withhold payment pending submittal and receipt of an acceptable certification.

(c) The FAA retains the right to conduct sampling of contractor building materials used during construction, renovation, and/or modernization of this facility to verify that they are asbestos-free. If asbestos-containing material is found, the Contractor must bear the expense of the sampling conducted by the FAA, remove, and replace the asbestos-containing material and decontaminate the site of asbestos contamination caused by the Contractor at no additional cost to the Government. In addition, the Contractor must bear the expense of all testing (bulk sampling and air sampling conducted by the contractor and the FAA) to determine that the asbestos removal and site decontamination are satisfactorily completed. The Contractor must follow all applicable federal, state, and local asbestos regulatory requirements as well as applicable FAA Orders with respect to asbestos abatement when the Contractor is required to remove asbestos materials they have installed.

(End of clause)

3.6.3-22 CONSTRUCTION WASTE MANAGEMENT (OCT 2024)

(a) In performance of this contract, the Contractor must establish a program to minimize waste generation, as well as recycle, reuse, divert and salvage construction and demolition (C&D) debris generated to the maximum extent possible. Before commencing work, the Contractor must submit a Waste Management Plan to the Contracting Officer (CO) within 15 days after contract award prior to the start of construction activities. This plan must address the following:

- (1) General: Provide an overall strategy for managing C&D debris associated with the project.
- (2) Waste Identification: Indicate anticipated types and quantities by weight of demolition, site-clearing and construction waste generated by the Project. Include estimated quantities by weight and assumptions for estimates. A site assessment may be necessary to estimate the types of materials that will be generated during construction and/or demolition. If a site visit is needed, the Contractor must notify the FAA of this as soon as possible, with the FAA arranging in turn for the contractor site visit to take place as soon as possible.
- (3) Waste Reduction Work Plan: List each type of waste and whether it will be salvaged, recycled, or disposed of in landfill or incinerator. Include points of waste generation, estimated total weight of each type of waste, final disposition for each waste type, and handling and transportation procedures.
- (4) Salvaged Materials: For each type of material that is salvaged or recycled, describe the type of material, source, estimated quantity, and receiving entity. Include names, addresses, and telephone numbers for the receiving individuals and/or organizations.
- (5) Disposed Materials: Indicate how and where materials will be disposed of. Include name, address, and telephone number of each landfill and incinerator facility.
- (6) Handling and Transportation Procedures: Include method that will be used for separating recyclable waste including sizes of containers, container labeling, and designated location on Project site where materials separation will be located.

(b) This plan must be found acceptable by the FAA Contracting Officer's Representative (COR) or the COR's designated representative prior to the Contractor receiving a Notice-to-Proceed. The plan's acceptability will be promptly determined by the FAA based on the knowledge of the site(s) covered under the Plan. The Contract must implement the approved Waste Management Plan during the term of the contract.

(c) The Contractor must document all C&D disposal and diversion efforts and submit a Construction and Demolition Debris Diversion Report to the CO and COR monthly. A copy of the report must also be submitted to the EOSH Services construction waste management address at 9-AJW-ConstructionWaste@faa.gov.

The monthly Construction and Demolition Debris Diversion Report must contain the following information:

- (1) FAA facility name and address, report date and reporting period, contract number, and project name;
- (2) Pick up date;
- (3) Waste material type;
- (4) Disposed C&D waste weight in short tons less container weight, method of waste material disposal, and reason why waste was not diverted;
- (5) Recycled waste weight in short tons less container weight;
- (6) Composted waste (off-site) weight in short tons less container weight;
- (7) Reused materials weight in short tons less container weight; and
- (8) Total weight of C&D waste (i.e., sum of disposed, recycled, composted, and reused waste) in short tons less container weight.

The Contractor must ensure that facilities used for recycling, reuse, and disposal are authorized for the intended use to the required extent by federal, state, and local regulations.

(d) If the value of this contract when awarded is less than \$25,000, this clause does not take effect in this contract.

(End of Clause)

3.6.4-2 Buy American Act - Supplies (January 2024)

(a) The Buy American Act (41 U.S.C. §§ 8301-8305) and Executive Order No. 10582, dated December 17, 1954, as amended, provide that the Government gives preference to domestic end products.

(b) Definitions:

(1) "Components," as used in this clause, means those articles, materials, and supplies incorporated directly into the end products.

(2) "Cost of components" means—

(A) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the end product (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(B) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (A) of this definition, plus allocable overhead costs,

but excluding profit. Cost of components does not include any costs associated with the manufacture of the end product.

(3) "Domestic end product," as used in this clause for an end product that does not consist wholly or predominantly of iron or steel or a combination of both, means

(A) an unmanufactured end product mined or produced in the United States, or

(B) an end product manufactured in the United States, if

(i) the cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029. Components of unknown origin are treated as foreign. Scrap generated, collected, and prepared for processing in the United States is considered domestic, or

(ii) the end product is a COTS item, or

For an end product that consists wholly or predominantly of iron or steel or a combination of both, an end product manufactured in the United States, if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all the components used in the end product. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the end product and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the end product contains multiple components, the cost of all the materials used in such end product is calculated in accordance with the definition of "cost of components".

(4) "End products," as used in this clause, means those articles, materials, and supplies to be acquired for public use under this contract.

(5) "Fastener" means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

(6) "Foreign End Product" means an end product other than a domestic end product.

- (7) "Foreign offer," as used in this clause, means an offered price for a foreign end product, including transportation to destination and duty (whether or not a duty free entry certificate is issued).
- (8) "Predominantly of iron or steel or a combination of both" means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.
- (9) "Steel" means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.
- (c) The Contractor must deliver only domestic end products, except those--
- (1) For use outside the United States;
 - (2) That the FAA determines are not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities and of a satisfactory quality. In accordance with AMS Guidance T3.6.4A.3.c (3) (c), such determinations of non-availability must also be approved by the FAA Acquisition Executive (FAE) and reviewed by the Office of Management and Budget (OMB) Made in America Office (MIAO);
 - (3) For which the FAA determines that domestic preference would be inconsistent with the public interest; or
 - (4) For which the FAA determines the cost to be unreasonable.
 - (A) Unless the FAA determines otherwise, the offered price of a domestic end product is unreasonable when the lowest acceptable domestic offer exceeds the lowest acceptable foreign offer, inclusive of duty, by:
 - (i) More than 20 percent, if a domestic offer is from a large business that is not a labor surplus area concern; or
 - (ii) More than 30 percent, if a domestic offer is from a small business concern or any labor surplus area concern.
 - (B) The evaluation in subparagraph (A) above will be applied on an item by item basis or to any group of items on which award may be made, as specifically provided by the screening information request.

(C) If an award of more than \$250,000 would be made to a domestic concern if the 30 percent factor were applied, but not if the 20 percent factor were applied, the FAA will decide whether award to the domestic concern would involve unreasonable cost.

(End of clause)

3.6.4-3 Buy American Act - Construction Materials (January 2024)

(a) *Definitions*

(1) "Construction material" means an article, material, or supply brought to the construction site by the Contractor or a subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

(2) "Cost of components" means—

(i) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(ii) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (i) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

(3) "Domestic Construction Material" means---

(i) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-

- (A) An unmanufactured construction material mined or produced in the United States; or
- (B) A construction material manufactured in the United States, if–

- (aa) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or

- (bb) The construction material is a COTS item, or

- (ii) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

(4) “Fastener” means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

(5) “Foreign construction material” means construction material other than domestic construction material.

(6) “Foreign iron or steel” means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel

additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

(7) “Predominantly of iron or steel or a combination of both” means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

(8) “Steel” means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

(b) Domestic Preference

- (1) This clause implements [41 U.S.C. 83](#), Buy American, by providing a preference for domestic construction material. In accordance with [41 U.S.C. 1907](#), the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction materials, excluding COTS fasteners. The Contractor must use only domestic construction material in performing this contract, except as provided in paragraphs (b)(2) and (b)(3) of this clause.
- (2) This requirement does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:

None, unless otherwise stated at the Task Order level

- (3) The Contracting Officer may add other foreign construction material to the list in (b)(2) of this clause if the Government determines that –

(i) The cost of domestic construction material would be unreasonable.

(A) The cost of particular domestic construction material subject to the requirements of the Buy American Statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent.

(B) For construction material that is not a COTS item and does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be

unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that is manufactured in the United States and does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that exceeds 55 percent domestic content as a domestic offer and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(A) of this clause.

(C) The procedures in paragraph (b)(3)(i)(B) of the clause will no longer apply as of January 1, 2030.

(ii) The application of the restriction of the Buy American statute to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for Determination of Inapplicability of the Buy American Statute

(1) Any Contractor request to use foreign construction material in accordance with paragraph (b) (3) of this clause must include adequate information for Government evaluation of the request, including-

- (i) A description of the foreign and domestic construction materials;
- (ii) Unit of measure;
- (iii) Quantity;
- (iv) Price;
- (v) Time of delivery or availability;
- (vi) Location of the construction project;
- (vii) Name and address of the proposed supplier; and
- (viii) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(2) A request based on unreasonable cost must include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

- (3) The price of construction material must include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).
- (4) Any Contractor request for a determination submitted after contract award must explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.
- (5) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(3)(i) of this clause.
- (6) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) *Data.* To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor must include the following information and any applicable supporting data based on the survey of suppliers:

FOREIGN AND DOMESTIC MATERIAL PRICE COMPARISON				
Construction Material Description		Unit of Measure	Quantity	Price (dollars)*
Item 1:	Foreign construction material			
	Domestic Construction material			
Item 2:	Foreign construction material			
	Domestic Construction material			

(List name, address, phone number, and contact for supplier surveyed. Attach copy of response, if oral, attach summary)

*Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued).

(e) *Non-Availability Determination Waiver Approvals* - In accordance with AMS Guidance T3.6.4A.4.c (3) (b), if the construction material is not being mined, produced, or manufactured in the U.S. in sufficient and reasonably available commercial quantities or of a satisfactory quality, the use of the proposed foreign construction material must also be approved by the FAA Acquisition Executive (FAE) and reviewed by the Office of Management and Budget (OMB) Made in America Office (MIAO). If a contractor is requesting a determination on this basis, the following additional information must be submitted in support of such a request:

- (1) Country(ies) of origin and U.S. content (if any), of foreign end item or materials intended for purchase, if known;
- (2) The estimated value of the procurement (or portion of the procurement) covered by the waiver; and
- (3) As part of the justification provided under (c) (1) (viii) above, fully describe the market research activities and methods used to identify domestically manufactured items or materials capable of satisfying the requirement, including the timing of the research and conclusions reached on the availability of sources. This must include a description of all efforts at competition for the items or materials, how long the requirement was open for competition, and identification of any potential domestic sources that did not compete along with the reason why (if known).

(End of clause)

3.6.4-4 Buy American Act and FAA Buy American Preference- Construction Materials Under United States-Mexico-Canada Agreement (January 2024)

(a) Definitions. As used in the clause--

- (1) "Components" means those articles, materials, and supplies incorporated directly into construction materials.
- (2) "Construction material" means an article, material, or supply brought to the construction site for incorporation into the building or work. Construction material also includes an item brought to the site pre-assembled from articles, materials, or supplies.

However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, which are discrete systems incorporated into a public building or work and which are produced as a complete system, must be evaluated as a single and distinct construction material regardless of when or how the individual parts or components of such systems are delivered to the construction site.

(3) "Domestic construction material" means (1) an unmanufactured construction material mined or produced in the United States, or (2) a construction material manufactured in the U.S., if the cost of its components mined, produced, or manufactured in the United States exceeds 55 percent of the cost of all its components. Components of foreign origin of the same class or kind as the construction materials determined to be unavailable must be treated as domestic.

(4) "United States-Mexico-Canada Agreement (USMCA) country" means Mexico.

(5) "USMCA country construction material" means a construction material that (1) is wholly the growth, product, or manufacture of a USMCA country, or (2) in the case of a construction material which consists in whole or in part of materials from another country or instrumentality, has been substantially transformed in a USMCA country into a new and different construction material distinct from the materials from which it was transformed.

(6) "Unavailable construction materials," as determined by the FAA, means those articles, materials, and supplies not mined produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality (upon request, the Contracting Officer will provide lists of articles, materials, and supplies excepted from the Buy American Act).

(b) The Buy American Act (41 U.S.C. §§ 8301-8305) and the FAA Buy American Preference (49 U.S.C. § 50101) provide that the FAA must give preference to domestic material. Under the USMCA, USMCA construction materials are exempted from application of the Buy American Act and FAA Buy American Preference when:

- (1) The acquisition value of the construction contract is \$13,296,489 or more; and
- (2) USMCA country construction material will be used.

(c) The Contractor agrees that only domestic construction materials or USMCA country construction materials must be used by the Contractor, subcontractors, and suppliers in the performance of this contract, except for other foreign construction materials, if any, listed in this contract. This requirement does not apply to information technology that is a commercial item or to components listed by the Government as follows:

none

(End of clause)

3.8.9-4 Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Entities (January 2024)

(a) *Definitions.* As used in this clause—

Kaspersky Lab covered article means any hardware, software, or service that—

- (1) Is developed or provided by a Kaspersky Lab covered entity;
- (2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab covered entity; or
- (3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab covered entity.

Kaspersky Lab covered entity means—

- (1) Kaspersky Lab;
- (2) Any successor entity to Kaspersky Lab, including any change in name, e.g. “Kaspersky”;
- (3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or
- (4) Any entity of which Kaspersky Lab has a majority ownership.

(a) *Prohibition.* Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits Government use of any Kaspersky Lab covered article. The Contractor is prohibited from—

- (1) Providing any Kaspersky Lab covered article that the Government will use; and
- (2) Using any Kaspersky Lab covered article in the development of data or deliverables first produced in the performance of the contract.

(b) *Reporting requirement.*

- (1) In the event the Contractor identifies a Kaspersky Lab covered article provided to the Government during contract performance, or

the Contractor is notified of such by a subcontractor at any tier or any other source, the Contractor must report this in writing to the Contracting Officer. For indefinite delivery contracts, the Contractor must report this in writing to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order.

(2) The Contractor must report the following information pursuant to paragraph (c) (1) of this clause:

- (i) Within 3 business days from the date of such identification or notification: the contract number; the order number(s), if applicable; supplier name; brand; model number (Original Equipment Manufacturer (OEM) number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.
- (ii) Within 10 business days of submitting the report pursuant to paragraph (c)(1) of this clause: any further available information about mitigation actions undertaken or recommended. In addition, the Contractor must describe the efforts it undertook to prevent use or submission of a Kaspersky Lab covered article, any reasons that led to the use or submission of the Kaspersky Lab covered article, and any additional efforts that will be incorporated to prevent future use or submission of Kaspersky Lab covered articles.

(c) *Subcontracts*. The Contractor must insert the substance of this clause, including this paragraph (d), in all subcontracts including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

3.8.9-5 Prohibition on Using ByteDance Covered Applications Including TikTok (July 2023)

(a) Definitions. As used in this clause—

“*Covered Application*” means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

“*Information technology*,” as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment, or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a Contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal Contractor incidental to a Federal contract.

(b) *Prohibition.* Section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328), the No TikTok on Government Devices Act, and its implementing guidance under Office of Management and Budget (OMB) Memorandum M-23-13, dated February 27, 2023, “No TikTok on Government Devices” Implementation Guidance, collectively prohibit the presence or use of a covered application on executive agency information technology, including certain equipment used by Federal contractors. The Contractor is prohibited from having or using a covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor’s employees; however, this prohibition does not apply if the Contracting Officer provides written notification to the Contractor that a waiver has been granted in accordance with AMS Guidance T3.8.9C.3.c.(2).

(c) *Subcontracts.* The Contractor must insert the substance of this clause, including this paragraph (c), in all subcontracts including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

3.8.9-7 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS—PROHIBITION (JAN 2024)

(a) *Definitions.* As used in this clause-

Covered article, as defined in 41 U.S.C. 4713(k), means-

- (1) "Information technology," as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) "Telecommunications equipment" or "telecommunications service," as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring the removal of covered articles from executive agency information systems or the exclusion of one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

- (1) The Secretary of Homeland Security may issue FASCSA orders applicable to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.
- (2) The Secretary of Defense may issue FASCSA orders applicable to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.
- (3) The Director of National Intelligence (DNI) may issue FASCSA orders applicable to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following-

- (1) The Office of the Director of National Intelligence;
- (2) The Central Intelligence Agency;
- (3) The National Security Agency;

- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;
- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
- (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency-

- (1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or
- (2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Reasonable Inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of any covered articles, or any products or services produced or provided by a source. This applies when the covered article or the source is subject to an applicable FASCSA order. A reasonable inquiry excludes the need to include an internal or third-party audit.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

(b) Prohibition.

(1) Unless an applicable waiver has been issued by the issuing official, Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by any applicable FASCSA orders identified by the checkbox(es) in this paragraph (b)(1).

[The Contracting Officer must select either "yes" or "no" for each of the following types of FASCSA orders:]

Yes ☒ No ☐ DHS FASCSA orders

Yes ☐ No ☒ DoD FASCSA orders

Yes ☐ No ☒ DNI FASCSA orders

(2) The Contractor must search for applicable FASCSA orders of the type identified in paragraph (b)(1) of this clause in the System for Award Management (SAM). Issued FASCSA Orders may be identified by selecting the "View FASCSA Orders" button from the SAM homepage (<https://www.sam.gov>) and viewing or downloading FASCSA orders from the Supply Chain Security Orders webpage.

(3) The FAA may identify in the SIR additional FASCSA orders that are not in SAM, which are effective and apply to the SIR and resultant contract.

(4) A FASCSA order issued after the publication date of the SIR applies to this contract only if added by an amendment to the SIR or by modification to the contract. However, see paragraph (c) of this clause.

(5) Contractor request for waivers.

(i) Required disclosures. If the contractor wishes to ask for a waiver of the requirements of an existing order identified in a SIR or contract or for a waiver of the requirements of a new FASCSA order being applied through modification, then the Contractor must disclose the following:

- (A) Name of the product or service provided to the Government;
- (B) Name of the covered article or source subject to a FASCSA order;
- (C) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied or supplies the covered article or the product or service to the Offeror;
- (D) Brand;
- (E) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);
- (F) Item Description;
- (G) Reason why the applicable covered article or the product or service is being provided or used;

(ii) FAA review of disclosures. The Contracting Officer will review disclosures provided in paragraph (b)(5)(i) to determine if any waiver is warranted. A Contracting Officer may choose not to pursue a waiver for covered articles or sources otherwise covered by a FASCSA order and to instead pursue other appropriate action.

(c) Notice and reporting requirement.

(1) During contract performance, the Contractor is required to:

- (i) Comply with all FASCSA orders identified under paragraph (b) of this clause; and
- (ii) Review SAM.gov at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (b) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor must conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance.

(3) If the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a covered source was provided to the Government or used during contract performance and is subject to a FASCSA order(s) identified in paragraph (b) of this clause, or a new FASCSA order identified in paragraph (c)(2) of this clause, the Contractor must submit a report to the Contracting Officer. For indefinite delivery contracts, the Contractor must report to both the Contracting Officer for the indefinite delivery contract and all the respective Contracting Officer(s) of any other affected orders.

(4) The Contractor must report the following information for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order, pursuant to paragraph (c) of this clause:

(i) Within 3 business days from the date of such identification or notification:

- (A) Contract number;
- (B) Order number(s), if applicable;
- (C) Name of the product or service provided to the Government or used during performance of the contract;
- (D) Name of the covered article or source subject to a FASCSA order;
- (E) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Contractor;
- (F) Brand;
- (G) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);
- (H) Item description; and
- (I) Any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (c)(4)(i) of this clause:

- (A) Any further available information about mitigation actions undertaken or recommended.
- (B) In addition, the Contractor must describe the efforts it undertook to prevent submission or use of the covered article or the product or service produced or provided by a source subject to an applicable FASCSA order, and any additional efforts that will be incorporated to prevent future submission or use of the covered article or the product or service produced or provided by a source that is subject to an applicable FASCSA order.

(d) *Removal.* Upon notification from the contracting officer, during the performance of the contract, the Contractor must promptly make any necessary changes or modifications to

remove any covered article or any product or service produced or provided by a source that is subject to an applicable Governmentwide FASCSA order.

(e) Subcontracts.

(1) The Contractor must insert the substance of this clause, including this paragraph (e) and excluding paragraph (c)(1) of this clause, in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products and commercial services.

(2) The Government may identify in the SIR additional FASCSA orders that are not in SAM, which are effective and apply to the contract and any subcontracts and other contractual instruments under the contract. The Contractor or higher-tier subcontractor must notify their subcontractors, and suppliers under other contractual instruments, that the FASCSA orders in the SIR that are not in SAM apply to the contract and all subcontracts.

(End of Clause)

3.10.1-19 MODIFICATION COST PROPOSAL - PRICE BREAKDOWN (CONSTRUCTION) (JUL 1996)

(a) The contractor, in connection with any proposal it makes for a contract modification, shall furnish a price breakdown, itemized as required by the Contracting Officer. The breakdown shall be in enough detail to permit an analysis of all material, labor, equipment, subcontract, and overhead costs, as well as profit, and shall cover all work involved in the modification, whether such work was deleted, added or changed. Any amount claimed for subcontracts shall be supported by similar price breakdowns from those subcontractors.

(b) In addition, if the proposal includes a time extension, a justification thereof shall also be furnished. Notwithstanding any other provisions of this contract, it is mutually understood that the time extension for changes in the work will depend upon the extent, if any, by which the changes cause delay in the completion of the various elements of work. The contract completion dates will be extended only for those specific elements so delayed and the remaining contract completion dates for all other portions of the work will not be altered.

(c) The proposal, together with the price breakdown and time extension justification, shall be furnished by the date specified by the Contracting Officer.

(End of clause)

3.10.1-26 Contractor Performance Assessment Reporting System (July 2023)

- (a) The Federal Aviation Administration (FAA) will submit an electronic record of contractor performance on this contract in the Contractor Performance Assessment Reporting System (CPARS) at www.cpars.gov. An interim, final, or an addendum past performance evaluation (as applicable) will be conducted on this contract in order to record contractor performance.
- (b) The past performance evaluation process is a paperless process using CPARS. CPARS is a web-based system that allows for electronic processing of the performance evaluation report. All completed reports are accessible in CPARS for Government use in evaluating past performance as part of a source selection action.
- (c) The Contractor must furnish the Contracting Officer with the name, position title, phone number, and email address for each person(s) designated to have access to past performance evaluation(s) for this contract no later than 30 days after award.
- (d) The designated Contractor Representative(s) will receive an automatically generated email with detailed login instructions. Additional details on CPARS, including systems requirements, and training information for CPARS, are available on the CPARS website, www.cpars.gov. The CPARS User Manual and registration for On-Line Training for Contractor Representatives are also available through the above website.
- (e) The designated Contractor Representative(s) will have the ability to provide comments in the Contractor portion of the report and state whether the Contractor agrees or disagrees with the evaluation, before returning the report to the FAA Assessing Official (AO). The assessment report information must at all times be protected as source selection sensitive information not releasable to the public.
- (f) Within 60 days after the end of a performance period, the FAA AO for the contract will complete an interim, final, or an addendum (as applicable) past performance evaluation. The report will be accessible for comment by the Contractor Representative(s) through the CPARS website. Comments are limited to the space provided in CPARS and comments must focus on objective facts in the AO's rating, narrative, and the contractor's performance of the contract. In addition to the ratings and supporting narratives, Contractor Representative(s) should ensure all information in the evaluation is accurate, as it includes key fields that may be used by the Government to identify the contractor in future source selection actions. The contractor can acknowledge receipt of the evaluation absent any comments. However, the contractor will not be able to sign and submit the evaluation back to the Government without a statement in the Contractor Comments section. Therefore, the contractor can indicate "No comment" in combination with signing

and dating the form. If the contractor does not sign and submit the CPARS assessment within 60 days after receipt of the CPARS assessment, it will automatically be returned to the Government and will be annotated as follows, "*The report was delivered/received by the contractor on (date). The contractor neither signed nor offered comment in response to this assessment.*"

(g) The following guidelines apply concerning contractor's use of the past performance evaluation:

- (1) Protect the evaluation as "source selection information."
- (2) Strictly control access to the evaluation within the contractor's organization, and ensure the evaluation is never released to persons or entities outside of the organization's control.
- (3) Prohibit the use of or reference to evaluation data for advertising, promotional material, pre-award surveys, responsibility determinations, production readiness reviews, or other similar purposes.

(h) If the contractor wants to discuss a past performance evaluation, requests must be submitted in writing to the AO no later than seven days following the date the FAA submits an evaluation to CPARS.

(i) If the parties cannot resolve any disagreement in the content of the CPARS evaluation, the original evaluation and the contractor's comments will be referred to the Reviewing Official (RO). The RO will make a final determination on the performance evaluation and include the contractor's comments with its finalized report.

(j) The completed and finalized past performance assessment report will be accessible in CPARS and available for Government use in support of any future source selection actions.

(End of clause)

3.10.2-1 Subcontracts (Fixed-Price Contracts) (July 2023)

(a) Consent to subcontract in this clause applies to subcontracts resulting from unpriced modifications to this contract if required as indicated under (b) or (c) below.

(b) Subcontract, as used in this clause, includes but is not limited to purchase orders, and changes and modifications to purchase orders. The Contractor must notify the Contracting Officer reasonably in advance of entering into any subcontract if the Contractor does not have an approved purchasing system and if the subcontract:

- (1) Is proposed to exceed \$250,000; or

(2) Is one of a number of subcontracts with a single subcontractor, under this contract, for the same or related supplies or services that in the aggregate are expected to exceed \$250,000.

(c) If the contractor has an approved purchasing system, the contractor nevertheless must obtain the Contracting Officer's written consent before placing the following subcontracts:

any subcontract over \$200,000

any subcontract for Building Automation System (BAS), SkySpark, and PMCS

(d) The advance notification required by paragraphs (b) and (c) above must include-

- (1) A description of the supplies or services to be subcontracted;
- (2) Identification of the type of subcontract to be used;
- (3) Identification of the proposed subcontractor and an explanation of why and how the proposed subcontractor was selected, including the competition obtained;
- (4) The proposed subcontract price and the Contractor's cost or price analysis;
- (5) The subcontractor's current, complete, and accurate cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions;
- (6) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract; and
- (7) A negotiation memorandum reflecting-
 - (i) The principal elements of the subcontract price negotiations;
 - (ii) The most significant considerations controlling establishment of initial or revised prices;
 - (iii) The reason cost or pricing data were or were not required;
 - (iv) The extent, if any, to which the Contractor did not rely on the subcontractor's cost or pricing data in determining the price objective and in negotiating the final price;
 - (v) The extent, if any, to which it was recognized in the negotiation that the subcontractor's cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and subcontractor; and the effect of any such defective data on the total price negotiated;

(vi) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and

(vii) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation must identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(e) The Contractor must obtain the Contracting Officer's written consent before placing any subcontract for which advance notification is required under paragraph (b) above. However, the Contracting Officer may ratify in writing any such subcontract. Ratification will constitute the consent of the Contracting Officer.

(f) Even if the Contractor's purchasing system has been approved, the Contractor must obtain the Contracting Officer's written consent before placing subcontracts identified below:

(g) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system will constitute a determination:

(1) Of the acceptability of any subcontract terms or conditions,

(2) Of the acceptability of any subcontract price or of any amount paid under any subcontract, or

(3) To relieve the Contractor of any responsibility for performing this contract.

(h) No subcontract placed under this contract will provide for payment on a cost-plus-a-percentage-of-cost basis.

(i) The Government reserves the right to review the Contractor's purchasing system.

(End of clause)

3.10.2-2 SUBCONTRACTS (COST-REIMBURSEMENT AND CEILING PRICED CONTRACTS) (JUL 2023)

(a) Subcontract, as used in this clause, includes but is not limited to purchase orders, and changes and modifications to purchase orders. The Contractor shall notify the Contracting Officer reasonably in advance of entering into any subcontract if:

(1) The proposed subcontract is of the cost-reimbursement, time-and-materials, or labor-hour type;

(2) The proposed subcontract is fixed-price and exceeds either \$250,000 or 5 percent of the total estimated cost of this contract;

(3) The proposed subcontract has experimental, developmental, or research work as one of its purposes; or

(4) This contract is not a facilities contract and the proposed subcontract provides for the fabrication, purchase, rental, installation, or other acquisition of special test equipment valued in excess of \$25,000 or of any items of facilities.

(b)

(1) In the case of a proposed subcontract that

(i) is of the cost-reimbursement, time-and-materials, or labor-hour type and is estimated to exceed \$25,000, including any fee,

(ii) is proposed to exceed \$250,000, or

(iii) is one of a number of subcontracts with a single subcontractor, under this contract, for the same or related supplies or services that, in the aggregate, are expected to exceed \$250,000, the advance notification required by paragraph (a) above shall include the information specified in subparagraph (2) below.

(2)

(i) A description of the supplies or services to be subcontracted.

(ii) Identification of the type of subcontract to be used.

(iii) Identification of the proposed subcontractor and an explanation of why and how the proposed subcontractor was selected, including the competition obtained.

(iv) The proposed subcontract price and the Contractor's cost or price analysis.

(v) The subcontractor's current, complete, and accurate cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.

(vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.

(vii) A negotiation memorandum reflecting-

(A) The principal elements of the subcontract price negotiations;

(B) The most significant considerations controlling establishment of initial or revised prices;

(C) The reason cost or pricing data were or were not required;

(D) The extent, if any, to which the Contractor did not rely on the subcontractor's cost or pricing data in determining the price objective and in negotiating the final price;

(E) The extent to which it was recognized in the negotiation that the subcontractor's cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;

(F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and

(G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(c) The Contractor shall obtain the Contracting Officer's written consent before placing any subcontract for which advance notification is required under paragraph (a) above. However, the Contracting Officer may ratify in writing any such subcontract. Ratification shall constitute the consent of the Contracting Officer.

(d) If the Contractor has an approved purchasing system and the subcontract is within the scope of such approval, the Contractor may enter into the subcontracts described in subparagraphs (a)(1) and (a)(2) of this clause without the consent of the Contracting Officer.

(e) Even if the Contractor's purchasing system has been approved, the Contractor shall obtain the Contracting Officer's written consent before placing subcontracts identified below:

any subcontract over \$200,000

any subcontract for Building Automation System (BAS), SkySpark, and PMCS

(f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination:

- (1) of the acceptability of any subcontract terms or conditions,
- (2) of the allowability of any cost under this contract, or
- (3) to relieve the Contractor of any responsibility for performing this contract.

(g) No subcontract placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis.

(h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.

(i)

(1) Reserved.

(2) Additionally, the Contractor shall include in each cost- reimbursement subcontract under this contract a requirement that the subcontractor insert the substance of the appropriate modified subparagraph referred to in subparagraph (1) above in each lower tier price redetermination or incentive price revision subcontract under that subcontract.

(j) To facilitate small business participation in subcontracting, the Contractor agrees to provide payments on subcontracts under this contract that are fixed-price subcontracts

with small business concerns in conformity with the standards for customary payments, as in effect on the date of this contract. The Contractor further agrees that the need for such financing payments will not be considered a handicap or adverse factor in the award of subcontracts.

(k) The Government reserves the right to review the Contractor's purchasing system.

(End of clause)

3.13-16 RECORDS MANAGEMENT (OCT 2023)

(a) Definitions.

Federal record as defined in 44 U.S.C. § 3301, means all recorded information, regardless of form or characteristics, made or received by a Federal agency under Federal law or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the United States Government or because of the informational value of data in them. The term Federal record:

- (1) Includes all FAA records.
- (2) Does not include personal materials.
- (3) Applies to records created, received, or maintained by Contractors pursuant to a FAA contract.
- (4) May include deliverables and documentation associated with deliverables.

(b) Requirements.

(1) Compliance. The contractor must comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chapters 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by Privacy Act of 1974 (5 U.S.C. 552a), to the extent that the Privacy Act applies to any records maintained by the Contractor. These policies include the preservation of all Federal records, regardless of form or characteristics, mode of transmission, or state of completion.

(2) Applicability. All data created for Government use and delivered to, or falling under, the legal control of the Government, are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33. Such Federal records must be managed and scheduled for disposition only as permitted by the Federal Records Act, relevant statute or regulation, and FAA Order 1350.14 Records Management" at https://www.faa.gov/documentLibrary/media/Order/FAA_1350.14B.pdf.

(3) Records maintenance. While in Contractor's custody, the Contractor is responsible for preventing the alienation or unauthorized destruction of FAA records, including all forms of mutilation. Records may not be removed from the legal custody of FAA or destroyed except in accordance with the provisions of the agency records schedules and with the written

concurrence of the FAA Agency Records Officer (ARO) (or the ARO's designate) and Contracting Officer, as appropriate. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal, defacing, alteration, or destruction of records, the Contractor must report the event to the Contracting Officer in accordance with 36 CFR 1230, Unlawful or Accidental Removal, Defacing, Alteration, or Destruction of Records, for reporting to NARA by FAA Records Management. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.

(4) Unauthorized disclosure. The Contractor must notify the Contracting Officer within 2 (two) hours of discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the contract. The Contractor must ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected. The Contractor must not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the FAA ARO (or the ARO's designate) and the Contracting Officer. Destruction of records is expressly prohibited unless in accordance with the contract.

(c) Records management contracts - where the contractor is required to design, develop, and/or operate a system of records, the following additional requirements apply: During the contract, the FAA ARO (or ARO's designate) has the right to inspect where the records are stored (digitally or paper records) in order to ensure they are properly protected from the elements and/or loss. This inspection must be coordinated through the Contracting Officer or the Contracting Officer's Representative. The contractor must be provided 30 calendar days' notice of such inspections. This clause may be tailored to provide for a different notice period. Additional details regarding such inspections consistent with this clause may be specified in the Statement of Work. For contracts where the contractor is responsible for managing FAA records, when the records are no longer required or at the completion of the contract, the records must be returned to FAA control. Items returned to the FAA must be hand carried, mailed, or securely electronically transmitted to the Contracting Officer or address indicated in the contract.

(d) Non-public information. The Contractor must not create or maintain any records containing any non-public FAA information that are not specifically tied to or authorized by the contract.

(e) Ownership. Consistent with all applicable data rights clauses in this contract, the FAA is the sole owner of the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which FAA will

have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any Contractor rights in the data or deliverables must be identified as required by applicable data rights clauses in this contract.

(f) Notification of third party access requests. The Contractor must notify the Contracting Officer promptly of any requests from a third party for access to Federal records, including any warrants, seizures, or subpoenas it receives, including those from another Federal, State, or local agency. The Contractor must cooperate with the Contracting Officer to take all measures to protect Federal records, from any unauthorized disclosure.

(g) Training. All Contractor employees assigned to this contract who create, work with, or otherwise handle records are required to take FAA-provided records management training upon starting under the contract and annually thereafter as per the FAA Electronic Learning Management System (eLMS). If the contractor does not have access to eLMS, the contractor is to contact the Contracting Officer or Contracting Officer's Representative (COR) who will advise the ARO who will in turn make arrangements to ensure the contractor has access. The Contractor is responsible for confirming to the Contracting Officer in an annual report due by September 30 of each year under the contract that training, including initial training and annual refresher training, has been completed in accordance with agency policies. This annual report must list the employee names and dates of initial or annual refresher training.

(h) Agency Records Officer (ARO) - regarding clause provisions above that cite the ARO or designate, information as to the name of the ARO or the ARO designate for particular locations outside FAA Headquarters may be obtained from the FAA Records and Information Management Team (RIM) at 9-faa-records-management-program@faa.gov.

(i) Subcontractor flowdown requirements. The Contractor must incorporate the substance of this clause, its terms and requirements including this paragraph (i), in all subcontracts under this contract.

(End of clause)

3.14-2 CONTRACTOR PERSONNEL SUITABILITY REQUIREMENTS (APR 2024)

1. No contractor employee will be allowed

unescorted access to any FAA facility;
access to FAA classified information;
access to FAA Sensitive Unclassified Information (SUI); or
access to FAA systems or resources

unless they have been authorized by the FAA Office of Personnel Security (AXP).

2. Definitions.

a. "Contractor Employee" means a person employed as or by a contractor, subcontractor, or consultant supporting FAA or any non-FAA person who performs work or services for FAA within FAA facilities.

b. Sensitive Unclassified Information (SUI) means unclassified information, in any form including print, electronic, visual, or aural forms, that must be protected from uncontrolled release to persons outside the FAA and indiscriminate dissemination within the FAA. It includes aviation security, homeland security, and protected critical infrastructure information. SUI may include information that may qualify for withholding from the public under the Freedom of Information Act (FOIA).

3. Consistent with FAA Order 1600.1F, AXP must approve designated risk levels for the positions under the contract, to be determined by the FAA Operating Office (the organization with the requirement) in coordination with the COR, using the OPM Position Designation Automated Tool (PD Tool).

4. For all contractor employees requiring access to FAA facilities, classified information, sensitive unclassified information, systems, or resources, the contractor must submit to its responsible AXP office and CO/COR a point of contact (POC) who will be responsible for entering all contractor applicant data, to include subcontractor data, into the Vendor Applicant Portal (VAP) system (vap.faa.gov) or successor system, for security processing. The contractor must not enter contractor employees in VAP unless they have a legitimate need for access to FAA facilities, classified information, sensitive unclassified information and/or systems according to the terms of the contract. Contractor employees who will not require the aforementioned types of access or who would be under escort of other badged personnel are not required to be entered in VAP.

5. If an applicant has had a previous US Government conducted background investigation, which meets the investigative requirements for the position and meets established reciprocity guidelines, it will be accepted by the FAA. The FAA reserves the right to conduct further investigations, including requesting additional information from the applicant, if necessary.

6. If no previous investigation exists, or if the previous investigation does not meet investigative requirements for the position, AXP will:

- a. Send the applicant an e-mail with instructions for completing investigative requirements;
- b. Instruct the applicant how to enter and complete a background investigation questionnaire through the National Background Investigation System (NBIS) electronic application (eAPP) or successor system;
- c. Provide where to upload, or send/fax applicable forms; and
- d. Provide instructions regarding fingerprinting. (any fees associated with obtaining fingerprints are not the responsibility of the FAA)

The contractor employee must complete the investigative requirements and submit required material within 15- calendar days of receiving the e-mail from AXP. If items must be submitted outside of the eApp system, the contractor must submit the required information, referencing the contract number, to the AXP POC noted in the instruction email.

7. No contractor employee identified as requiring a background investigation under the contract will work in any position unless AXP has authorized them to begin work. The authorization will be in the form of an Interim or Final Suitability email notification from AXP to the VAP POC and CO.

8. No contractor employees will be issued a FAA Personal Identity Verification (PIV) card, or other FAA-issued ID card, unless they have been granted an Interim or Final suitability from AXP.

9. The contractor VAP POC must inform the CO/COR and submit a VAP removal record in VAP within twenty- four (24) hours after any contractor employee resigns, is terminated, is transferred, or is otherwise removed from the contract. If the FAA issued the contractor employee a PIV card, or other ID card, the contractor must collect the card within twenty-four hours and return it to AXP no later than five business days of the employee's termination or transfer.

10. The CO will provide notice to the contractor within 24 hours after receipt of a determination by AXP (or in the case of classified information in accordance with FAA Order 1600.2, AXF) that the contractor or its employee has not complied with security-related contract requirements or security-related FAA Orders, or if a contractor employee's conduct is objectionable or contrary to the public interest, or inconsistent with the best interest of national security. The notice will instruct the contractor to remove its employee's access to FAA premises or networks, or otherwise remedy the contractor's performance. The FAA Facility Manager has authority to remove a contractor employee from FAA facility premises when the Facility Manager determines a contractor employee's conduct is objectionable or contrary to the public interest. The Facility Manager must notify the CO within 24-hours of such removal.

11. The contractor must immediately comply with the CO's direction to remedy its security performance at the contractor's expense, including removing the employee from FAA premises and networks. If the contractor employee is working under an interim suitability authorization, the contractor must take appropriate action, including the removal of the contractor employee from working on the FAA contract, at the contractor's expense. Once the contractor has taken action to remedy its security performance, the contractor must report the action via the VAP within the timeframe prescribed in paragraph 8 of this clause.

12. After coordination with AXP, the CO may require contractor employees to submit any other security information deemed reasonably necessary to protect the interests of the

FAA. This includes submitting to additional fingerprinting, responding to letters of inquiry, and background reinvestigations required under Federal Investigative Standards. In this event, the contractor must provide, or cause each of its employees to provide, such security information to AXP. Failure to cooperate with security processing will result in an unfavorable suitability determination.

13. The contractor must retrieve a current roster report through VAP on a quarterly basis to ensure the roster is accurate, and immediately correct any discrepancies with the responsible AXP office. The contractor is responsible for the accuracy of its subcontractors' rosters as well.

14. Contractor employees must take the following training courses, as applicable.

a. All contractor employees subject to the requirements of this clause must take the FAA Security Awareness Virtual Initiative (SAVI) training within 90 days of reporting to work and annually thereafter. This training is available on the FAA's Electronic Learning Management System (eLMS). Contractors without access to eLMS please see <https://my.faa.gov/org/linebusiness/ash/programs/savi.html> for instructions.

b. All contractor employees that will access the FAA network must complete the FAA's Information Security and Privacy Awareness Training course in eLMS (a distinct course from SAVI) and read and sign the FAA Rules of Behavior, upon initial connection to the FAA and annually thereafter. Contractor employees who do not complete the mandatory information security and privacy awareness training course and accept the FAA Rules of Behavior within the required timeframes may have their access to FAA systems, networks, or information suspended or terminated.

c. All contractor personnel that connect to the FAA network must complete all other mandatory and role- based training as required by FAA Order 1370.121B.

15. The contractor must contact the CO or COR, and AXP within one business day in the event an employee (who has been cleared for FAA access by AXP) is arrested (i.e., taken into custody by law enforcement for any offenses, other than minor traffic offenses) or is involved in theft of government property or the contractor becomes aware of any information that may raise a question about the suitability of a contractor employee.

16. Failure to submit information required by this clause within the time required may be determined by the CO a material breach of the contract and may result in suspension or revoked access for the contractor employee.

17. If subsequent to the effective date of this contract, the security classification or security requirements under this contract are changed by the Government and if the changes cause an increase or decrease in direct contract costs or otherwise affect any other term or condition of this contract, the contract will be subject to an equitable adjustment.

18. The contractor agrees to insert terms that conform substantially to the language of this clause, excluding any reference to the Changes clause of this contract, in all subcontracts under this contract that involve access and where the exceptions under FAA Order 1600.1F do not apply.

(End of Clause)

3.14-4 ACCESS TO FAA FACILITIES, SYSTEMS, GOVERNMENT PROPERTY, AND SENSITIVE UNCLASSIFIED INFORMATION (APR 2024)

1. Terms defined in the AMS Clause 3.14-2 "Contractor Personnel Suitability Requirements" have the same meaning in this clause.

2. It may become necessary for the Government to grant access to FAA systems or issue Government property, to include FAA issued ID cards, or sensitive unclassified information (SUI), to contractor employees. The FAA shall have the authority to restrict or deny unescorted access into FAA facilities to anyone. The FAA shall also have the authority to determine the number of PIV cards to be issued to contractor employees, based on operational necessity. Individuals requiring non-routine access for maintenance purposes shall be escorted by FAA personnel and be issued appropriate FAA visitor badges. Prior to or upon completion or termination of the work under the contract, the contractor must return all such Government property and SUI to the Contracting Officer's Representative (COR).

3. Improper use, possession or alteration of Government property is subject to penalties under Title 18, USC 499, 506, 701, and 1030.

4. In the event such Government property is lost, stolen, or not returned, the contractor understands and agrees that the Government may, in addition to any other withholding provision of the contract, withhold the value of the asset for each item of Government property not returned. If the Government property, to include FAA issued ID cards, or SUI is not returned within 30-calendar-days from the date the withholding action was initiated, any amount so withheld is forfeited by the contractor. Any portable devices that are lost, stolen, or not returned must be reported by the contractor within one (1) hour to the FAA Security Operations Center (phone 1(866)-580-1852(Option 1) or email 9-AWA-SOC@faa.gov).

5. Access to aircraft ramp/hangar areas is authorized only to those persons displaying a flight line identification card and for vehicles, with a current ramp permit issued pursuant to Title 49, Part 1542, Code of Federal Regulations.

6. The Government retains the right to inspect inventory, or audit Government property or sensitive information issued to the contractor in connection with the contract and do so at the convenience of the Government. Any items not accounted for, to the satisfaction of the

Government, will be assumed to be lost and the provisions of section (3) of this clause apply.

7. The issuance of Government property to include SUI must be approved by the COR who will require the contractor employee to sign a receipt for each item. Lost or stolen Government property or SUI must immediately be reported concurrently to the Contracting Officer (CO), COR, and the FAA SOC at the telephone number and email address listed under section (3) above.

8. Each contractor employee, during all times of on-site performance at an FAA facility, must prominently display his/her current and valid FAA Personal Identity Verification (PIV) card, or other FAA issued ID card, on the front portion of his/her body between the neck and waist. Each FAA ID cardholder must not affix pins, stickers, or other item to the card.

9. Prior to any contractor employee obtaining a FAA ID Card or other government property, IAW FAA Order 1600.78 the contractor is required to enter data for each employee into the VAP (Vendor Applicant Portal) as described in AMS clause 3.14-2, Contractor Personnel Suitability Requirements.

10. The Office of Personnel Security (AXP) will determine whether a favorable interim and/or final suitability determination can be granted to:

- a. Exercise reciprocity when applicable.
- b. Initiate the contractor applicant into the National Background Investigation System (NBIS) electronic application (eAPP) or subsequent system, so that the applicant can complete the investigative forms.

Interim suitability determination (ISD) cannot be granted until all background investigation forms are completed and fingerprints and signature pages are submitted to AXP. Authorization for the contractor employee to begin work on the FAA contract will be an Interim or Final Suitability notification from AXP.

11. To apply for a FAA PIV card, IAW FAA Order 1600.78, the contractor employee must submit an identification card application (DOT 1681) using the automated system located at <https://idms.faa.gov/1681>. The application must be approved by the CO or COR. The contractor employee will be notified when the identification card application has been approved and is ready for processing by the FAA Identification Card issuer (e.g., PIV Administrator). The contractor must contact AXP to obtain the procedures for obtaining their FAA PIV Card.

12. Off-Boarding. The contractor is responsible for ensuring final off-boarding is accomplished for all departing contractor employees. This includes termination, resignation, retirement, death, change of employment status (i.e., transferring from a contractor to a FAA employee), transfer to another FAA contract, and (with CO approval)

extended leave of absence. The contractor may appoint an off-boarding coordinator to oversee the off-boarding process.

- a. For each departing employee having access to FAA facilities and/or Information Technology (IT) systems, the contractor must submit a completely filled out and signed "FAA Contractor Employee Off- Boarding Form" (located in FAA Procurement Forms) to the CO no later than thirty (30) calendar days after the employee's departure. The contractor must ensure that the Form confirms that all applicable Government property (including FAA-issued ID cards) and sensitive information (including Classified National Security Information (CNSI)) has been collected and access to all FAA assets has been terminated.
- b. When the contractor is not located or within local driving distance of the responsible AXP office, the Contractor must collect the Personal Identity Verification (PIV) Card or other FAA-issued ID card, and any other tokens and provide to the CO or COR within one (1) business day of receiving the card/tokens from the departing employee.
- c. In the event the contractor employee departs without completing the Form, the contractor is responsible for completing and submitting the Form on the employee's behalf. If the departing contractor employee served as the Property Custodian for the FAA contract, then the contractor must designate a new Property Custodian and ensure accountability of all property under the contract, or within fourteen calendar days with the CO's approval, provide to the CO the results of the associated inventory/property accountability.
- d. The designated VAP POC must submit a VAP removal record for the departing employee within twenty- four (24) hours.
- e. The contractor must also comply with any local Employee Off-Boarding Forms in use at the applicable FAA Facility.

13. All contractor employees with access to FAA systems must have a FAA-issued Personal Identity Verification (PIV) card and must use the PIV card to authenticate to the FAA system.

14. The FAA has established cybersecurity and privacy policies, procedures, and processes to protect the Confidentiality, Integrity, and Availability of its networks, systems, services, information, and data.

- a. All contractor employees that access FAA systems must comply with all FAA cybersecurity and privacy policies, procedures, and processes, including Presidential Directives, Executive Orders, OMB Memorandum DHS CISA Binding Order Directives, and other Federal policies.
- b. A copy of FAA information security and privacy orders, including FAA Order 1370.121B FAA Information Security and Privacy: Policy is found at the following link https://employees.faa.gov/tools_resources/orders_notices. (Internal FAA Link only)

15. The contractor must insert this clause in all subcontracts under the contract.

(End of Clause)

3.14-14 COOPERATION WITH DEFENSIVE COUNTERINTELLIGENCE PROGRAM (DCIP) REQUIREMENTS (JUL 2023)

a. The FAA's Defensive Counterintelligence Program (DCIP) (AXI-310) detects, deters, and denies illicit human and technical intelligence collection activities as well as addressing other national security concerns. Such activities and concerns include, but are not limited to, activities conducted by, on behalf of, or otherwise supporting, foreign governments or elements thereof; entities or individuals that meet the definition of "foreign power" or "agent of a foreign power" in 50 U.S.C. § 1801; foreign organizations; foreign persons; international terrorist organizations or activities; or agents of any of the foregoing; or any other individuals or entities acting on behalf of, or otherwise in support of, any of the foregoing, against the FAA, its employees, facilities, equipment, systems, networks, operations, and information.

b. Consistent with FAA Order 1600.84 FAA Defensive Counterintelligence Program (referred to here on as "the Order"), the contractor is required to cooperate to the fullest extent possible with the following requirements:

(1) Any authorized DCIP inquiry or Counterintelligence (CI) investigation connected with this contract requested by the FAA Office of Security and Hazardous Materials Safety (ASH) to include granting authorized ASH or outside investigative department or agency personnel access to contract information, records, or contractor personnel;

(2) All applicable FAA security requirements as required under the contract consistent with FAA policy and applicable Federal law;

(3) When requested by the DCIP, and necessary to protect Controlled National Security Information (CNSI), Sensitive Unclassified Information (SUI), or otherwise protected information, contractor employees must sign a Defensive Counterintelligence Program Non-Disclosure Agreement (NDA) prior to being briefed on any information pertaining to a DCIP inquiry, CI investigation by another Department or Agency, or any other matter related to the DCIP. The NDA is located in Appendix C of the Order and in AMS Procurement Forms. Contractor employees are exempt from acknowledging any language in the NDA associated with unauthorized disclosure of received information that subjects FAA employees to personnel actions specified in the Human Resources Policy Manual (HRPM) Volume 4: Employee Relations ER-4.1 (4) and applicable collective bargaining agreements.

(4) Contractors must first coordinate with the DCIP at ASH-CI-Notify@faa.gov before contacting any law enforcement or investigative agencies on any known or suspected counterintelligence or other national security concern described in Paragraph 1 of the Order.

(5) Contractors must notify the DCIP as soon as possible if any law enforcement or investigative agency contacts them directly on any matter covered by the Order. If an employee receives a direct request from an outside law enforcement or investigative agency for evidence related to a counterintelligence or other national security concern as described in Paragraph 1 of the Order, the employee will refer the law enforcement or investigative agency to AXI-310.

(6) Contractors must immediately notify the DCIP at ASH-CI-Notify@faa.gov, and the CO and/or COR if their employees observe any of the following-

(a) Suspected or known acts of foreign intelligence collection activity against the FAA or its employees, systems, networks, operations, facilities, equipment, or information;

(b) Suspected or known espionage (See Appendix A of the Order for definition);

(c) Suspected or known unauthorized disclosure of CNSI, SUI, or otherwise protected information in the possession of the FAA by a FAA employee to a foreign government or element thereof, a foreign organization, an entity or individual that meets the definition of "foreign power" or "agent of a foreign power" in 50 U.S.C. § 1801, a foreign person, an international terrorist organization or activity, an agent of any of the foregoing, or any other individual or entity acting on behalf of or otherwise supporting any of the foregoing; or

(d) Suspected or known theft, unauthorized disclosure, or unauthorized amassing of CNSI, SUI, or otherwise protected information in the possession of the FAA known or suspected to be for the purpose of conveying it to a foreign government or element thereof, an entity or individual that meets the definition of "foreign power" or "agent of a foreign power" in 50 U.S.C. § 1801, a foreign organization, a foreign person, an international terrorist organization or activity, an agent of any of the foregoing, any other individual or entity acting on behalf of or otherwise supporting any of the foregoing, or an unknown recipient, or statements of intent by an FAA employee to engage in any such actions. SUI or otherwise protected unclassified information whose theft, unauthorized disclosure, or unauthorized amassing, for the purposes described in the preceding sentence, is of concern includes, but is not limited to:

i. Non-public information from an official FAA data network or information

ii. Imagery;

iii. Technical specifications;

iv. Trade secrets;

v. Proprietary information;

vi. Sensitive Security Information (SSI); and

vii. Any other SUI

(e) Activities similar to those described in paragraphs b(6)(a)-(d) by, on behalf of, or otherwise supporting, potential lone wolf actors, malicious insiders, or transnational organizations of a national security concern.

If notification of the CO and/or COR is not feasible owing to the CO and/or COR being one of the suspicious actor(s), the contractor must notify the DCIP directly at the above email address if they observe any of the above activities.

(7) Contractors traveling internationally as per contract requirements must comply with the applicable travel security briefing and foreign contact reporting requirements of FAA Order 1600.61C International Travel Security Program as well as the applicable travel security briefing and reporting requirements of applicable Security Executive Agent Directives implemented by the FAA.

(8) Elicitation attempts. Elicitation is the strategic use of conversation to extract information from people without giving them the feeling they are being interrogated. It is a technique used to discreetly gather information. It is a conversation with a specific purpose: collect information that is not readily available and do so without raising

suspicion that specific facts are being sought. The conversation can be in person, over the phone, or in writing.

Contractors must immediately notify the DCIP at ASH-CI-Notify@faa.gov, and the CO and/or COR if their employees experience any known or suspected direct (e.g., personal encounter or telephone) or indirect (e.g., electronic or written communication) elicitation or attempted elicitation of CNSI, SUI, or otherwise protected information in the possession of the FAA by any suspicious entity or person, regardless of ethnicity, nationality, or FAA employment status, as soon as possible, but no later than 12 hours after the time of the incident, initial detection, or receipt of report, as applicable, or the next business day if the incident, initial detection, or receipt of report, as applicable, occurs on a weekend or holiday. Contractors must report these incidents regardless of where, when, or how the contact took place, or whether the employee was on or off duty. Suspicious activities include, but are not limited to:

- (a) Direct or indirect contact or communication with a known or suspected foreign or foreign-affiliated person, or an unknown or unfamiliar person, seeking access to or disclosure of any CNSI, SUI, or otherwise protected information in the possession of the FAA for which such person does not meet the applicable access requirements, or that is outside the scope of their official duties;
- (b) Direct or indirect contact or communication with a known or suspected foreign or foreign-affiliated person, or an unknown or unfamiliar person, seeking specific information about an FAA employee's official duty responsibilities, work projects, access to information, security clearance, travel plans, coworkers' identities, or Information Technology (IT) system credentials for which such person does not meet the applicable access requirements, or that is outside the scope of their official duties;
- (c) Direct or indirect contact, communication, or observance of a known or suspected foreign or foreign-affiliated person, or an unknown or unfamiliar person, seeking unauthorized access to FAA employees, equipment, operations, systems, information, facilities, or networks, including through a Personal Electronic Device (PED);
- (d) Direct or indirect contact, communication, or observance of a known or suspected foreign or foreign-affiliated person, or an unknown or unfamiliar person, introducing, or seeking to introduce, unauthorized digital media or software into any FAA equipment, facilities, systems, or networks, including through a PED;
- (e) Offers of compensation, gifts, or favors in exchange for FAA information or access to such information, regardless of medium; or access to FAA employees, equipment, operations, facilities, systems, or networks;
- (f) Threats, attempts to coerce, or attempts to exploit any FAA employee by a known or suspected foreign or foreign-affiliated person, or by an unknown or unfamiliar person, in order to illicitly acquire FAA information or access to FAA employees, equipment, operations, facilities, systems, information, or networks;
- (g) Solicitation by any person of FAA information for which they do not meet the applicable access requirements or that is outside the scope of their official duties;

(h) A request by any person for access to FAA employees, facilities, equipment, operations, systems, information, or networks for which they do not meet the applicable access requirements or that is outside the scope of their official duties; and

(i) Suspicious or unexplained contact by any person with an FAA employee, where the person has suspicious or unexplained knowledge of the employee.

Unless requested by ASH, contractors must not disclose an elicitation attempt of the nature described above, in any other manner than to report the attempt to the COR and/or CO and request that they report it to the DCIP. If that is not feasible, or if the COR and/or CO are the suspicious actor(s), contractors may make these reports directly to the DCIP at the above email address. Contractors must not take any actions on their own initiative, as doing so may interfere with a DCIP inquiry or CI investigation.

c. Failure to cooperate with any of the activities under section b above may be considered by the FAA to be a material breach of the contract.

d. The Contractor is responsible for ensuring that the provisions of this clause flow down to its subsidiaries, subcontractors, and consultants performing this contract.

(End of clause)

3.14-15 Handling of FAA Data (April 2024)

(a) FAA Data means any data that is collected, generated, used, processed, transmitted, received, or stored on an FAA system, device, media, or file. FAA Data includes but is not limited to the following types of Sensitive Unclassified Information (SUI):

- Personally Identifiable Information (PII)
- Sensitive Personally Identifiable Information (SPII)
- Sensitive Security Information (SSI)
- For Official Use Only (FOUO)
- Sensitive Flight Data (SFD)

(b) Contractors who generate, create, process, use, transmit, receive, store, or dispose of FAA Data must use proper handling procedures required for the sensitivity of that data, in accordance with FAA Order 1600.75.

(c) Contractors requiring access to systems containing PII must follow the FAA's privacy requirements, in accordance with FAA Order 1370.121B. Contractors accessing other types of sensitive FAA Data must comply with the handling and processing requirements that are applicable to the sensitivity of that FAA Data.

(d) The contractor must not store or process FAA Data on any system, device, or media that does not meet applicable information security requirements.

(e) The contractor agrees to insert terms that conform substantially to the language of this clause in all subcontracts under this contract.

(End of clause)

SECTION J - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS

Attachment	Title	Date	No. of Pages
B-1	COMS Pricing Schedule		
B-2	Fixed Burdened Rate		
B-3	Loaded Labor Rates		
B-4	SCA WD # 2015-4189 Rev 30	12-23-2024	
B-5	SCA WD # 1980-0339 Rev 66	2-10-2025	
B-6	CBA between the International Union of Operating Engineers, Local 68-68A-68B, AFL-CIO and Velociti Services	Effective July 12, 2023 - June 30, 2026	
B-7	DBA WD # NJ20250025 Mod 2	3-14-2025	
B-8	FFP Price Model CLIN X001 Program Management		
B-9	FFP Price Model CLIN X002 PM, RD, COD		
B-10	FFP Price Model CLIN X003 Svc Call		
C-1	Performance Work Statement		
	Attachment I – Requirements		
	Section 1 Contract Scope		
	- TE I-1-1 Campus Map		
	Section 2 Personnel		
	Section 3 Contract Requirements		
	- TE I-3-1 Metrics Tables		
	Section 4 General, Environmental, Health and Safety		
	Section 5 Property		
	Section 6 References, Standards, Codes and Ordinances		
	Section 7 Contractor’s Quality Control Plan		
C-2	Performance Work Statement		
	Attachment II - Trades		
	Section 1 Plumbing		
	Section 2 Site Utilities		
	- TE II-2-1 Water Infrastructure Map – to be provided at award		

	- TE II-2-2 Sanitary Sewer Map – to be provided at award		
	- TE II-2-3 Storm Sewer Map – to be provided at award		
	Section 3 HVACR		
	Section 4 Fire Protection		
	Section 5 Electrical		
	- TE II-5-2 Electrical Distribution Map – to be provided at award		
	- TE II-5-7 PMCS Equipment		
	Section 6 Elevators		
	Section 7 Interior / Exterior		
	- TE II-7-1 Gates / Fences / Barriers Maps – to be provided at award		
	Section 8 Central Utilities Plant		
	- TE II-8-2 York Chiller Log Sheet		
	- TE II-8-3 CUP Boiler Log Sheet		
	- TE II-8-4 B316 Heat Exchanger Log Sheet		
	- TE II-8-5 B316 Boiler Log Sheet		
	- TE II-8-6 CUP Heat Exchanger Log Sheet		
	- TE II-8-7 CUP Log Sheet		
	Section 9 Water Treatment		
	Section 10 Generators, Equipment, and Vehicles		
	Section 11 Electronics and Automated Security		
	Section 12 Material Handling		
	Section 13 Environmental, Compliance and Water Disposal		
	Section 14 Roads and Surfaces		
	- TE II-14-1 Roads Map – to be provided at award		
	Section 15 Pest Control		
C-3	Equipment List by PM's		
C-4	PM Procedure Steps		
L-1	Corporate Experience Information Form		
L-2	Past Performance Evaluation Survey		
L-3	SIR Q and A Template		
L-4	Historical Service Call Data		

SECTION K - REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF BIDDERS

3.1-1 CLAUSES AND PROVISIONS INCORPORATED BY REFERENCE (JUL 2019)

This screening information request (SIR) or contract, as applicable, incorporates by reference the provisions or clauses listed below with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make the full text available, or offerors and contractors may obtain the full text via Internet at:

<https://fast.faa.gov/contractclauses.cfm>.

3.2.2.3-82 PROHIBITION ON CONDUCTING RESTRICTED BUSINESS OPERATIONS IN SUDAN- CERTIFICATION (JUL 2012)

3.6.3-4 RECOVERED MATERIAL PRODUCTS CERTIFICATION (OCT 2024)

3.2.2.3-2 MINIMUM OFFER ACCEPTANCE PERIOD (APR 2024)

(a) 'Acceptance period,' as used in this provision, means the number of calendar days the FAA has to award a contract from the date the SIR specifies for receiving offers.

(b) This provision supersedes any language about the acceptance period appearing elsewhere in this SIR.

(c) The FAA requires a minimum acceptance period of 120 calendar days.

(d) The offeror may specify a longer acceptance period than the period shown in paragraph (c). To specify a longer period, fill in the blank: The offeror allows the following acceptance period: ____ calendar days.

(e) The FAA may reject an offer allowing less than the FAA's minimum acceptance period.

(f) The offeror agrees to fulfill the offer completely if the FAA accepts the offer in writing within:

- (1) The acceptance period stated in paragraph (c) of this provision; or
- (2) Any longer acceptance period stated in paragraph (d) of this provision.

(End of provision)

3.2.2.3-81 PROHIBITION AGAINST CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS-REPRESENTATION (JUL 2024)

(a) Definition: "Inverted Domestic Corporation" and "subsidiary" are defined in AMS clause 3.2.2.3-83 "Prohibition Against Contracting with Inverted Domestic Corporations."

(b) The FAA is not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation or a subsidiary of an inverted domestic corporation unless the requirement is waived in accordance with applicable AMS guidance.

(c) Representation. By submission of its offer, the offeror represents that it is not an inverted domestic corporation and is not a subsidiary of one.

(End of Provision)

3.2.2.7-7 CERTIFICATION REGARDING RESPONSIBILITY MATTERS (JUL 2024)

(a)(1) The Offeror certifies, to the best of its knowledge and belief, that:

(i) All representations and certifications, as reflected in the System for Award Management (SAM) are current and accurate as of the date the proposal/offer is submitted. If the Offeror represents itself as an SDVOSB, the Offeror certifies it is certified as an SDVOSB under the Small Business Administration's Veteran Small Business Certification Program (VetCert) at the time of offer. The Offeror must provide immediate written notice to the Contracting Officer if at any time prior to award the Offeror and/or any of its principals learns that any certification or representation in SAM or on VetCert was erroneous when this proposal/offer was submitted or has become erroneous by reason of changed circumstances.

(ii) The Offeror and/or any of its Principals-

(A) **Are [] are not []** presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) **Have [] have not []** within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public- (Federal, state, or local) contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws or receiving stolen property; and

(C) **Are [] are not []** presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in subdivision (a)(1) (ii)(B) of this provision.

(D) **Have [], have not []**, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds \$10,000 for which the liability remains unsatisfied.

(1) Federal taxes are considered delinquent if both of the following criteria apply:

(i) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(ii) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(2) Examples-

(i) The taxpayer has received a statutory notice of deficiency, under I.R.C. Sec. 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability.

Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(ii) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. Sec. 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. During the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(iii) The taxpayer has entered into an installment agreement pursuant to I.R.C. Sec. 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(iv) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(E) The Offeror ☐ has ☐ has not ☐ within a three-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) 'Principals,' for the purposes of this certification, means officers; directors; owners; partners; and persons having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a subsidiary, division, or business segment, and similar positions). THIS CERTIFICATION CONCERNS A MATTER WITHIN THE JURISDICTION OF AN AGENCY OF THE UNITED STATES AND THE MAKING OF A FALSE, FICTITIOUS, OR FRAUDULENT CERTIFICATION MAY RENDER THE MAKER SUBJECT TO PROSECUTION UNDER SECTION 1001, TITLE 18, UNITED STATES CODE.

(b) The Offeror must provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this SIR. However, the certification will be considered in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror non-responsible.

(d) Nothing contained in the foregoing must be construed to require establishment of a system of records to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this SIR for default.

(End of provision)

3.2.2.7-9 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (July 2024)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the FAA will not enter into a contract with any corporation that

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the FAA is aware of the unpaid tax liability, unless the FAA has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the FAA is aware of the conviction, unless the FAA has considered suspension or debarment of the corporation and made a determination that the action is not necessary to protect the interests of the Government.

(b) The offeror represents that

(1) It **is ___ is not ___** a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It **is ___ is not ___** a corporation that was convicted of a felony criminal violation under a Federal criminal law within the preceding 24 months.

(End of provision)

3.2.3-1 Cost Accounting Standards Notices and Certification (January 2022)

Note: This notice does not apply to small businesses or foreign governments. This notice is in three parts, identified as the following subsections I through III.

Offerors must examine each part and provide the requested information to determine Cost Accounting Standards (CAS) requirements applicable to any resultant contract.

I. DISCLOSURE STATEMENT-COST ACCOUNTING PRACTICES AND CERTIFICATION

(a) Any contract more than \$2,000,000 resulting from this screening information request (SIR), except contracts in which the price negotiated is based on:

(1) Established catalog or market prices of commercial items sold in substantial quantities to the general public, or (2) Prices set by law or regulation, will be subject to the requirements of CAS rules, except for those contracts which are exempt as specified in CAS rules.

(b) Any offeror submitting an offer which, if accepted, will result in a contract subject to the requirements of CAS rules must, as a condition of contracting, submit a Disclosure Statement as required by CAS rules. The Disclosure Statement must be submitted as a part of the offer under this SIR unless the offeror has already submitted a Disclosure Statement disclosing the practices used in connection with the pricing of this offer. If an applicable Disclosure Statement has already been submitted, the offeror may satisfy the requirement for submission by providing the information requested in paragraph (c) of Part I of this provision.

Caution: In the absence of specific regulations or agreement, a practice disclosed in a Disclosure Statement must not, by virtue of such disclosure, be deemed to be a proper, approved, or agreed-to practice for pricing offers or accumulating and reporting contract performance cost data.

(c) Check the appropriate box below:

☒ (1) Certificate of Concurrent Submission of Disclosure Statement.

The offeror hereby certifies that, as a part of the offer, copies of the Disclosure Statement have been submitted as follows: (i) Original and one copy to the cognizant Administrative Contracting Officer (ACO), and (ii) One copy to the cognizant contract auditor. (Disclosure must be on Form No. CASB DS-1. Forms may be obtained from the cognizant ACO.)

Date of Disclosure Statement:

Name and Address of Cognizant ACO where filed:

The offeror further certifies that practices used in estimating costs in pricing this offer are consistent with the cost accounting practices disclosed in the Disclosure Statement.

☒ (2) Certificate of Previously Submitted Disclosure Statement.

The offeror hereby certifies that Disclosure Statement was filed as follows:

Date of Disclosure Statement:

Name and Address of Cognizant ACO where filed:

The offeror further certifies that the practices used in estimating costs in pricing this offer are consistent with the cost accounting practices disclosed in the applicable disclosure statement.

I (3) Certificate of Monetary Exemption.

The offeror hereby certifies that the offeror, together with all divisions, subsidiaries, and affiliates under common control, did not receive net awards of negotiated prime contracts and subcontracts subject to CAS totaling more than \$50 million (of which at least one award exceeded \$1 million) in the cost accounting period immediately preceding the period in which this proposal was submitted. The offeror further certifies that if such status changes before an award resulting from this offer, the offeror will advise the Contracting Officer immediately.

I (4) Certificate of Interim Exemption.

The offeror hereby certifies that:

- (i) the offeror first exceeded the monetary exemption for disclosure, as defined in (3) of this subsection, in the cost accounting period immediately preceding the period in which this offer was submitted; and
- (ii) in accordance with CAS rules, the offeror is not yet required to submit a Disclosure Statement.

The offeror further certifies that if an award resulting from this offer has not been made within 90 days after the end of that period, the offeror will immediately submit a revised certificate to the Contracting Officer, in the form specified under subparagraph (c)(1) or (c)(2) of Part I of this provision, as appropriate, to verify submission of a completed Disclosure Statement.

Caution: Offerors currently required to disclose because they were awarded a CAS-covered prime contract or subcontract of \$50 million or more in the current cost accounting period may not claim this exemption (4). Further, the exemption applies only in connection with offers submitted before expiration of the 90-day period following the cost accounting period in which the monetary exemption was exceeded.

II. COST ACCOUNTING STANDARDS-ELIGIBILITY FOR MODIFIED CONTRACT COVERAGE

If the offeror is eligible to use the modified provisions of CAS rules and elects to do so, the offeror must indicate by checking the box below. Checking the box below must means that the resultant contract is subject to the Disclosure and Consistency of Cost Accounting Practices clause in lieu of the Cost Accounting Standards clause.

☐ The offeror hereby claims an exemption from the Cost Accounting Standards clause under the provisions of CAS rules and certifies that the offeror is eligible for use of the Disclosure and Consistency of Cost Accounting Practices clause because during the cost accounting period immediately preceding the period in which this offer was submitted, the offeror received less than \$50 million in awards of CAS-covered prime contracts and subcontracts, or the offeror did not receive a single CAS-covered award exceeding \$1 million. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

Caution: An offeror may not claim the above eligibility for modified contract coverage if this offer is expected to result in the award of a CAS-covered contract of \$50 million or more or if, during its current cost accounting period, the offeror has been awarded a single CAS-covered prime contract or subcontract of \$50 million or more.

III. ADDITIONAL COST ACCOUNTING STANDARDS APPLICABLE TO EXISTING CONTRACTS

The offeror must indicate below whether award of the contemplated contract would, in accordance with subparagraph (a)(3) of the Cost Accounting Standards clause, require a change in established cost accounting practices affecting existing contracts and subcontracts.

☐ Yes ☐ No

(End of provision)

3.3.1-35 CERTIFICATION OF REGISTRATION IN SYSTEM FOR AWARD MANAGEMENT (APR 2022)

In accordance with Clause 3.3.1-33, System for Award Management (SAM), the offeror certifies that they are registered in the SAM Database and have entered all mandatory information including the Unique Entity Identifier (UEI) or Electronic Funds Transfer (EFT) indicator.

Name:
Title:
Phone Number:

(End of provision)

3.3.1-41 ELECTRONIC INVOICING - REPRESENTATION (OCT 2024)

(a) The FAA intends to use electronic invoicing as per AMS clause 3.3.1-40 Electronic Submission of Payment Requests for this contract when it is awarded. Offerors must indicate whether they are currently using this form of electronic invoicing on other contract(s), or can easily adapt to it upon award of the contract.

Yes ☐
No ☐

(b) If an offeror indicates "No" the offeror must explain in this space why a waiver of this requirement should be approved in the event they were awarded the contract.

(c) Waiver requests will be handled per paragraph (f) of AMS clause 3.3.1-40.

(End of provision)

3.5-14 Representation of Limited Rights Data and Restricted Computer Software (January 2010)

(a) This Screening Information Request (SIR) sets forth the work to be performed if a contract award results, and the Government's known delivery requirements for data, as defined in the clause "Rights in Data-General." Any resulting contract may also provide the Government the option to order additional data under the "Additional Data Requirements" clause at AMS 3.5-15, if included in the contract. Any data delivered under the resulting contract will be subject to the "Rights in Data-General" clause that is to be included in this contract. Under the latter clause, a Contractor may withhold from delivery data that qualify as limited rights data or restricted computer software, and deliver form, fit, and function data instead. The latter clause also may be used with its Alternates II and/or III to obtain delivery of limited rights data or restricted computer software, marked with limited rights or restricted rights notices, as appropriate. In addition, use of Alternate V with this latter clause provides the Government the right to inspect such data at the Contractor's facility.

(b) By completing the remainder of this paragraph, the offeror represents that it has reviewed the requirements for the delivery of technical data or computer software and states (offeror check appropriate block) -

☐ (1) None of the data proposed for fulfilling the data delivery requirements qualifies as limited rights data or restricted computer software; or

[1] (2) Data proposed for fulfilling the data delivery requirements qualify as limited rights data or restricted computer software and are identified as follows:

[REDACTED]

[REDACTED]

[REDACTED]

(c) Any identification of limited rights data or restricted computer software in the offeror's response is not determinative of the status of such data should the contract be awarded to the offeror.

(End of Provision)

3.6.4-15 Buy American Act Certificate (January 2023)

(a) (1) The offeror certifies that each end product, except as listed below in paragraph (b), is a domestic end product.

(2) The offeror must list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the offeror must also indicate whether these foreign end products whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of domestic content is unknown, select "no".

(3) The terms "domestic end product," "end product," and "foreign end product" are defined in the clause AMS 3.6.4-2 "Buy American Act-Supplies."

(b) Foreign End Products

Line Item No.	Country of Origin	Exceeds 55% Domestic Content Yes/No
---------------	-------------------	--

[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

[list as necessary]

(c) The offeror agrees to furnish any additional information as the Contracting Officer may request to verify the above information and to evaluate the offer.

(End of provision)

3.6.4-17 Buy American Act and FAA Buy American Preference-USMCA Implementation Act-Balance of Payments Certificate (January 2024)

(a) The offeror certifies that each end product or service, except as listed below, is a domestic end product or service (as defined in the AMS clause 3.6.4-8 "Buy American Act and FAA Buy American Preference-USMCA Implementation Act-Balance of Payments Program") and components of unknown origin are considered to have been mined, produced, or manufactured outside the United States.

Excluded End Product	Country of Origin

[list as necessary]

(b) Under certain circumstances, offers of United States- Mexico-Canada Agreement (USMCA) country end products (as defined in the AMS clause 3.6.4-8 "Buy American Act and FAA Buy American Preference-USMCA Implementation Act-Balance of Payments Program") will be given the same preference as domestic end products. To obtain this preference, offerors must identify below those end products that are USMCA country end products. Products that are not identified and certified below will not be deemed USMCA country end products

Excluded End Product	USMCA Country of Origin

[list as necessary]

(c) The offeror agrees to furnish any additional information as the Contracting Officer may request to verify the above information and to evaluate the offer. Offerors may obtain from the Contracting Officer lists of articles, materials, and supplies excepted from the Buy American Act or FAA Buy American Preference.

(End of provision)

3.6.4-18 Certification Regarding Steel and Manufactured Goods (Apr 2022)

In accordance with 49 USC Section 50101, the offeror/contractor certifies that: [Check one] The steel and manufactured goods, including components and subcomponents provided in accordance with this contract are entirely produced in United States (or deemed United States produced pursuant to International Agreement) The cost of components and subcomponents produced in the United States is more than 60 percent of the cost of all components of the facility or equipment and final assembly of the facility or equipment has occurred in the United States.

(End of provision)

3.6.4-19 PROHIBITION ON CONTRACTING WITH ENTITIES ENGAGING IN CERTAIN ACTIVITIES OR TRANSACTIONS RELATED TO IRAN- REPRESENTATION AND CERTIFICATIONS (JAN 2024)

(a) Definitions. "Person"

(1) Means

(i) A natural person;

(ii) A corporation, business association, partnership, society, trust, financial institution, insurer, underwriter, guarantor, and any other business organization, any other nongovernmental entity, organization, or group, and any governmental entity operating as a business enterprise; and

(iii) Any successor to any entity described in paragraph (1)(ii) of this definition; and

(2) Does not include a government or governmental entity that is not operating as a business enterprise.

"Sensitive Technology"

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically

(i) To restrict the flow of free, unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict the speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to Section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(3) The offeror must e-mail any questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(b) Certification. Except as provided in paragraph (c) of this provision or if a waiver has been granted in accordance with AMS Iran Sanctions Guidance, by submission of its offer, the offeror

(1) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(2) Certifies that the offeror, or any other entity owned or controlled by, or person controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act of 1996. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(3) Certifies that the offeror, and any other entity owned or controlled by, or person controlled by the offeror, does not knowingly engage in any transaction that exceeds \$10,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act 50 USC 1701 et. seq. (see the Department of the Treasury's Office of Foreign Assets Control (OFAC) Specially Designated Nationals and Blocked Persons List on their website).

(c) The certification requirement of paragraph (b) of this provision does not apply if the acquisition is subject to the trade-related acts in AMS Trade Agreements Guidance.

(End of provision)

3.8.9-1 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (JUL 2023)

(a) Definitions. As used in this provision-

Backhaul, Covered telecommunications equipment or services, Critical technology, Interconnection Arrangements, Reasonable inquiry, Roaming and Substantial or essential component have the meanings provided in AMS clause 3.8.9-2 "Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment".

(b) Prohibitions.

(1) Section 889(a) (1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in this prohibition will be construed to-

(i) Prohibit the head of the agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a) (1) (B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020 from entering into a contract or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential part of any system or as critical technology as part of any system. This prohibition applies to any entity that uses covered telecommunications equipment or services, including uses not in support of the Government. Nothing in this prohibition will be construed to-

(i) Prohibit the head of the agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures: The offeror must review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from Federal awards for covered telecommunications equipment or services.

(d) Representations.

(1) The Offeror represents that it ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror must provide the additional disclosure information required at (e) if the Offeror responds "will" and

(2) After conducting a reasonable inquiry for purposes of this representation, the Offeror represents that it ☐ does ☐ does not ☐ use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror must provide the additional disclosure information required at paragraph (e) if the Offeror indicates "does".

(e) Disclosures. Disclosure for the representation in paragraph (d) (1) of this provision If the Offeror has responded "will" in the representation in paragraph (d) (1) of this provision, the Offeror must provide the following information as part of the offer--

(1) For covered equipment

- (i) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known;
- (ii) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and
- (iii) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b) (1) of this provision.

(2) For covered services-

- (i) If the service is related to item maintenance, a description of all covered telecommunications services offered (include on the item being maintained: brand, model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable; or
- (ii) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed uses of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

Disclosure for representation in paragraph (d) (2) of this provision. If the Offeror has responded "does" to paragraph (d)(2) of this provision, the offeror must provide the following information as part of the offer-

(3) For covered equipment

- (i) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known;
- (ii) A description of all covered telecommunications equipment offered (include brand; model number, such as original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable); and
- (iii) Explanation of the proposed use of covered telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b) (2) of this provision.

(4) For covered services-

- (i) If the service is related to item maintenance, a description of all covered telecommunications services offered (include on the item being maintained: brand, model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(ii) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed uses of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of Provision)

3.8.9-3 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES- REPRESENTATION (JUL 2023)

(a) Definitions. As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meanings per the clause 3.8.9-2 "Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment".

(b) Procedures. The offeror must review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for covered telecommunications equipment or services.

(c) Representation.

(1) The offeror represents that it does, does not provide covered telecommunications equipment or services as part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it does, does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

3.8.9-6 Federal Acquisition Supply Chain Security Act Orders—Representation and Disclosures (January 2024)

(a) *Definitions.* As used in this provision, *Covered article*, *FASCSA order*, *Intelligence community*, *National security system*, *Reasonable inquiry*, *Sensitive compartmented information*, *Sensitive compartmented information system*, and *Source* have the meaning provided in the AMS Clause 3.8.9–7, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in

paragraph (b)(1) of AMS Clause 3.8.9–7, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(c) *Procedures.*

- (1) The Offeror must search in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of AMS Clause 3.8.9–7, Federal Acquisition Supply Chain Security Act Orders—Prohibition. Issued FASCSA orders may be identified by selecting the “View FASCSA Orders” button from the SAM homepage (<https://www.sam.gov>) and viewing or downloading FASCSA orders from the Supply Chain Security Orders webpage.
- (2) The Offeror must review the SIR for any FASCSA orders that are not in SAM but are effective and do apply to the SIR and resultant contract (see AMS Guidance T3.8.9.C.4.c.(2)(A)(ii)).
- (3) FASCSA orders issued after the publication date of the SIR do not apply unless the order is subsequently added to the SIR via amendment.

(d) *Representation.* By submission of this offer, the offeror represents that it has conducted a “reasonable inquiry” (as defined in AMS Clause 3.8.9-7), and that the offeror does not propose to provide or use in response to this SIR any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the SIR was issued, except as waived by the SIR, or as disclosed in paragraph (e) *Disclosures*, below.

(e) *Disclosures.* The purpose for this disclosure is so the FAA may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror must provide the following information as part of the offer:

- (1) Name of the product or service provided to the Government;
- (2) Name of the covered article or source subject to a FASCSA order;
- (3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;
- (4) Brand;
- (5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);
- (6) Item description; and
- (7) Reason why the applicable covered article or the product or service is being provided or used.

(f) *FAA review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (e) *Disclosures*, to determine if any waiver may be sought. A

Contracting Officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of provision)

3.13-4 CONTRACTOR IDENTIFICATION NUMBER - UNIQUE ENTITY IDENTIFIER (UEI) (APR 2022)

(a) Definitions. As used in this provision:

"Contractor Identification Number," as used in this provision, means " Unique Entity Identifier" (UEI)(also known as the Unique Entity ID), which is a nine-digit number assigned by the System for Award Management (SAM) to identify unique business entities (taken from AMS Clause 3.3.1-33 "System for Award Management".)

"Electronic Funds Transfer indicator " means the 4-character suffix to the Unique Entity Identifier. This 4-character suffix may be assigned at the discretion of the business concern to establish additional SAM records for identifying alternative Electronic Funds Transfer (EFT) accounts for the same parent concern.

(b) Contractor identification is essential for receiving payment and complying with statutory contract reporting requirements. Therefore, the offeror must provide its UEI or EFT indicator below. The UEI will be used by the Contracting Officer to verify that the offeror is registered in the SAM database.

UEI or EFT indicator: _____

(c) If the offeror does not have a UEI, it should obtain one via www.sam.gov.

(d) The offeror should be prepared to provide the following information when requesting a UEI:

- (1) Company legal business name.
- (2) Tradestyle, doing business, or other name by which your entity is commonly recognized.
- (3) Company Physical Street Address, City, State, and ZIP Code.
- (4) Company Mailing Address, City, State and ZIP Code (if different from physical street address).
- (5) Company Telephone Number.
- (6) Date the company was started.
- (7) Number of employees at your location.
- (8) Chief executive officer/key manager.
- (9) Line of business (industry).
- (10) Company Headquarters name and address (reporting relationship within your entity).

(End of provision)

DRAFT

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO BIDDERS

3.1-1 CLAUSES AND PROVISIONS INCORPORATED BY REFERENCE (JUL 2019)

This screening information request (SIR) or contract, as applicable, incorporates by reference the provisions or clauses listed below with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make the full text available, or offerors and contractors may obtain the full text via Internet at:

<https://fast.faa.gov/contractclauses.cfm>.

3.2.2.3-1 FALSE STATEMENTS IN OFFERS (APR 2024)

3.2.2.3-6 SUBMITTALS IN THE ENGLISH LANGUAGE (SEP 2020)

3.2.2.3-7 SUBMITTALS IN U.S. CURRENCY (SEP 2020)

3.2.2.3-12 AMENDMENTS TO SCREENING INFORMATION REQUESTS (APR 2024)

3.2.2.3-13 SUBMISSION OF INFORMATION/DOCUMENTATION/OFFERS (APR 2024)

3.2.2.3-14 LATE SUBMISSIONS, MODIFICATIONS, AND WITHDRAWALS OF SUBMITTALS (APR 2024)

3.2.2.3-16 RESTRICTING, DISCLOSING AND USING DATA (APR 2024)

3.2.2.3-17 PREPARING OFFERS (APR 2024)

3.2.2.3-18 PROSPECTIVE OFFEROR'S REQUESTS FOR EXPLANATIONS (APR 2024)

3.2.2.3-19 CONTRACT AWARD (JUL 2004)

3.2.2.3-31 FACILITIES CAPITAL COST OF MONEY (JUL 2004)

3.2.2.3-15 AUTHORIZED NEGOTIATORS (APR 2024)

The offeror states that the following persons are authorized to negotiate on the offeror's behalf with the FAA in connection with this offer:

Name:

Title:

Phone number:

Email:

(End of provision)

3.2.2.3-20 OFFERS (JAN 2018)

(a) The offeror (you) must submit responses to this SIR by the following electronic means via email. Your offer must arrive at the place and by the time specified in the SIR.

(b) Such offers must refer to this SIR and include, as applicable, the item or sub-items, quantities, unit prices, time and place of delivery, all representations and other information required and a statement specifying the extent of your agreement with all the FAA's (we) terms, conditions, and provisions.

(c) We may decline to consider offers that do not include required information, or that reject any of the terms, conditions and provisions of the SIR.

(d) Send your offer to sarah.e.mccarty@faa.gov.

(e) We will not be responsible for any failure attributable to transmitting or receiving the offer, unless it falls under section (a) of AMS provision 3.2.2.3-14 "Late Submissions, Modifications, and Withdrawals of Submittals".

(End of provision)

3.2.4-1 TYPE OF CONTRACT (APR 1996)

The FAA contemplates award of a Firm-Fixed-Price, Time-and-Material, Cost-type Indefinite Delivery Indefinite Quantity (ID/IQ) contract resulting from this Screening Information Request.

(End of provision)

3.6.1-17 NORTH AMERICAN INDUSTRY CLASSIFICATION SYSTEM (NAICS) CODE (OCT 2022)

The North American Industry Classification System (NAICS) code for this procurement is: 561210. The small business size standard as defined by the Small Business Administration (SBA) is the following:

- For NAICS codes based on SBA's calculation of annual receipts, the annual average receipts cannot exceed \$47.0M.
- For NAICS codes based on the number of employees, the average number of employees over the last 24-month period cannot exceed N/A.

(End of provision)

3.8.2-9 SITE VISIT (JUL 2023)

Offerors or quoters are urged and expected to inspect the site where services are to be performed and to satisfy themselves regarding all general and local conditions that may affect the cost of contract performance, to the extent that the information is reasonably obtainable. In no event shall failure to inspect the site constitute grounds for a dispute after contract award.

(End of provision)

3.9.1-3 PROTEST (APR 2024)

AS A CONDITION OF SUBMITTING AN OFFER OR RESPONSE TO THIS SIR (OR OTHER SOLICITATION, IF APPROPRIATE), THE OFFEROR OR POTENTIAL OFFEROR AGREES TO BE BOUND BY THE FOLLOWING PROVISIONS RELATING TO PROTESTS:

(a) Protests concerning Federal Aviation Administration Screening Information Requests (SIRs) or awards of contracts shall be resolved through the Federal Aviation Administration (FAA) dispute resolution system at the Office of Dispute Resolution for Acquisition (ODRA) and shall be governed by the procedures set forth in 14 C.F.R. Parts 14 and 17, which are hereby incorporated by reference. Judicial review, where available, will be in accordance with 49 U.S.C. 46110 and shall apply only to final agency decisions. A protestor may seek review of a final FAA decision only after its administrative remedies have been exhausted.

(b) Offerors initially should attempt to resolve any issues concerning potential protests with the Contracting Officer. The Contracting Officer should make reasonable efforts to answer questions promptly and completely, and, where possible, to resolve concerns or controversies. The protest time limitations, however, will not be extended by attempts to resolve a potential protest with the Contracting Officer.

(c) The filing of a protest with the ODRA may be accomplished by mail, overnight delivery, hand delivery, or by facsimile or if permitted by order of the ODRA, by electronic filing. A protest is considered to be filed on the date it is received by the ODRA during normal business hours. The ODRA's normal business hours are from 8:30 am to 5:00 pm Eastern Time.

(d) Only an interested party may file a protest. An interested party is one whose direct economic interest has been or would be affected by the award or failure to award an FAA contract. Proposed subcontractors are not "interested parties" within this definition.

(e) A written protest must be filed with the ODRA within the times set forth below, or the protest shall be dismissed as untimely:

(1) Protests based upon alleged improprieties in a solicitation or a SIR that are apparent prior to bid opening or the time set for receipt of initial proposals shall be filed prior to bid opening or the time set for the receipt of initial proposals.

(2) In procurements where proposals are requested, alleged improprieties that do not exist in the initial solicitation, but which are subsequently incorporated into the solicitation, must be protested not later than the next closing time for receipt of proposals following the incorporation.

(3) For protests other than those related to alleged solicitation improprieties, the protest must be filed on the later of the following two dates:

(i) Not later than seven (7) business days after the date the protester knew or should have known of the grounds for the protest; or

(ii) If the protester has requested a post-award debriefing from the FAA Product Team, not later than five (5) business days after the date on which the Product Team holds that debriefing.

(f) Protests shall be filed at:

(1) For filing by hand delivery, courier or other form of in-person delivery:

Office of Dispute Resolution for Acquisition
Federal Aviation Administration
600 Independence Avenue SW., Room 2W100 Washington, DC 20591; or

For filing by U.S. Mail:
Office of Dispute Resolution for Acquisition
Federal Aviation Administration
800 Independence Avenue SW Washington, DC 20591
[Attention: AGC-70, Wilbur Wright Bldg. Room 2W100]; or

Telephone: (202) 267-3290
Facsimile: (202) 267-3720
Alternate Facsimile: (202) 267-1293; or

(2) Other address as specified in 14 CFR Part 17.

(g) At the same time as filing the protest with the ODRA, the protester shall serve a copy of the protest on the Contracting Officer and any other official designated in the SIR for receipt of protests by means reasonably calculated to be received by the Contracting Officer on the same day as it is to be received by the ODRA. The protest shall include a signed statement from the protester, certifying to the ODRA the manner of service, date, and time when a copy of the protest was served on the Contracting Officer and other designated official(s).

(h) Additional information and guidance about the ODRA dispute resolution process for protests can be found on the ODRA Website at <http://www.faa.gov>.

(End of provision)

L.1 POINT OF CONTACT

The Contracting Officer (CO), Sarah McCarty, is the sole point of contact for this acquisition. Any questions or concerns must be submitted in writing via email to the CO at sarah.e.mccarty@faa.gov. Reference “692M15-24-R-00010 COMS” in the email subject line.

L.2 GENERAL PROPOSAL INSTRUCTIONS

Offerors are expected to examine the entire SIR. Failure to do so will be at the Offeror's own risk. Replies to this SIR must follow the outlines and/or instructions concerning format given below and should be free of grammatical errors. Offerors should assume that the FAA has no prior knowledge of their proposed approach, capability, and/or experience and that the FAA will base its evaluation on the information presented by the Offeror. The Offeror is required to submit sufficient information to enable Government personnel to fully ascertain capabilities of the Offeror to perform the requirements. The proposal must be sufficient in detail and scope to permit evaluation and provide the evaluators a clear understanding of the Offeror's capability to meet the requirements as required by the SIR. The Offeror must respond to all the requirements of the SIR. The Offeror has the burden of proof to demonstrate compliance with all the evaluation factors identified in the SIR. It is not the responsibility of the Government to search for proposal information which is not addressed in the appropriate section. Cost/pricing information must appear only in Volume 2 Cost/Price Proposal. Inclusion of cost/pricing information elsewhere within the proposal may be considered sufficient grounds for disqualification. Offeror must submit only one proposal; alternate proposals will not be considered. Any proposal that does not explicitly comply with proposal instructions and SIR requirements may be considered non-responsive and may be removed from further consideration for contract award.

In presenting material in the proposal, the Offeror is advised that quality of information is more important than quantity. Clarity, brevity, and logical organization should be emphasized during proposal preparation. It is the Offeror's responsibility to present enough information to allow the Government to evaluate the proposal without communications. Unsubstantiated statements that the prospective Offeror understands, can, or will comply with the PWS or paraphrasing the requirements or parts thereof are considered inadequate by the Government and may make an offer unacceptable. Lack of detail in a proposal may be deemed a weakness or risk by evaluators. Offerors must not assume that they will be contacted or afforded an opportunity to clarify, discuss, or revise their proposal if Government evaluators identify omissions or lack of detail.

Throughout these instructions, “Offeror” refers to the entity submitting the proposal and that would serve as prime contractor if awarded the contract. A “Subcontract” is any

contract entered into by a subcontractor to furnish supplies or services for performance of the prime contract.

It is the Offeror's responsibility to monitor <https://sam.gov> for announcements of any amendments, updates, or activities related to this procurement.

L.3 EXPENSES RELATED TO OFFEROR SUBMISSION

The Government will not pay for the information solicited or reimburse the Offeror for any costs incurred for (1) preparing and submitting the response to this SIR, (2) responding to Government communications requests, or (3) negotiating the contract terms and conditions or any other pre-award activities.

L.4 MANDATORY SITE VISIT

Offerors are required to attend a mandatory organized site visit. This site visit is scheduled for **X:XX XM Eastern Time on DATE**. Each Offeror must have at least one (1) representative from the Prime Offeror at the site visit.

Offerors planning to attend the mandatory site visit must confirm attendance in writing via email to the CO no later than **X:XX XM Eastern Time on DATE**. If the Offeror's email confirming attendance is not received by this time, the Offeror will not be permitted to attend the site visit and their proposal will be deemed non-responsive. Offeror's written confirmation of attendance will provide company name (Offeror and subcontractor, if applicable), SAM UEI for all companies, and the name and title of attendee(s). It is the Offeror's responsibility to verify that the Government has received the attendance request.

Attendees need to arrive at the William J. Hughes Technical Center for Advanced Aerospace, Security Operations Center, no later than 15 minutes before the start of the site visit to be processed for a base entry pass.

Offerors are advised that this will be the only site visit scheduled. Arrangements for individual visits will not be honored. Remarks, explanations, or answers to questions provided at this site visit will not alter the SIR terms. The SIR is only revised via formal written amendments (SF-30 Amendment of Solicitation).

Failure to attend the mandatory site visit will preclude Offerors from consideration for award. Proposals received from Offerors that failed to attend the mandatory site visit will not be accepted, will be considered deficient, and will be ineligible for award.

L.5 SUBMISSION OF QUESTIONS

Questions and comments regarding this SIR and/or resulting from attendance at the site visit must be submitted, in writing via email, to the CO no later than **X:XX XM Eastern Time**

on DATE. The FAA will not respond to Offeror questions, concerns, clarification requests, and discrepancies submitted via any means other than through e-mail to the CO. All questions must be submitted using SIR, Section J Attachment L-3 SIR Q&A Template. Offerors may submit questions, using the Template, via multiple submissions at any point from SIR Release until question submission due date above. However, questions submitted after the due date above will not be answered except at the CO's discretion. It is the Offeror's responsibility to verify that the Contracting Officer has received the submission.

Responses to questions and comments regarding this SIR and/or the site visit will only be provided directly to Offerors that attend the mandatory site visit. The Government reserves the right to post the responses publicly on SAM.gov, but the original submitter of the question or clarification request will not be identified.

The Contracting Officer is the sole point of contact for this procurement. Offerors must not contact the Program Office at any time regarding this requirement, and Offerors may be eliminated from the competition for doing so.

L.6 PROPOSAL FORMAT

Written proposals must be formatted using at least Times New Roman, 12-point font (no reduction permitted), letter sized (8.5 x 11 inches), single-spaced, with 1-inch margins on all sides. Tables, charts (excluding the organizational chart), graphics, headers, footers, and figures should not use fonts smaller than an 8-point font. All pages should be numbered with the Volume and page number.

All proposal documents must be in MS Word, MS Excel, and/or a fully searchable Portable Document Format (.pdf) file. Files must not be embedded in .pdf documents. Files must not be password-protected. In addition, the Offeror must not lock any cells, and all formulas entered by the Offeror must be visible to the Government.

Glossaries should not be used to define the proposed solution or approaches and will not be evaluated. Excluded from the page count limitations are volume covers; cover pages; tab dividers; title pages; transmittal letters; tables of contents; lists of figures, glossaries, acronyms, and abbreviations; letters of intent; and statement of current employment. Proposal pages beyond the specified page limitation will not be reviewed as part of the evaluation.

L.7 MARKING OF INFORMATION AND RESTRICTION ON DISCLOSURE

The Offeror should mark all pages of the proposal that contain sensitive information as "Source Selection Sensitive." Any restrictions imposed by the Offeror on the use or disclosure of the proposal content must be clearly marked on the title pages and the individual pages, as necessary.

L.8 PROPOSAL SUBMISSION

Proposals must be submitted via email to the CO by **X:XX XM Eastern Time on DATE**. Reference “692M15-24-R-00010 COMS [insert Offeror’s Name]” in the email subject line. The submission date and time for the proposal must be no later than the date and time specified in Block 8 of Solicitation, Offer and Award or as amended via an SF-30 Amendment of Solicitation. Offerors are responsible for ensuring that submitted proposals are received by the Government prior to the specified submission date and time. Any proposal received after the specified submission date and time is considered “late” in accordance with AMS 3.2.2.3-14 Late Submissions, Modifications, and Withdrawals of Submittals and will not be evaluated.

Please note that the size limit for each individual email is 10 megabytes. While multiple emails are acceptable, please specify email number (e.g., email 1 of 3, etc.) in the email Subject Line. Compressed files (e.g., zip files) have the potential to be rejected by the FAA system. If an Offeror compresses its submission, it is the Offeror’s responsibility to ensure the offer has successfully transmitted and to verify that the Government has received the submission. The Government will not be responsible for any failure attributable to transmitting or receiving the offer, whether or not the Offeror compresses its submission.

The proposal must be signed by an official who is legally authorized to negotiate on behalf of the Offeror and who is legally authorized to enter into an Agreement.

If an Offeror believes that these instructions contain an error, an omission, or are otherwise invalid, the Offeror must immediately notify the CO in writing via email and provide supporting rationale. Discrepancies not brought to the attention of the Government prior to proposal submission are waived.

L.9 CONTRACTOR RESPONSIBILITY

The FAA only awards contract(s) to responsible Contractors. The Contracting Officer will make a determination of Offeror responsibility for the apparent successful Offeror that appears likely to receive an award. An Offeror must be deemed responsible to be eligible for award. At a minimum, in order to be determined responsible, an Offeror must:

- a. Have or be able to obtain adequate financial resources to perform a contract;
- b. Have the ability to meet any required or proposed delivery schedules;
- c. Have a satisfactory performance history;
- d. Have a satisfactory record of integrity and proper business ethics;
- e. Have appropriate accounting and operational controls that may include, but are not limited to: production control, property control systems, quality assurance programs, and appropriate safety programs; and
- f. Be qualified and eligible to receive an award under applicable laws or regulations.

The Offeror must provide information to assist with the Contracting Officer's responsibility determination as required in SIR, Section L.11.3.2. The FAA may also rely on information from compliance and regulatory agencies and/or independent investigation to determine Offeror's responsibility.

L.10 PROPOSAL VOLUMES

The Offeror should present its proposal information in a manner that facilitates a one-for-one comparison between the proposal information and SIR, Section L.11 Proposal Content. Proposal information should be structured such that its paragraph number/letter clearly identifies the corresponding SIR, Section L.11 Proposal Content paragraph number/letter.

The Offeror must submit their proposal in separate electronic files by Volume and Tab Number as set forth in the table below. Each Volume Number must be submitted as a separate file. Page limitations for each Volume and each Tab, where applicable, are also specified in the table below.

Table L.10.1 - Proposal Volumes

Volume Number and Name	Volume Components	Volume Page Limitation
1 – Technical Proposal	Tab 1 – Staffing Approach	10 pages for the staffing approach, plus 2 pages per resume
	Tab 2 – Management Approach	20 pages
	Tab 3 – Corporate Experience	12 pages total, including Attachment L-1: Corporate Experience Information Form
	Tab 4 – Past Performance	N/A
2 – Cost/Price Proposal	Tab 1 – COMS Pricing Schedule (Attachment B-1) – Fixed Burdened Rate (Attachment B-2) – Loaded Labor Rates (Attachment B-3)	N/A
	Tab 2 – FFP Price Model CLIN X001 Program Management (Attachment B-8) – FFP Price Model CLIN X002 PM, RD, COD (Attachment B-9) – FFP Price Model CLIN X003 Svc Call (Attachment B-10)	
	Tab 3 – Cost/Price Narrative and Exceptions, Deviations and Assumptions	
3 – Contracts Compliance Proposal	Tab 1 – Contract Documents and Associated Information	N/A
	Tab 2 – Contractor Responsibility Documentation	

	Tab 3 – Small Business Subcontracting Plan (Only required for Offerors that are “Other than Small Business”)	
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L.11 PROPOSAL CONTENT

L.11.1 VOLUME 1 – TECHNICAL PROPOSAL

L.11.1.1 Volume 1 Tab 1 – Staffing Approach

Staffing Approach must include the following:

a. An organizational chart that shows the structure and personnel of the Offeror’s on-site management team, as defined in Attachment C-1 PWS, Attachment I, Section 2, Paragraph 2.3 Managers. Per Attachment C-1 PWS, Attachment I, Section 2, Paragraph 2.3.d, the Offeror determines the staffing approach to meet the Contract Management Team roles and capabilities. Therefore, the organizational chart must include a narrative that identifies what work each Manager under Attachment C-1 PWS, Attachment I, Section 2 Paragraph 2.3 is responsible for managing and accomplishing all work that will be performed in accordance with Section J, Attachment C-1 Performance Work Statement, Attachment I, Sections 01 through 07 and Attachment C-2 Performance Work Statement, Attachment II, Section 1 through 15. The Offeror must describe where decision making authority lies within the organization as well as its proposed interface (vertical and horizontal communication) between on-site project management and off-site corporate management to accomplish the mission. Additionally, it must explain its interface with the Government to ensure smooth mission accomplishment and cooperation with all team members.

b. Resumes for all proposed Key Personnel in Attachment 1 Section 2 Paragraph 2.3 Key Personnel Requirements. This includes the three (3) positions designated as key positions by the FAA in paragraphs 2.3.a, 2.3.b and 2.3.c (i.e., Contract Manager, Alternate Contract Manager, Safety Manager), and each member of the Offeror’s proposed Contract Management Team in paragraph 2.3.d. Each resume must demonstrate compliance with experience, education, and/or certification requirements of the PWS, to include specific dates and/or years/months of experience and education as it relates specifically to the duties to be performed under this contract. The Key Personnel positions of Contract Manager, Alternate Contract Manager, and Safety Manager **must be prime contractor employees**, while the other members of the Contract Management Team may be employed by either the prime contractor or proposed subcontractor. A signed and dated Letter of Intent must be provided for the Contract Manager, Alternate Contract Manager, and Safety Manager if not currently employed by the prime contractor Offeror. A signed and dated Letter of Intent must be provided for Contract Management Team Members that are not currently employed by the prime contractor or proposed subcontractor. The letter must be dated after the release of the SIR and indicate that he/she will be available for employment by the prime contractor, or proposed subcontractor as applicable, no later than start of full performance. A letter of intent is not required for Key Personnel that are

currently employed by the prime contractor, or proposed subcontractor as applicable; however, the Offeror must provide a written statement that the individual is currently employed by their company or proposed subcontractor.

*Each resume must not exceed two (2) pages. This page limitation does not include the Letter of Intent or written statement of current employee, as applicable.

c. Offeror's approach for backfilling personnel for scheduled and unscheduled leave and for replacing Key Personnel in a timely manner.

L.11.1.2 Volume 1 Tab 2 – Management Approach

Management Approach must include the following:

a. Description of the technical, personnel, schedule, and other risks associated with the performance of the PWS requirements and any techniques, methods and actions that will be used by the Offeror to mitigate identified risks.

b. Description of the Offeror's approach to developing an effective Work Control plan to ensure craftspeople efficiency and productivity levels meet the requirements of this Contract. The approach must include a description of the on-site management team's approach to manage, schedule, and coordinate Preventive Maintenance work and Service Calls designated as Emergencies, Urgent, and Routine.

c. Description of the on-site management team's approach to providing continuous up-to-date training given constantly changing equipment and technology.

d. Offeror's approach to inventory management for stocking materials in order to meet timely work performance requirements and for supplying the necessary equipment, vehicles, and tools as described in Attachment C-1 PWS, Attachment I Section 5 Property, Paragraph 5.2 for the duration of contract period of performance.

L.11.1.3 Volume 1 Tab 3 – Corporate Experience

The Offeror must provide information for recent and relevant contracts (e.g., definitive contracts, individual task orders) that demonstrates the Offeror's experience performing the same or similar services as described by this SIR. "Recent" means performance was ongoing or completed within five (5) years of the SIR closing date.

The Offeror must provide a completed SIR, Section J, Attachment L-1 Corporate Experience Information Form for a minimum of two (2) to a maximum of three (3) recent and relevant contracts that describes similarity in terms of size and scope of this requirement. Contracts listed may include those entered into with the Federal Government, agencies of state and municipal governments, and commercial customers.

The Offeror must have performed as the prime contractor for at least one (1) of the contracts.

If the relevant experience cited is for work performed as a subcontractor, only the work actually performed as a subcontractor must be used in the narrative and when completing the experience information in Section B of Attachment L-1 (e.g., total contract value and annual dollar value must only be for the subcontract itself).

In Attachment L-1, the Offeror must provide narrative for each corporate experience provided to explain how the work performed is relevant to the COMS PWS in Section J Attachment C-1 and Attachment C-2, and specifically that shows the submitted contracts individually or collectively demonstrate experience in each of the following four (4) task types identified below:

- 1) Attachment C-2, Attachment II, Section 8 Central Utilities Plant
- 2) Attachment C-2, Attachment II, Section 2 Site Utilities
- 3) Attachment C-2, Attachment II, Section 5 Electrical Distribution for medium voltage
- 4) Attachment C-2, Attachment II, Section 9 Water Treatment

Additional contract examples beyond the maximum of three (3) will not be evaluated.

The contracts submitted must be identical to those submitted under Volume 1 Tab 4 Past Performance.

L.11.1.4 Volume 1 Tab 4 – Past Performance

The Offeror must provide Past Performance information by submission of Attachment L-2 Past Performance Evaluation Survey that demonstrates the Offeror has satisfactorily performed activities under the contracts cited in SIR, Section L.11.1.3.

The Offeror must complete Part I of SIR, Section J, Attachment L-2 Past Performance Evaluation Survey for each contract submitted under Volume 1 Tab 3 Corporate Experience. The Offeror must send the surveys to the individuals who will complete Part II of the Survey. The completed survey must be submitted via e-mail directly from the person providing the reference, not from the Offeror as part of the Offeror's proposal.

All survey responses must be received by the Government no later than the proposal submission deadline in SIR, Section L.8. It is the responsibility of the Offeror to follow-up and ensure timely submission of the surveys.

A Past Performance Evaluation Survey submitted for any contract not proposed under Volume 1 Tab 3 Corporate Experience will not be evaluated. In addition, any individual contract example that is evaluated as Not Relevant in accordance with Section M.3.3 will not be evaluated here in Tab 4.

The Volume 1 Tab 4 submission must include copies of the Attachment L-2 Past Performance Survey forms with Part A completed by the Offeror.

The Government may use the information provided by the Offerors in their Past Performance proposal to contact the references as part of the evaluation of their past performance. Past Performance questions asked of the references by the Government are not limited to those on the survey. The Government may contact the POC(s) and/or send any questionnaires as part of the evaluation of the Past Performance volume.

Offerors are reminded that the FAA may use information other than that provided by the Offerors in their proposals to evaluate past performance. The Government may use past performance information obtained from sources other than those identified by the Offeror. Additionally, Contractor Performance Assessment Reporting system (CPARs) may be utilized to evaluate Past Performance. Problems not addressed by the Offeror will be considered to still exist. If applicable, the Offeror should demonstrate how it has successfully applied continuous systemic improvement to resolve past performance problems. The FAA does not assume the duty to search for data to cure the problems it finds in the information provided by the Offeror. The Offeror has the burden of providing thorough and complete past performance information.

L.11.2 VOLUME 2 – COST/PRICE PROPOSAL

Cost/price information must appear only in Volume 2 – Cost/Price Proposal. Cost/price information must not be included in any other Volume, including cover letters. Offerors are responsible for submitting a complete Volume 2 Cost/Price Proposal to enable the FAA to fully evaluate their Cost/Price proposal. However, the FAA reserves the right to request additional cost/pricing data and narrative to conduct the evaluation.

Pursuant to the Service Contract Labor Standards, previously known as the Service Contract Act, the Government has provided the applicable Service Contract Act Wage Determinations in Section J Attachment B-4 and Attachment B-5 and the applicable Collective Bargaining Agreement in Section J Attachment B-6. Pursuant to the Davis-Bacon Act, the Government has provided the applicable Davis-Bacon Act Wage Determination in SIR, Section J Attachment B-7. Compliance with labor rules, laws, and regulations is the responsibility of the Offeror.

As this is a competitive acquisition with adequate price competition anticipated, this SIR does not require certified cost or pricing data. However, in the event that adequate price competition does not exist after receipt of proposals, the Government reserves the right to request cost or pricing data and may conduct negotiations with the Offeror in order to ensure a fair and reasonable price. Further, the Offeror may be required to provide a Certificate of Current Cost or Pricing Data prior to award.

Attachment L-4 FY22-24 Historical Service Call Data is provided to demonstrate the types of service calls for proposing CLIN X003. Note that the number of services calls is understated due to COVID-19. As shown in Attachment B-1 COMS Pricing Schedule, CLIN X003, the FAA estimates up to 10,000 service calls per year.

L.11.2.1 Volume 2 Tabs 1 and 2 Cost/Pricing Spreadsheets

Volume 2 Tab 1 includes the following:

- Attachment B-1 COMS Pricing Schedule
- Attachment B-2 Fixed Burdened Rate
- Attachment B-3 Loaded Labor Rates

Volume 2 Tab 2 includes the following:

- Attachment B-8 FFP Price Model CLIN X001 Program Management
- Attachment B-9 FFP Price Model CLIN X002 PM, RD, COD
- Attachment B-10 FFP Price Model CLIN X003 Svc Call

Offerors are required to complete all Attachments in Volume 2 Tabs 1 and 2. Offerors must complete at least the **yellow**-highlighted information in each Tab for each Base and Option Year. Volume 2 Tabs 1 and 2 both include a tab for Potential Labor Categories for informational purposes to be used by the Offeror for completing all Attachments in Volume 2 Tabs 1 and 2. Offerors will propose labor categories for their proposed approach, adding additional columns as needed. Offerors may add more labor categories and cost elements than those in the Pricing Model to accurately and completely reflect their approach. See the “Instructions & Rates” tab in worksheets for more information.

Volume 2 Tab 2, Attachment B-8 – B-10 are for information purposes only. This information will be used for evaluating potential future requests for price adjustment under AMS Clause 3.6.2-30 Fair Labor Standards Act and Service Contract Labor Standards - Price Adjustment (Multiple Year and Option Contracts).

The Offeror must not lock any cells, and all formulas entered by the Offeror must be visible to the Government.

Labor categories that are subject to the Service Contract Labor Standards and Davis-Bacon Act must not include escalation. See AMS Clause 3.6.2-30 Fair Labor Standards Act and Service Contract Labor Standards - Price Adjustment (Multiple Year and Option Contracts), which states in part, “The Contractor warrants that the prices in this contract do not include any allowance for any contingency to cover increased costs for which adjustment is provided under this clause.” Only exempt labor rates may be escalated.

L.11.2.2 Volume 2 Tab 3 Cost/Price Narrative and Exceptions, Deviations and Assumptions

a. Cost/Price Narrative

The Offeror must provide a narrative describing the methodology that was utilized to arrive at all proposed cost/pricing in Volume 2 Tabs 1 and 2. The narrative must include the following:

- 1) assumptions utilized in the development of proposed cost/pricing;
- 2) rationale for selecting proposed labor categories;
- 3) methodology used to determine regular, overtime, and leave hours, including the allocation of labor categories and hours between FFP and T&M tasks;
- 4) rationale for proposed labor rates including the basis of the base labor rates, indirect rates (fringe, overhead, G&A), profit, and including any forward pricing rate proposals, recommendations, or agreements to support the proposed direct and indirect rates;
- 5) basis for proposed Other Direct Costs;
- 6) rationale for any escalation applied to direct and indirect rates if applicable. Note: Labor categories that are subject to the Service Contract Labor Standards and Davis-Bacon Act must not include escalation; and
- 7) the Offeror's competitive purchasing procedures to determine the best value vendor.

b. Exceptions, Deviations and Assumptions

The Offeror must provide a narrative that identifies and explains in detail any exceptions to, deviations from, or assumptions made with the Cost/Price requirements of the SIR. The narrative explanation of all exceptions, deviations, and/or assumptions must contain sufficient detail to permit evaluation. The narrative must explain how each exception, deviation, and/or assumption impacts this procurement.

If any or all of these do not apply, this section must clearly state that the Offeror has no exceptions, deviations, and/or assumptions.

L.11.3 VOLUME 3 – CONTRACTS COMPLIANCE PROPOSAL

L.11.3.1 Volume 3 Tab 1 – Contract Documents and Associated Information

This section must include:

- a. Cover Letter signed by an individual who is authorized to contractually bind the Offeror. The cover letter must include the following:

- 1) Any authorized negotiators per AMS 3.2.2.3-15 Authorized Negotiators;
- 2) The cover letter must stipulate that the Offeror's proposal is predicated upon all the terms and conditions of this SIR and is valid for the minimum acceptance period as identified in AMS 3.2.2.3-2 Minimum Offer Acceptance Period;
- 3) Name and address of Offeror and SAM UEI; and
- 4) Name, title, and point of contact information of authorized representative of the company for communications related to this SIR;

b. Signed Solicitation, Offer and Award for the basic SIR;

c. Signed Amendment of Solicitation (SF30) for each amendment or acknowledgment of each Amendment on the signed Solicitation, Offer and Award. Note: The Solicitation, Offer and Award and all Amendments must be signed by an authorized representative in SIR, Section L.11.3.1.a.4) above;

d. All basic SIR and Amendment (SF30) provisions, clauses, Representations, Certifications and Acknowledgements that require information to be filled in by Offeror. Fill-ins are highlighted in green; and

e. CAS Disclosure Statement if required.

L.11.3.2 Volume 3 Tab 2 – Contractor Responsibility Documentation

Offerors must submit the following information:

a. Sufficient information to demonstrate the financial capability to fund and perform a contract of this size and duration. This may include, without limitations:

- 1) Proof of any existing Line(s) of Credit by a U.S. Banking Institution; and/or
- 2) Certified Balance Sheet and Income Statements that demonstrate the firm's results for the last three (3) completed company fiscal years;

b. A description of all current or pending legal action(s) under Federal Government contracts within the past three (3) years in excess of \$5M, pending or ongoing cure notices, and/or Terminations for Default; and

c. Provide copies of any prior determinations of appropriate accounting and operational controls, such as property control systems, quality assurance programs, and appropriate safety programs, that the Offeror has previously received either from the FAA or other Federal agencies.

L.11.3.3 Volume 3 Tab 3 – Small Business Subcontracting Plan (Only required for Offerors that are “Other than Small Business”)

Large Business Offerors must provide their Small Business Subcontracting Plan that must comply with and address all requirements of AMS 3.6.1-4 Small Business Subcontracting Plan. The accepted Small Business Subcontracting Plan will be incorporated into the resulting contract.

The FAA’s Small Business Subcontracting Goals are as follows:

Table L.11.3.3.1 – Small Business Subcontract Goals

Subcontract Categories	Goal Percentage
Total Subcontract Dollars Awarded to Small Business Concerns	43.02%
Total Subcontract Dollars Awarded to Small Disadvantaged Business Concerns (Includes SEDB 8(a) Certified Vendors)	5%
Total Subcontract Dollars Awarded to Women Owned Small Business Concerns	5%
Total Subcontract Dollars Awarded to Service-Disabled Veteran-Owned Small Business Concerns	5%

SECTION M - EVALUATION FACTORS FOR AWARD

3.2.4-31 EVALUATION OF OPTIONS (OCT 2024)

Except when it is determined not to be in the FAA's best interests, the FAA will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the FAA to exercise the option(s).

(End of provision)

M.1 GENERAL INFORMATION

M.1.1 NOTICES TO OFFERORS

M.1.1.1 Award Without Communications

In accordance with the AMS, FAA reserves the right to award a contract based on initial offers received without communications or negotiations. For this reason, each initial offer should be submitted on the most favorable terms from the standpoint of technical and cost/price. However, the FAA also reserves the right to conduct Offeror-specific discussions or to conduct communications consistent with the AMS and permit Offerors to revise their proposals, if the Contracting Officer deems it appropriate and in the best interest of the FAA. The FAA reserves the right to reject any exception for any reason and may consider any exception or deviation to any term or condition of the SIR that is not expressly authorized by the SIR to be a deficiency.

M.1.1.2 Grounds for Rejection of Proposals

The FAA reserves the right to reject proposals that are not responsive to solicitation requirements or unrealistic in terms of promised outcomes.

a. Proposals that are grossly deficient (i.e., proposals that are so poorly constructed as to require a rewrite, and/or which substantially fail to present any evidence of qualifying with the requirements set forth in the SIR) may be considered non-responsive. Proposals that are non-responsive or are unrealistic in terms of technical content or schedule commitments may be deemed reflective of an inherent lack of technical competence or indicative of a failure to comprehend the technical complexity and risks of the contract requirements and may render the proposal ineligible for further evaluation and no longer considered for contract award.

b. A proposal containing general statements that the Offeror understands the requirements of the work to be performed, or simple rephrasing or restating of the FAA's requirements, will not be considered adequate and will receive lower evaluation scores or may be cause for rejection of the proposal in its entirety.

c. Multiple exceptions and/or deviations, or one or more significant exceptions and/or deviations not providing benefit to the FAA, may result in rejection of a proposal as unacceptable or otherwise non-compliant. An exception is significant if it materially alters the terms under which the Offeror will perform or requires FAA to give up rights to which it would otherwise be entitled.

d. This SIR does not authorize alternate proposals and the FAA will not evaluate any alternate proposal received.

M.1.1.3 Right Not To Award

The FAA reserves the right to make no award in response to the solicitation if the Source Selection Official (SSO) determines that this action is in the FAA's best interest.

M.2 EVALUATION METHODOLOGY

This acquisition will utilize the Best Value Approach for selecting an Offeror for award. The Best Value Approach is a method of selecting the proposal that represents the greatest value to the Government, based upon the evaluation of cost or price and other factors specified in the solicitation. This approach provides the opportunity for a technical/price trade-off and does not require that the awards be made to either the Offeror submitting the highest rated technical proposal or the Offeror submitting the lowest prices, although the ultimate award decision may be to either of these Offerors.

M.2.1 EVALUATION FACTORS

The evaluation factors are as follows:

- Factor 1 Staffing Approach
- Factor 2 Management Approach
- Factor 3 Corporate Experience
- Factor 4 Past Performance
- Factor 5 Cost/Price

M.2.2 RELATIVE ORDER OF IMPORTANCE

Factor 1 Staffing Approach and Factor 2 Management Approach are of equal importance. Factor 3 Corporate Experience and Factor 4 Past Performance are of equal importance. Each of Factor 1 and Factor 2 is more important than each of Factor 3 and Factor 4. In addition to the non-price evaluation factors, Cost/Price will be evaluated and considered in the award decision.

Factor 1 Staffing Approach, Factor 2 Management Approach, Factor 3 Corporate Experience and Factor 4 Past Performance, when combined, are more important than Factor 5 Cost/Price; however, Cost/Price is an important factor and should not be ignored.

As the ratings of proposals in relation to non-price factors become more equal, the significance of the cost/price factor will increase in selecting the best value offer.

Offerors are ineligible for award if they are rated as:

“Unacceptable” for either Factor 1 or Factor 2

“Not Relevant” for Factor 3

“High Risk” for Factor 4

M.2.3 PROPOSAL COMPLIANCE

Upon receipt, FAA will examine proposals to ensure that they are complete and comply with all terms of the solicitation, inclusive of review of the required submission of the items identified in Volume 3 Contracts Compliance Proposal. Proposals that are incomplete (e.g., missing tabs, appendices, or required tables) or do not comply with the terms of the solicitation (e.g., exceed applicable page limits, include price information in the non-price volumes), or are determined grossly deficient (Reference SIR, Section M.1.1.2) may not be evaluated, at the Contracting Officer's discretion.

M.2.3.1 Volume 3 Tab 3 – Small Business Subcontracting Plan (Only required for Offerors that are “Other than Small Business”)

The FAA will assess whether the Offeror's Small Business Subcontracting Plan satisfies the requirements set forth in AMS clause 3.6.1-4 Small Business Subcontracting Plan, which is incorporated into SECTION I of this SIR, and the subcontracting goals identified in SIR, Section L.11.3.3, and whether the plan provides the reasonable opportunity for small business participation. A plan satisfies the requirements if the Offeror's response demonstrates a viable Small Business Subcontracting Plan that meets the specified subcontracting goals and the AMS Clause 3.6.1-4 content requirements. The FAA will also evaluate whether the Offeror's Small Business Subcontracting Plan demonstrates that the subcontracting goals apply over the full life of the contract, including the base period and each exercised option period. Offeror submissions will be assessed on an individual basis; there will be no comparison of Offerors.

The Small Business Subcontracting Plans will be evaluated as Acceptable or Unacceptable as defined in Table below. The submission of a Small Business Subcontracting Plan is not applicable to Small Businesses; therefore, Small Businesses will not receive a rating for Volume 3 Tab 3. Since the Government's subcontracting goals are stated in terms of the percentage of the total planned subcontracting dollars, an Offeror with no subcontractors will receive an Acceptable rating by default.

The FAA will assess the Offeror's Small Business Subcontracting Plan and may assign proposal findings as applicable as defined in Table M.3.6.1 below. The FAA will then assign an adjectival rating to the Offeror's Small Business Subcontracting Plan as defined in Table M.2.3.1.1 below.

Offerors that receive a rating of “Unacceptable” for Small Business Subcontracting Plan are ineligible for award.

Table M.2.3.1.1 Small Business Subcontracting Plan Ratings

Rating	Definition
Acceptable	The Offeror’s response demonstrates a viable Small Business Subcontracting Plan that meets the specified subcontracting goals and the AMS content requirements.
Unacceptable	The Offeror’s response does not demonstrate a viable Small Business Subcontracting Plan and does not meet the specified subcontracting goals or the AMS content requirements.

M.2.4 EVALUATION PROCESS

M.2.4.1 Evaluation Teams

A Government source evaluation team comprised of qualified personnel will evaluate information furnished by the Offerors. This includes proposals, written responses to clarification requests (if any), and revised proposals (if any). A separate evaluation team will evaluate cost/price information furnished by the Offerors.

M.2.4.2 Communications With Offerors

During the evaluation process, the FAA may conduct written or oral communications with any and/or all Offerors. The FAA reserves the right to conduct communications with any individual Offeror, or some, all, or no competing Offerors, as the situation warrants and consistent with the AMS. Communications may result in a request to submit revised technical or price proposals. Communications, including negotiations, with any Offeror does not require communications with all Offerors.

M.2.4.3 Exclusion From Competition

During the evaluation process, FAA may limit continued participation in the competition to those Offerors most likely to receive award. If at any time during the evaluation process, the FAA concludes that an Offeror is not likely to receive award, the FAA may eliminate the Offeror from further consideration for award. The Contracting Officer will provide written notification to any Offeror eliminated from further award consideration; the timing of such notification is at the discretion of the Contracting Officer.

M.3 BASIS FOR AWARD

- a. This acquisition is issued in accordance with AMS Policy 3.2.2.3 Complex and Noncommercial Source Selection. This acquisition will utilize AMS source selection procedures to make an integrated assessment for best value award decision in accordance with the AMS. The FAA intends to select one contractor and issue a single award for this acquisition. However, the Government reserves the right not to award a contract at all, depending on the quality of the proposals and the prices submitted and the availability of funds.
- b. The FAA intends to award a contract resulting from this SIR to the responsive, responsible Offeror, conforming to the SIR that is determined to be most advantageous to the Government, price and other factors considered.
- c. The FAA cautions Offerors not to minimize the importance of a detailed, adequate response in any area due to its relative importance, or due to the FAA not providing a numeric score.
- d. Prior to the award of any contract, the prospective Offeror must also be determined to be responsible in accordance with AMS 3.2.2.2. The Contracting Officer will review the information provided by the Offeror as required in SIR, Section L.11.3.2. To assist in this determination, the FAA reserves the right to conduct a pre-award survey of any Offeror or Offeror's subcontractor(s). If the FAA conducts a pre-award survey, it does not necessarily mean that the FAA has selected an Offeror for award.
- e. To be eligible for award, the Offeror must meet all the requirements of the SIR. However, the FAA reserves the right to reject all offers or to waive any requirements, irregularities, and discrepancies if it would be in the best interest of the FAA to do so.

M.3.1 FACTOR 1 STAFFING APPROACH

The FAA will evaluate the Offeror's Staffing Approach, including all key personnel resumes, to determine the Offeror's understanding of, approach to, and ability to meet the SIR requirements. The FAA will evaluate Volume 1 Tab 1 Staffing Approach to determine if the Offeror's proposed approach is:

Comprehensive – which is defined as the extent to which the proposal sufficiently and completely addresses each requirement specified in SIR, Section L.11.1.1. The proposal demonstrates a clear understanding of the requirements in the PWS; the risks to be resolved; and the staffing plans, methods, tools, and techniques required to achieve program objectives.

and

Feasible – which is defined as the extent to which the proposed Staffing Approach is workable and the end results achievable. The proposal demonstrates that the specified staffing plans, methods, tools, and techniques will benefit the Government and are likely to be efficient and effective in accomplishing program objectives. Includes an assessment of the Government’s confidence in the Offeror’s proposed approach to successfully execute the requirement and minimize the risk of performance problems.

The FAA will assess the Offeror's Factor 1 Staffing Approach and may assign proposal findings as applicable as defined in Table M.3.6.1 below. Key personnel resumes will be evaluated as part of the overall factor evaluation and resumes will not be separately assigned a rating. The FAA will then assign an adjectival rating to Factor 1 Staffing Approach as defined in Table M.3.1.1 below.

Offerors that receive a rating of “Unacceptable” for Factor 1 Staffing Approach are ineligible for award.

Table M.3.1.1 Staffing Approach Ratings

Rating	Definition
Outstanding	Proposal meets requirements and indicates an exceptional approach and understanding of the requirements. Strengths far outweigh weaknesses. Risk of unsuccessful performance is very low.
Good	Proposal meets requirements and indicates a thorough approach and understanding of the requirements. Proposal contains strengths which outweigh any weaknesses. Risk of unsuccessful performance is low.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements. Strengths and weaknesses are offsetting or will have little or no impact on contract performance. Risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal does not clearly meet requirements and has not demonstrated an adequate approach and understanding of the requirements. The proposal has one or more weaknesses which are not offset by strengths. Risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements and contains one or more deficiencies. Proposal is unawardable.

M.3.2 FACTOR 2 MANAGEMENT APPROACH

The FAA will evaluate the Offeror’s Management Approach to determine the Offeror’s understanding of, approach to, and ability to meet the SIR requirements. The FAA will evaluate Volume 1 Tab 2 Management Approach to determine if the Offeror’s proposed approach is:

Comprehensive – which is defined as the extent to which the proposal sufficiently and completely addresses each requirement specified in SIR, Section L.11.1.2. The proposal demonstrates a clear understanding of the requirements in the PWS; the risks to be resolved; and the management plans, methods, tools, and techniques required to achieve program objectives.

and

Feasible – which is defined as the extent to which the proposed Management Approach is workable and the end results achievable. The proposal demonstrates that the specified management plans, methods, tools, and techniques will benefit the Government and are likely to be efficient and effective in accomplishing program objectives. Includes an assessment of the Government’s confidence in the Offeror’s proposed approach to successfully execute the requirement and minimize the risk of performance problems.

The FAA will assess the Offeror's Factor 2 Management Approach and may assign proposal findings as applicable as defined in Table M.3.6.1 below. Proposals that demonstrate cost efficiencies related to stocking materials and purchasing necessary equipment, vehicles, and tools may be assigned a Strength(s). The FAA will then assign an adjectival rating to Factor 2 Management Approach as defined in Table M.3.2.1 below.

Offerors that receive a rating of “Unacceptable” for Factor 2 Management Approach are ineligible for award.

Table M.3.2.1 Management Approach Ratings

Rating	Definition
Outstanding	Proposal meets requirements and indicates an exceptional approach and understanding of the requirements. Strengths far outweigh weaknesses. Risk of unsuccessful performance is very low.
Good	Proposal meets requirements and indicates a thorough approach and understanding of the requirements. Proposal contains strengths which outweigh any weaknesses. Risk of unsuccessful performance is low.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements. Strengths and weaknesses are offsetting or will have little or no impact on contract performance. Risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal does not clearly meet requirements and has not demonstrated an adequate approach and understanding of the requirements. The proposal has one or more weaknesses which are not offset by strengths. Risk of unsuccessful performance is high.

Unacceptable	Proposal does not meet requirements and contains one or more deficiencies. Proposal is unawardable.
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M.3.3 FACTOR 3 CORPORATE EXPERIENCE

The FAA will evaluate the Offeror's Corporate Experience proposal to determine if the Offeror possesses experience that is recent and is relevant to COMS in terms of size and scope, with at least one contract where the Offeror performed as the prime contractor.

The FAA will assess the Offeror's Factor 3 Corporate Experience and may assign proposal findings as applicable as defined in SIR, Section M.3.6 below.

For this factor, greater weight will be given to the Offeror's performance as a prime contractor than as a subcontractor. Greater weight will also be given to experience of the Offeror than to experience of any proposed subcontractors.

The following relevancy criteria in terms of size and scope will be applied to the Corporate Experience factor:

Size: relevance will be determined by the following:

- annual awarded value*
- number of buildings serviced
- number of Preventive Maintenance/Recurring Services tasks performed per year
- number of Service Calls performed per year

For purposes of this evaluation, the Government will accept the aggregated experience of two (2) cited references as a substitute for one reference as long as each of the references have concurrent periods of performance that overlap for at least 1 year.

*"Annual Dollar Value" as used in Attachment L-1 is defined as the total contract value, inclusive of options (i.e., the awarded price or ceiling) divided by the number of years of period of performance. If the contract cited is for an ordering vehicle such as an IDIQ or BPA, annual dollar value is calculated as the aggregated ceiling or awarded price for all orders awarded to the Offeror under that ordering vehicle, divided by the number of years of the period of performance of that ordering vehicle that have been completed by the Offeror to date.

Scope: The degree to which the Corporate Experience examples include similar support to the COMS PWS in Section J Attachment C-1 and Attachment C-2 with particular emphasis on the following:

- 1) Attachment C-2, Attachment II, Section 8 Central Utilities Plant
- 2) Attachment C-2, Attachment II, Section 2 Site Utilities
- 3) Attachment C-2, Attachment II, Section 5 Electrical Distribution for medium voltage

4) Attachment C-2, Attachment II, Section 9 Water Treatment

The narrative submitted to explain the relevance of the contracts cited clearly demonstrates the similarity between the work performed by the Offeror and the work described in the above 4 PWS sections.

The FAA will then assign an adjectival rating to Factor 3 Corporate Experience as defined in Table M.3.3.1 below.

Offerors that receive a rating of “Not Relevant” for Factor 3 Corporate Experience are ineligible for award.

Table M.3.3.1 Corporate Experience Ratings

Rating	Definition
Very Relevant	Corporate Experience involved essentially the same size and scope of work as required by this solicitation.
Relevant	Corporate Experience involved similar size and scope of work as required by this solicitation.
Somewhat Relevant	Corporate Experience involved some of the size and scope of work as required by this solicitation.
Not Relevant	Corporate Experience involved very little or none of the size and scope of work as required by this solicitation.

M.3.4 FACTOR 4 PAST PERFORMANCE

The FAA will evaluate Factor 4 Past Performance to determine the probability that the Offeror will successfully accomplish the contract requirement based on the Offeror’s recent, relevant past performance. The FAA will not evaluate past performance for any contract that was not submitted under Factor 3 Corporate Experience.

For Factor 4 Past Performance, the FAA will evaluate the following elements as listed on the Attachment L-2 Past Performance Questionnaire:

- Quality of Service
- Timeliness of Performance
- Cost Control
- Program Management
- Customer Relationship
- Customer Satisfaction

The elements under Factor 4 Past Performance are not separately weighted or separately rated and are equally important under that specific factor. All elements should be addressed and will be evaluated as part of the factor.

The FAA will review and evaluate past performance information submitted as well as information available through sources such as past performance databases (i.e. Contractor Performance Assessment Reporting System (CPARS)). The FAA retains the right to contact any references provided.

More relevant Past Performance will typically be a stronger predictor of future success and have more influence on the past performance assessment than past performance of lesser relevance.

Problems not addressed by the Offeror will be considered to still exist. If applicable, the degree to which the Offeror can demonstrate that it has successfully applied continuous systemic improvement to resolve past performance problems will be evaluated.

The FAA will assess the Offeror's Factor 4 Past Performance and may assign proposal findings as applicable as defined in Table M.3.6.1 below. The FAA will then assign a Risk rating to Factor 4 Past Performance as defined in Table M.3.4.1 below.

Offerors that receive a rating of “High Risk” for Factor 4 Past Performance are ineligible for award. In the case of an Offeror without a record of relevant past performance, or for whom information on past performance is not available for at least two (2) contracts, the Offeror will receive a rating of “Unknown Risk” which is considered a “Neutral” rating.

Table M.3.4.1 Past Performance Ratings

Rating	Description
Low Risk	Based on the Offeror’s past performance, little doubt exists that the Offeror will successfully perform the required tasks.
Moderate Risk	Based on the Offeror’s past performance there are some concerns as to whether the Offeror will be able to successfully perform the required effort.
High Risk	Based on the Offeror’s past performance, substantial doubt exists as to whether the Offeror will be able to successfully perform the required efforts.
Unknown Risk	The lack of a project experience record may result in an unknown performance risk assessment, which will neither be used to the advantage or disadvantage of the Offeror.

M.3.5 FACTOR 5 COST/PRICE

The FAA will evaluate Cost/Price proposals for reasonableness, completeness, and consistency. Cost/Price proposals will not be scored or rated. The FAA will assess the Offeror's Factor 5 Cost/Price proposal and may assign proposal findings as applicable as defined in Table M.3.6.1 below.

The FAA will evaluate each Cost/Price proposal for reasonableness in accordance with AMS 3.2.3 Pricing Methodology, Principles and Standards and AMS T3.2.3 Cost and Price Methodology. A price is reasonable if, in its nature and amount, it does not exceed that which would be incurred by a prudent person in the conduct of competitive business.

The FAA will review each Cost/Price proposal to determine whether the proposal includes all required pricing information per SIR, Section L.11.2 and prices are consistent with described pricing methodology. Completeness will be determined based on the information requested in SIR, Section L. The FAA at its sole discretion might require additional information or reject proposals lacking completeness or consistency.

The total evaluated price is the Attachment B-1 COMS Pricing Schedule, “Base and 6 Options Total” value.

For labor categories that are subject to the Services Contract Labor Standards (SCLS), the FAA will evaluate the detailed cost/price buildup for the Loaded Labor Rates (Attachment B-3) and the FFP Price Models (Attachments B-8 – B-10) to ensure compliance with the applicable Wage Determination or Collective Bargaining Agreement.

The FAA reserves the right to evaluate the Offeror’s proposal for balance. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more items (e.g., CLINs, labor categories, option years) is significantly over or understated as indicated by the application of cost or price analysis techniques. This is particularly important when evaluating the prices for options in relationship to the prices for the basic requirements. An offer is materially unbalanced if there is a reasonable doubt that award to the offeror submitting the mathematically unbalanced bid will result in the lowest ultimate cost to FAA; or the offer is so grossly unbalanced that its acceptance would be tantamount to allowing an advance payment. Offers that are materially unbalanced may be rejected.

The FAA reserves the right to perform price realism analysis in accordance with AMS Procurement Guidance T3.2.3 at the CO’s discretion. In the case that price realism analysis is performed, and an Offeror’s price is found to be unrealistic, it may render the proposal ineligible for further evaluation and no longer considered for contract award.

The FAA reserves the right to reject any request for exceptions, deviations, and assumptions made with respect to, or underlying the content, of the Offeror’s Cost/Price Proposal. The FAA reserves the right to deem a statement that contradicts a SIR requirement as an exception, deviation, or assumption, whether or not the Offeror identifies it as such.

M.3.6 FINDINGS DEFINITIONS

Table M.3.6.1 Findings Definitions

Finding	Definition
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Strength	An aspect of a proposal that exceeds the minimum requirements of the SIR and would positively impact performance of the resulting contract or otherwise benefit the Government. Also, may contain enhancing features that provide supply or service above and beyond what is called for that benefit the Government.
Weakness	An aspect of a proposal that would negatively impact performance of the resulting contract or otherwise harm the Government. A flaw in the proposal that increases the risk of unsuccessful contract performance.
Deficiency	A material failure of the proposal to meet a requirement or a combination of weaknesses that increases the risk of unsuccessful contract performance to an unacceptable level. Deficiencies are fatal errors that can't be corrected, without major revisions.
Risk	An aspect of a proposal that presents an uncertainty as to the ability of the Offeror to successfully perform the required effort or the proposed approach and, that if realized, would have negative effect or impact on FAA operations or resources or on performance of the FAA's requirements. The effect or impact of a risk is derived from its likelihood of occurrence and the severity of the potential consequence.
Clarification	Communication with an Offeror for the sole purpose of eliminating minor irregularities, informalities, ambiguities, or apparent clerical mistakes in its offer. It is achieved by explanation or substantiation, either in response to Government inquiry or as initiated by the Offeror. Note: An ambiguity is a situation in which something can be understood in more than one way and it is not clear which meaning is intended.